



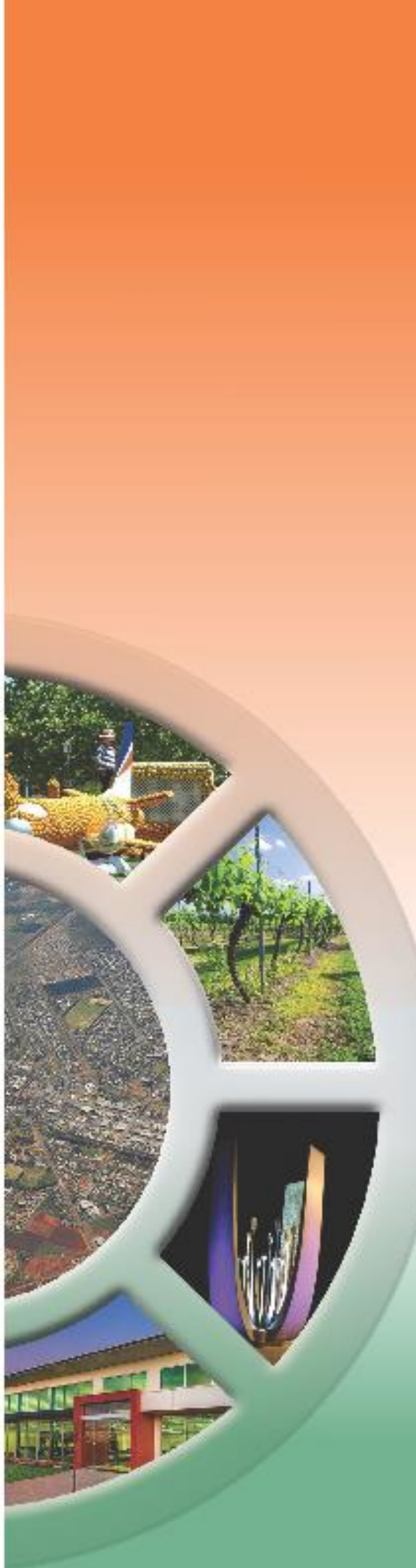
Ordinary Meeting

Tuesday, 25 August 2020

ATTACHMENTS UNDER SEPARATE COVER

**CL05 - Adoption of Amended Model Code of Conduct
and Procedures for the Administration of the Model
Code of Conduct for Local Councils in NSW**

**CL06 - Delivery Program Progress Report - 30 June
2020**



ATTACHMENTS UNDER SEPARATE COVER

Page

CL05	Adoption of Amended Model Code of Conduct and Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW	
	(a) Office of Local Government Circular 20-32.....	3
	(b) Model Code of Conduct 2020.....	6
	(c) Procedures for the Administration of the Model Code of Conduct.....	68
CL06	Delivery Program Progress Report - 30 June 2020	
	(a) Quarterly Review Report - Delivery Program & Operational Plan Actions - Q4, 2019/2020.....	120



Office of
Local Government

Circular to Councils

Circular Details	20-32 / 14 August 2020 / A708384
Previous Circular	19-25 – <i>Penalties available to councils for code of conduct breaches by councillors</i>
Who should read this	Mayors / Councillors / General Managers / Joint Organisation Executive Officers / Complaints Coordinators / Conduct Reviewers
Contact	Council Governance Team/ 02 4428 4100/ olg@olg.nsw.gov.au
Action required	Council to Implement

Amendments to the Model Code of Conduct for Local Councils in NSW and Procedures

What's new or changing

- The *Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW* (the Procedures) have been amended in response to the decision by the Supreme Court in the matter of *Cornish v Secretary, Department of Planning, Industry and Environment* [2019] NSWSC 1134.
- Amendments have also been made to the *Model Code of Conduct for Local Councils in NSW* (the Model Code of Conduct).
- The new Model Code of Conduct and Procedures have been prescribed under the *Local Government (General) Regulation 2005*.
- The new prescribed Model Code of Conduct and Procedures are available on the Office of Local Government's (OLG) website.

What this will mean for your council

- The new Model Code of Conduct and Procedures take effect immediately. This is because the amendments to the Procedures largely reflect existing practice following the Supreme Court's decision and the amendments to the Model Code of Conduct are minor in nature.
- Councils should adopt a code of conduct and procedures based on the prescribed Model Code of Conduct and Procedures as soon as possible.
- Councils' complaints coordinators should bring this circular to the attention of their council's conduct reviewers. Complaints coordinators should also inform conduct reviewers when the council has adopted a new code of conduct and procedures and provide copies.

Key points

Amendments to the Procedures

- Consistent with the Supreme Court's decision, councils have the following options when taking disciplinary action against councillors for breaches of their codes of conduct under the new Procedures:
 - that a councillor be formally censured for the breach under section 440G of the *Local Government Act 1993* (the Act), or

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- that a councillor be formally censured for a breach under section 440G and the matter referred to OLG for further disciplinary action under the misconduct provisions of the Act.
- The process for censuring councillors for breaches of the code of conduct has been significantly strengthened to ensure councillors are made publicly accountable to their electors for their conduct. When censuring councillors, councils are required to specify in their resolution the grounds on which the councillor is being censured by disclosing the investigator's findings and determination and any other grounds that the council considers may be relevant or appropriate.
- Councillors may seek to avoid public censure for breaches of the code of conduct by voluntarily agreeing to undergo training or counselling, to apologise for their conduct or to give undertakings not to repeat their conduct before the investigator finalises their report to the council. Investigators can finalise their investigations without a report to the council where they consider these to be an appropriate outcome to the matter they are investigating. However, it will remain open to investigators to finalise their report and to recommend censure where they consider this is appropriate and warranted.
- The process for referral by councils of code of conduct breaches by councillors to OLG for further disciplinary action under the misconduct provisions of the Act has been streamlined. Investigators are required to consult with OLG before recommending the referral of matters to ensure the conduct in question is sufficiently serious to warrant disciplinary action for misconduct and that there is sufficient evidence of the breach to allow OLG to take further disciplinary action.
- Other amendments have been made to the Procedures to:
 - allow panels of conduct reviewers to be appointed without a resolution of the council, and
 - allow the referral of investigators' reports to OLG for action under the misconduct provisions of the Act where the council will not have a quorum to deal with the matter.

Amendments to the Model Code of Conduct

- The Model Code of Conduct has been amended to:
 - remove as a breach, failure to comply with a council resolution requiring action in relation to a code of conduct breach (because it is now redundant)
 - update the language used to describe the various heads of discrimination in clause 3.6 to reflect more contemporary standards
 - include in the definition of council committee and council committee members, members of audit, risk and improvement committees (ARICs) in anticipation of the commencement of the requirement for all councils to appoint an ARIC following the next local government elections.
- Amendments have also been made to the gifts and benefits provisions of the Model Code of Conduct in response to feedback from some councils. The amendments:
 - lift the \$50 cap on the value of gifts that may be accepted to \$100
 - clarify that items with a value of \$10 or less are not "gifts or benefits" for the purposes of the Model Code of Conduct and do not need to be disclosed

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- clarify that benefits and facilities provided by councils (as opposed to third parties) to staff and councillors are not “gifts or benefits” for the purposes of the Model Code of Conduct, and
 - remove the cap on the value of meals and refreshments that may be accepted by council officials in conjunction with the performance of their official duties.
- Councils are not obliged to amend their codes of conduct to lift the cap on the value of gifts that may be accepted if they do not wish to. It is open to councils to retain the existing \$50 cap or to impose another cap that is lower than \$100.

Where to go for further information

- For further information please contact the Council Governance Team on 02 4428 4100 or by email at olg@olg.nsw.gov.au.



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Model Code of Conduct

for Local Councils
in NSW

2020



MODEL CODE OF CONDUCT FOR LOCAL COUNCILS IN NSW
2020

ACCESS TO SERVICES

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these hours are unsuitable)

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Contents

Part 1:	Introduction	4
Part 2:	Definitions	6
Part 3:	General Conduct Obligations	10
Part 4:	Pecuniary Interests	14
Part 5:	Non-Pecuniary Conflicts of Interest	22
Part 6:	Personal Benefit	28
Part 7:	Relationships Between Council Officials	32
Part 8:	Access to Information and Council Resources	36
Part 9:	Maintaining the Integrity of this Code	42
Schedule 1:	Disclosures of Interest and Other Matters in Written Returns Submitted Under Clause 4.21	46
Schedule 2:	Form of Written Return of Interests Submitted Under Clause 4.21	54
Schedule 3:	Form of Special Disclosure of Pecuniary Interest Submitted Under Clause 4.37	58

Part 1:

Introduction

This *Model Code of Conduct for Local Councils in NSW* ("the Model Code of Conduct") is made under section 440 of the *Local Government Act 1993* ("LGA") and the *Local Government (General) Regulation 2005* ("the Regulation").

The Model Code of Conduct sets the minimum standards of conduct for council officials. It is prescribed by regulation to assist council officials to:

- understand and comply with the standards of conduct that are expected of them
- enable them to fulfil their statutory duty to act honestly and exercise a reasonable degree of care and diligence (section 439)
- act in a way that enhances public confidence in local government.

Section 440 of the LGA requires every council (including county councils) and joint organisation to adopt a code of conduct that incorporates the provisions of the Model Code of Conduct. A council's or joint organisation's adopted code of conduct may also include provisions that supplement the Model Code of Conduct and that extend its application to persons that are not "council officials" for the purposes of the Model Code of Conduct (eg volunteers, contractors and members of wholly advisory committees).

A council's or joint organisation's adopted code of conduct has no effect to the extent that it is inconsistent with the Model Code of Conduct. However, a council's or joint organisation's adopted code of conduct may prescribe requirements that are more onerous than those prescribed in the Model Code of Conduct.

Councillors, administrators, members of staff of councils, delegates of councils, (including members of council committees that are delegates of a council) and any other person a council's adopted code of conduct applies to, must comply with the applicable provisions of their council's code of conduct. It is the personal responsibility of council officials to comply with the standards in the code and to regularly review their personal circumstances and conduct with this in mind.

Failure by a councillor to comply with the standards of conduct prescribed under this code constitutes misconduct for the purposes of the LGA. The LGA provides for a range of penalties that may be imposed on councillors for misconduct, including suspension or disqualification from civic office. A councillor who has been suspended on three or more occasions for misconduct is automatically disqualified from holding civic office for five years.

Failure by a member of staff to comply with a council's code of conduct may give rise to disciplinary action.

Note: References in the Model Code of Conduct to councils are also to be taken as references to county councils and joint organisations.

Note: In adopting the Model Code of Conduct, joint organisations should adapt it to substitute the terms "board" for "council", "chairperson" for "mayor", "voting representative" for "councillor" and "executive officer" for "general manager".

Note: In adopting the Model Code of Conduct, county councils should adapt it to substitute the term "chairperson" for "mayor" and "member" for "councillor".

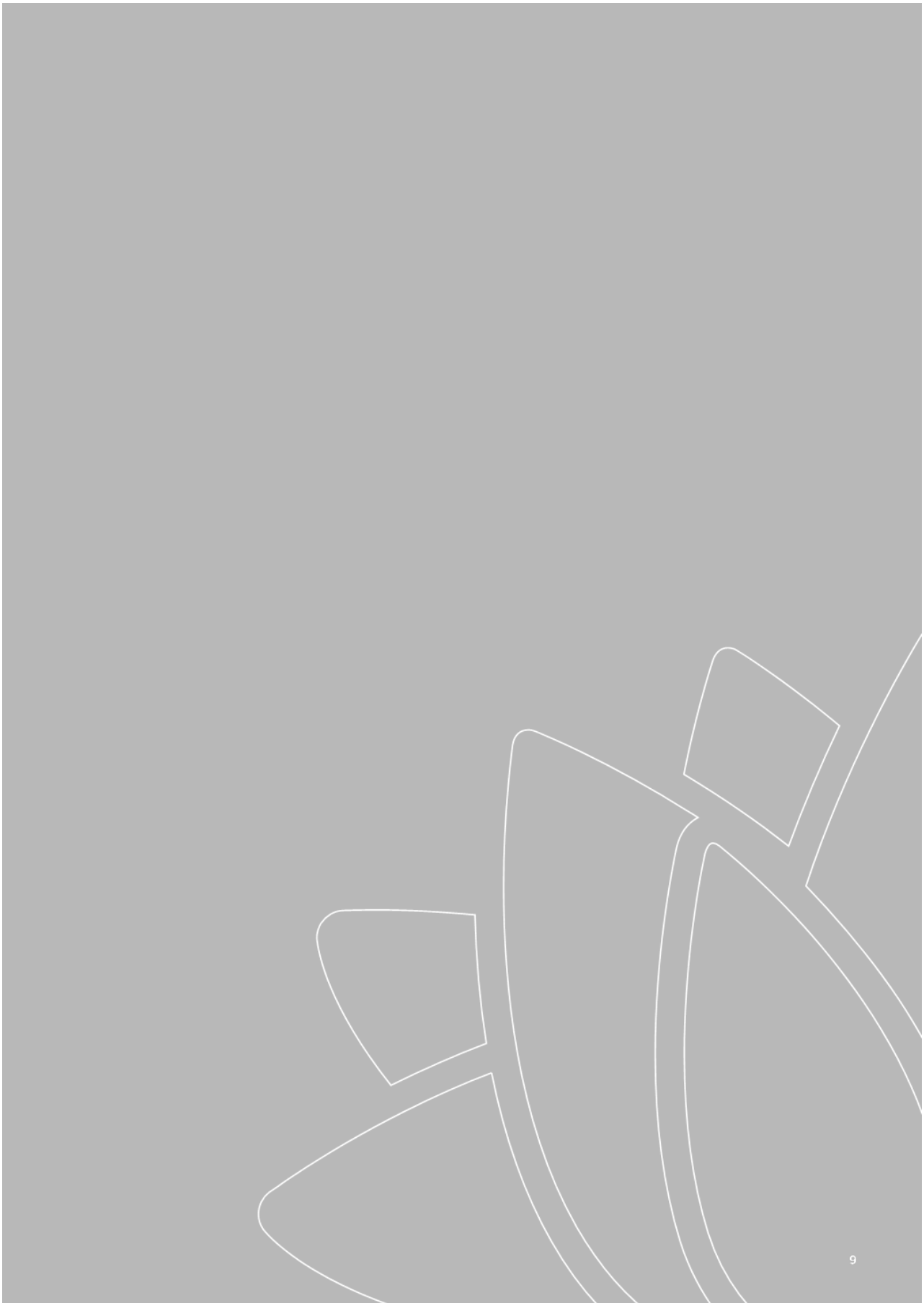
Part 2: Definitions

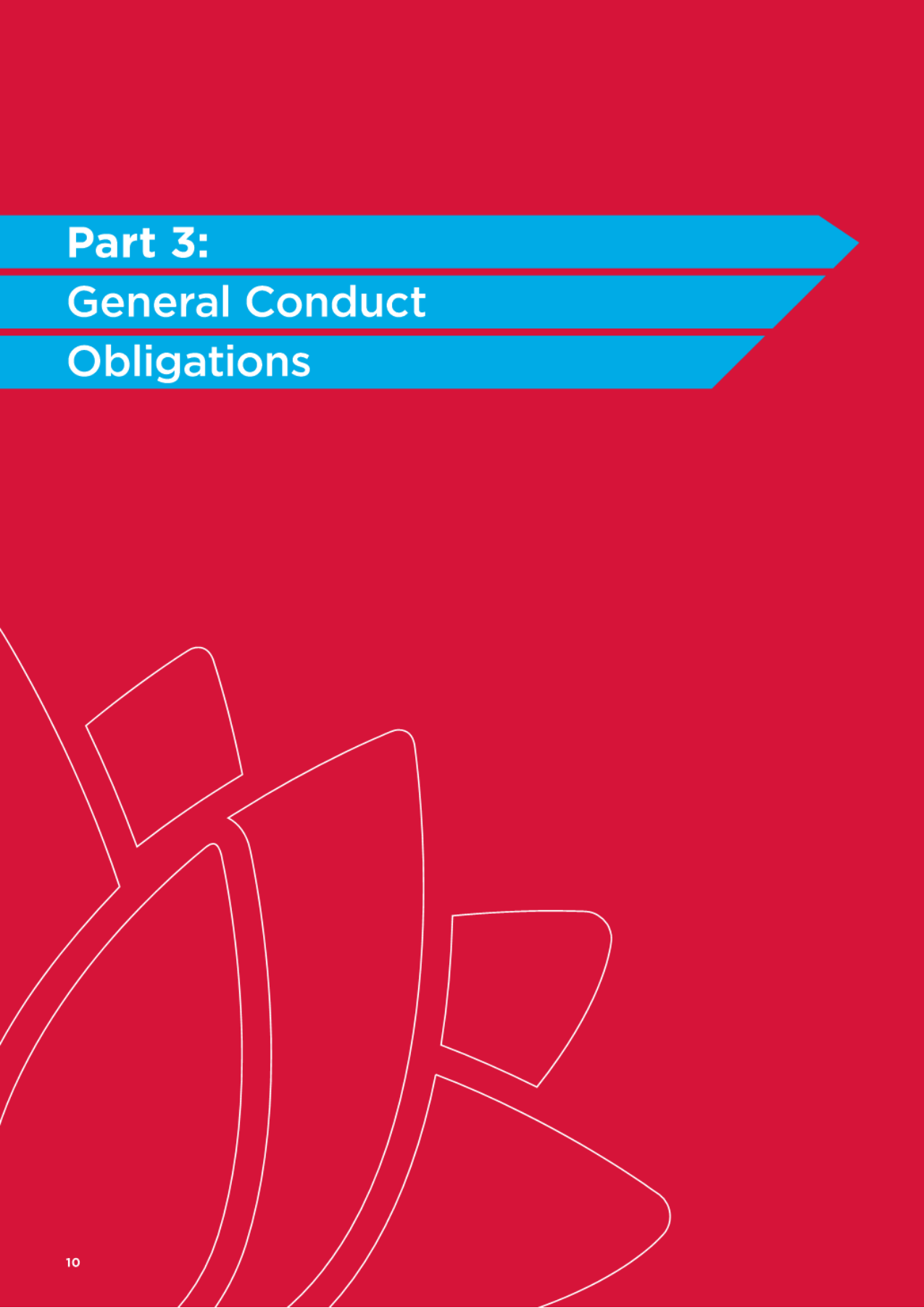
In this code the following terms have the following meanings:

administrator	an administrator of a council appointed under the LGA other than an administrator appointed under section 66
committee	see the definition of "council committee"
complaint	a code of conduct complaint made for the purposes of clauses 4.1 and 4.2 of the Procedures.
conduct	includes acts and omissions
council	includes county councils and joint organisations
council committee	a committee established by a council comprising of councillors, staff or other persons that the council has delegated functions to and the council's audit, risk and improvement committee
council committee member	a person other than a councillor or member of staff of a council who is a member of a council committee other than a wholly advisory committee, and a person other than a councillor who is a member of the council's audit, risk and improvement committee
council official	includes councillors, members of staff of a council, administrators, council committee members, delegates of council and, for the purposes of clause 4.16, council advisers
councillor	any person elected or appointed to civic office, including the mayor and includes members and chairpersons of county councils and voting representatives of the boards of joint organisations and chairpersons of joint organisations
delegate of council	a person (other than a councillor or member of staff of a council) or body, and the individual members of that body, to whom a function of the council is delegated
designated person	a person referred to in clause 4.8
election campaign	includes council, state and federal election campaigns
environmental planning instrument	has the same meaning as it has in the <i>Environmental Planning and Assessment Act 1979</i>
general manager	includes the executive officer of a joint organisation
joint organisation	a joint organisation established under section 4000 of the LGA
LGA	<i>Local Government Act 1993</i>
local planning panel	a local planning panel constituted under the <i>Environmental Planning and Assessment Act 1979</i>
mayor	includes the chairperson of a county council or a joint organisation

Model Code of Conduct for Local Councils in NSW

members of staff of a council	includes members of staff of county councils and joint organisations
the Office	Office of Local Government
personal information	information or an opinion (including information or an opinion forming part of a database and whether or not recorded in a material form) about an individual whose identity is apparent or can reasonably be ascertained from the information or opinion
the Procedures	the <i>Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW</i> prescribed under the Regulation
the Regulation	the <i>Local Government (General) Regulation 2005</i>
voting representative	a voting representative of the board of a joint organisation
wholly advisory committee	a council committee that the council has not delegated any functions to





Part 3:

General Conduct

Obligations

General conduct

- 3.1 You must not conduct yourself in a manner that:
- a) is likely to bring the council or other council officials into disrepute
 - b) is contrary to statutory requirements or the council's administrative requirements or policies
 - c) is improper or unethical
 - d) is an abuse of power
 - e) causes, comprises or involves intimidation or verbal abuse
 - f) involves the misuse of your position to obtain a private benefit
 - g) constitutes harassment or bullying behaviour under this code, or is unlawfully discriminatory.
- 3.2 You must act lawfully and honestly, and exercise a reasonable degree of care and diligence in carrying out your functions under the LGA or any other Act. (section 439).

Fairness and equity

- 3.3 You must consider issues consistently, promptly and fairly. You must deal with matters in accordance with established procedures, in a non-discriminatory manner.
- 3.4 You must take all relevant facts known to you, or that you should be reasonably aware of, into consideration and have regard to the particular merits of each case. You must not take irrelevant matters or circumstances into consideration when making decisions.
- 3.5 An act or omission in good faith, whether or not it involves error, will not constitute a breach of clauses 3.3 or 3.4.

Harassment and discrimination

- 3.6 You must not harass or unlawfully discriminate against others, or support others who harass or unlawfully discriminate against others, on the grounds of age, disability, race (including colour, national or ethnic origin or immigrant status), sex, pregnancy, marital or relationship status, family responsibilities or breastfeeding, sexual orientation, gender identity or intersex status or political, religious or other affiliation.
- 3.7 For the purposes of this code, "harassment" is any form of behaviour towards a person that:
- a) is not wanted by the person
 - b) offends, humiliates or intimidates the person, and
 - c) creates a hostile environment.

Bullying

- 3.8 You must not engage in bullying behaviour towards others.
- 3.9 For the purposes of this code, "bullying behaviour" is any behaviour in which:
- a) a person or a group of people repeatedly behaves unreasonably towards another person or a group of persons, and
 - b) the behaviour creates a risk to health and safety.
- 3.10 Bullying behaviour may involve, but is not limited to, any of the following types of behaviour:
- a) aggressive, threatening or intimidating conduct
 - b) belittling or humiliating comments

- c) spreading malicious rumours
 - d) teasing, practical jokes or 'initiation ceremonies'
 - e) exclusion from work-related events
 - f) unreasonable work expectations, including too much or too little work, or work below or beyond a worker's skill level
 - g) displaying offensive material
 - h) pressure to behave in an inappropriate manner.
- 3.11 Reasonable management action carried out in a reasonable manner does not constitute bullying behaviour for the purposes of this code. Examples of reasonable management action may include, but are not limited to:
- a) performance management processes
 - b) disciplinary action for misconduct
 - c) informing a worker about unsatisfactory work performance or inappropriate work behaviour
 - d) directing a worker to perform duties in keeping with their job
 - e) maintaining reasonable workplace goals and standards
 - f) legitimately exercising a regulatory function
 - g) legitimately implementing a council policy or administrative processes.
- a) take reasonable care for your own health and safety
 - b) take reasonable care that your acts or omissions do not adversely affect the health and safety of other persons
 - c) comply, so far as you are reasonably able, with any reasonable instruction that is given to ensure compliance with the WHS Act and any policies or procedures adopted by the council to ensure workplace health and safety
 - d) cooperate with any reasonable policy or procedure of the council relating to workplace health or safety that has been notified to council staff
 - e) report accidents, incidents, near misses, to the general manager or such other staff member nominated by the general manager, and take part in any incident investigations
 - f) so far as is reasonably practicable, consult, co-operate and coordinate with all others who have a duty under the WHS Act in relation to the same matter.

Land use planning, development assessment and other regulatory functions

- 3.13 You must ensure that land use planning, development assessment and other regulatory decisions are properly made, and that all parties are dealt with fairly. You must avoid any occasion for suspicion of improper conduct in the exercise of land use planning, development assessment and other regulatory functions.

Work health and safety

- 3.12 All council officials, including councillors, owe statutory duties under the *Work Health and Safety Act 2011* (WHS Act). You must comply with your duties under the WHS Act and your responsibilities under any policies or procedures adopted by the council to ensure workplace health and safety. Specifically, you must:

- 3.14 In exercising land use planning, development assessment and other regulatory functions, you must ensure that no action, statement or communication between yourself and others conveys any suggestion of willingness to improperly provide concessions or preferential or unduly unfavourable treatment.

Binding caucus votes

- 3.15 You must not participate in binding caucus votes in relation to matters to be considered at a council or committee meeting.
- 3.16 For the purposes of clause 3.15, a binding caucus vote is a process whereby a group of councillors are compelled by a threat of disciplinary or other adverse action to comply with a predetermined position on a matter before the council or committee, irrespective of the personal views of individual members of the group on the merits of the matter before the council or committee.
- 3.17 Clause 3.15 does not prohibit councillors from discussing a matter before the council or committee prior to considering the matter in question at a council or committee meeting, or from voluntarily holding a shared view with other councillors on the merits of a matter.
- 3.18 Clause 3.15 does not apply to a decision to elect the mayor or deputy mayor, or to nominate a person to be a member of a council committee or a representative of the council on an external body.

Obligations in relation to meetings

- 3.19 You must comply with rulings by the chair at council and committee meetings or other proceedings of the council unless a motion dissenting from the ruling is passed.
- 3.20 You must not engage in bullying behaviour (as defined under this Part) towards the chair, other council officials or any members of the public present during council or committee meetings or other proceedings of the council (such as, but not limited to, workshops and briefing sessions).
- 3.21 You must not engage in conduct that disrupts council or committee meetings or other proceedings of the council (such as, but not limited to, workshops and briefing sessions), or that would otherwise be inconsistent with the orderly conduct of meetings.
- 3.22 If you are a councillor, you must not engage in any acts of disorder or other conduct that is intended to prevent the proper or effective functioning of the council, or of a committee of the council. Without limiting this clause, you must not:
- a) leave a meeting of the council or a committee for the purposes of depriving the meeting of a quorum, or
 - b) submit a rescission motion with respect to a decision for the purposes of voting against it to prevent another councillor from submitting a rescission motion with respect to the same decision, or
 - c) deliberately seek to impede the consideration of business at a meeting.

Part 4:

Pecuniary Interests

What is a pecuniary interest?

- 4.1 A pecuniary interest is an interest that you have in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to you or a person referred to in clause 4.3.
- 4.2 You will not have a pecuniary interest in a matter if the interest is so remote or insignificant that it could not reasonably be regarded as likely to influence any decision you might make in relation to the matter, or if the interest is of a kind specified in clause 4.6.
- 4.3 For the purposes of this Part, you will have a pecuniary interest in a matter if the pecuniary interest is:
- (a) your interest, or
 - (b) the interest of your spouse or de facto partner, your relative, or your partner or employer, or
 - (c) a company or other body of which you, or your nominee, partner or employer, is a shareholder or member.
- 4.4 For the purposes of clause 4.3:
- (a) Your "relative" is any of the following:
 - i) your parent, grandparent, brother, sister, uncle, aunt, nephew, niece, lineal descendant or adopted child
 - ii) your spouse's or de facto partner's parent, grandparent, brother, sister, uncle, aunt, nephew, niece, lineal descendant or adopted child
 - iii) the spouse or de facto partner of a person referred to in paragraphs (i) and (ii).
 - (b) "de facto partner" has the same meaning as defined in section 21C of the *Interpretation Act 1987*.

- 4.5 You will not have a pecuniary interest in relation to a person referred to in subclauses 4.3(b) or (c):
- (a) if you are unaware of the relevant pecuniary interest of your spouse, de facto partner, relative, partner, employer or company or other body, or
 - (b) just because the person is a member of, or is employed by, a council or a statutory body, or is employed by the Crown, or
 - (c) just because the person is a member of, or a delegate of a council to, a company or other body that has a pecuniary interest in the matter, so long as the person has no beneficial interest in any shares of the company or body.

What interests do not have to be disclosed?

- 4.6 You do not have to disclose the following interests for the purposes of this Part:
- (a) your interest as an elector
 - (b) your interest as a ratepayer or person liable to pay a charge
 - (c) an interest you have in any matter relating to the terms on which the provision of a service or the supply of goods or commodities is offered to the public generally, or to a section of the public that includes persons who are not subject to this code
 - (d) an interest you have in any matter relating to the terms on which the provision of a service or the supply of goods or commodities is offered to your relative by the council in the same manner and subject to the same conditions as apply to persons who are not subject to this code

Model Code of Conduct for Local Councils in NSW

- (e) an interest you have as a member of a club or other organisation or association, unless the interest is as the holder of an office in the club or organisation (whether remunerated or not)
 - (f) if you are a council committee member, an interest you have as a person chosen to represent the community, or as a member of a non-profit organisation or other community or special interest group, if you have been appointed to represent the organisation or group on the council committee
 - (g) an interest you have relating to a contract, proposed contract or other matter, if the interest arises only because of a beneficial interest in shares in a company that does not exceed 10 per cent of the voting rights in the company
 - (h) an interest you have arising from the proposed making by the council of an agreement between the council and a corporation, association or partnership, being a corporation, association or partnership that has more than 25 members, if the interest arises because your relative is a shareholder (but not a director) of the corporation, or is a member (but not a member of the committee) of the association, or is a partner of the partnership
 - (i) an interest you have arising from the making by the council of a contract or agreement with your relative for, or in relation to, any of the following, but only if the proposed contract or agreement is similar in terms and conditions to such contracts and agreements as have been made, or as are proposed to be made, by the council in respect of similar matters with other residents of the area:
 - i) the performance by the council at the expense of your relative of any work or service in connection with roads or sanitation
 - ii) security for damage to footpaths or roads
 - iii) any other service to be rendered, or act to be done, by the council by or under any Act conferring functions on the council, or by or under any contract
 - (j) an interest relating to the payment of fees to councillors (including the mayor and deputy mayor)
 - (k) an interest relating to the payment of expenses and the provision of facilities to councillors (including the mayor and deputy mayor) in accordance with a policy under section 252 of the LGA,
 - (l) an interest relating to an election to the office of mayor arising from the fact that a fee for the following 12 months has been determined for the office of mayor
 - (m) an interest of a person arising from the passing for payment of a regular account for the wages or salary of an employee who is a relative of the person
 - (n) an interest arising from being covered by, or a proposal to be covered by, indemnity insurance as a councillor or a council committee member
 - (o) an interest arising from the appointment of a councillor to a body as a representative or delegate of the council, whether or not a fee or other recompense is payable to the representative or delegate.
- 4.7 For the purposes of clause 4.6, "relative" has the same meaning as in clause 4.4, but includes your spouse or de facto partner.

What disclosures must be made by a designated person?

4.8 Designated persons include:

- (a) the general manager
- (b) other senior staff of the council for the purposes of section 332 of the LGA
- (c) a person (other than a member of the senior staff of the council) who is a member of staff of the council or a delegate of the council and who holds a position identified by the council as the position of a designated person because it involves the exercise of functions (such as regulatory functions or contractual functions) that, in their exercise, could give rise to a conflict between the person's duty as a member of staff or delegate and the person's private interest
- (d) a person (other than a member of the senior staff of the council) who is a member of a committee of the council identified by the council as a committee whose members are designated persons because the functions of the committee involve the exercise of the council's functions (such as regulatory functions or contractual functions) that, in their exercise, could give rise to a conflict between the member's duty as a member of the committee and the member's private interest.

4.9 A designated person:

- (a) must prepare and submit written returns of interests in accordance with clauses 4.21, and
- (b) must disclose pecuniary interests in accordance with clause 4.10.

4.10 A designated person must disclose in writing to the general manager (or if the person is the general manager, to the council) the nature of any pecuniary interest the person has in any council matter with which the person is dealing as soon as practicable after becoming aware of the interest.

4.11 Clause 4.10 does not require a designated person who is a member of staff of the council to disclose a pecuniary interest if the interest relates only to the person's salary as a member of staff, or to their other conditions of employment.

4.12 The general manager must, on receiving a disclosure from a designated person, deal with the matter to which the disclosure relates or refer it to another person to deal with.

4.13 A disclosure by the general manager must, as soon as practicable after the disclosure is made, be laid on the table at a meeting of the council and the council must deal with the matter to which the disclosure relates or refer it to another person to deal with.

What disclosures must be made by council staff other than designated persons?

4.14 A member of staff of council, other than a designated person, must disclose in writing to their manager or the general manager the nature of any pecuniary interest they have in a matter they are dealing with as soon as practicable after becoming aware of the interest.

4.15 The staff member's manager or the general manager must, on receiving a disclosure under clause 4.14, deal with the matter to which the disclosure relates or refer it to another person to deal with.

What disclosures must be made by council advisers?

- 4.16 A person who, at the request or with the consent of the council or a council committee, gives advice on any matter at any meeting of the council or committee, must disclose the nature of any pecuniary interest the person has in the matter to the meeting at the time the advice is given. The person is not required to disclose the person's interest as an adviser.
- 4.17 A person does not breach clause 4.16 if the person did not know, and could not reasonably be expected to have known, that the matter under consideration at the meeting was a matter in which they had a pecuniary interest.

What disclosures must be made by a council committee member?

- 4.18 A council committee member must disclose pecuniary interests in accordance with clause 4.28 and comply with clause 4.29.
- 4.19 For the purposes of clause 4.18, a "council committee member" includes a member of staff of council who is a member of the committee.

What disclosures must be made by a councillor?

- 4.20 A councillor:
- (a) must prepare and submit written returns of interests in accordance with clause 4.21, and
 - (b) must disclose pecuniary interests in accordance with clause 4.28 and comply with clause 4.29 where it is applicable.

Disclosure of interests in written returns

- 4.21 A councillor or designated person must make and lodge with the general manager a return in the form set out in schedule 2 to this code, disclosing the councillor's or designated person's interests as specified in schedule 1 to this code within 3 months after:
- (a) becoming a councillor or designated person, and
 - (b) 30 June of each year, and
 - (c) the councillor or designated person becoming aware of an interest they are required to disclose under schedule 1 that has not been previously disclosed in a return lodged under paragraphs (a) or (b).
- 4.22 A person need not make and lodge a return under clause 4.21, paragraphs (a) and (b) if:
- (a) they made and lodged a return under that clause in the preceding 3 months, or
 - (b) they have ceased to be a councillor or designated person in the preceding 3 months.

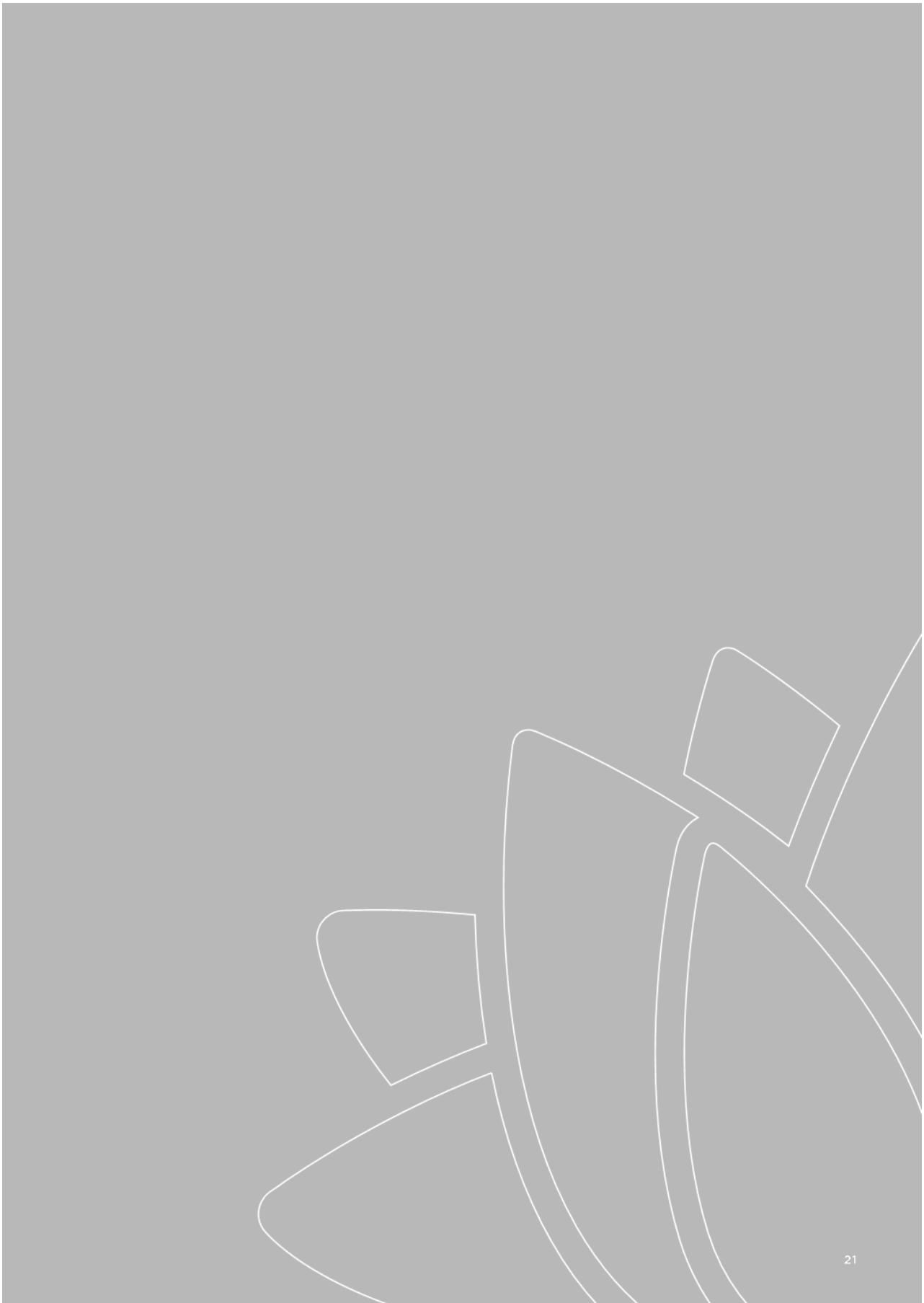
- 4.23 A person must not make and lodge a return that the person knows or ought reasonably to know is false or misleading in a material particular.
- 4.24 The general manager must keep a register of returns required to be made and lodged with the general manager.
- 4.25 Returns required to be lodged with the general manager under clause 4.21(a) and (b) must be tabled at the first meeting of the council after the last day the return is required to be lodged.
- 4.26 Returns required to be lodged with the general manager under clause 4.21(c) must be tabled at the next council meeting after the return is lodged.
- 4.27 Information contained in returns made and lodged under clause 4.21 is to be made publicly available in accordance with the requirements of the *Government Information (Public Access) Act 2009*, the *Government Information (Public Access) Regulation 2009* and any guidelines issued by the Information Commissioner.
- (b) at any time during which the council or committee is voting on any question in relation to the matter.
- 4.30 In the case of a meeting of a board of a joint organisation, a voting representative is taken to be present at the meeting for the purposes of clauses 4.28 and 4.29 where they participate in the meeting by telephone or other electronic means.
- 4.31 A disclosure made at a meeting of a council or council committee must be recorded in the minutes of the meeting.
- 4.32 A general notice may be given to the general manager in writing by a councillor or a council committee member to the effect that the councillor or council committee member, or the councillor's or council committee member's spouse, de facto partner or relative, is:
- (a) a member of, or in the employment of, a specified company or other body, or
- (b) a partner of, or in the employment of, a specified person.

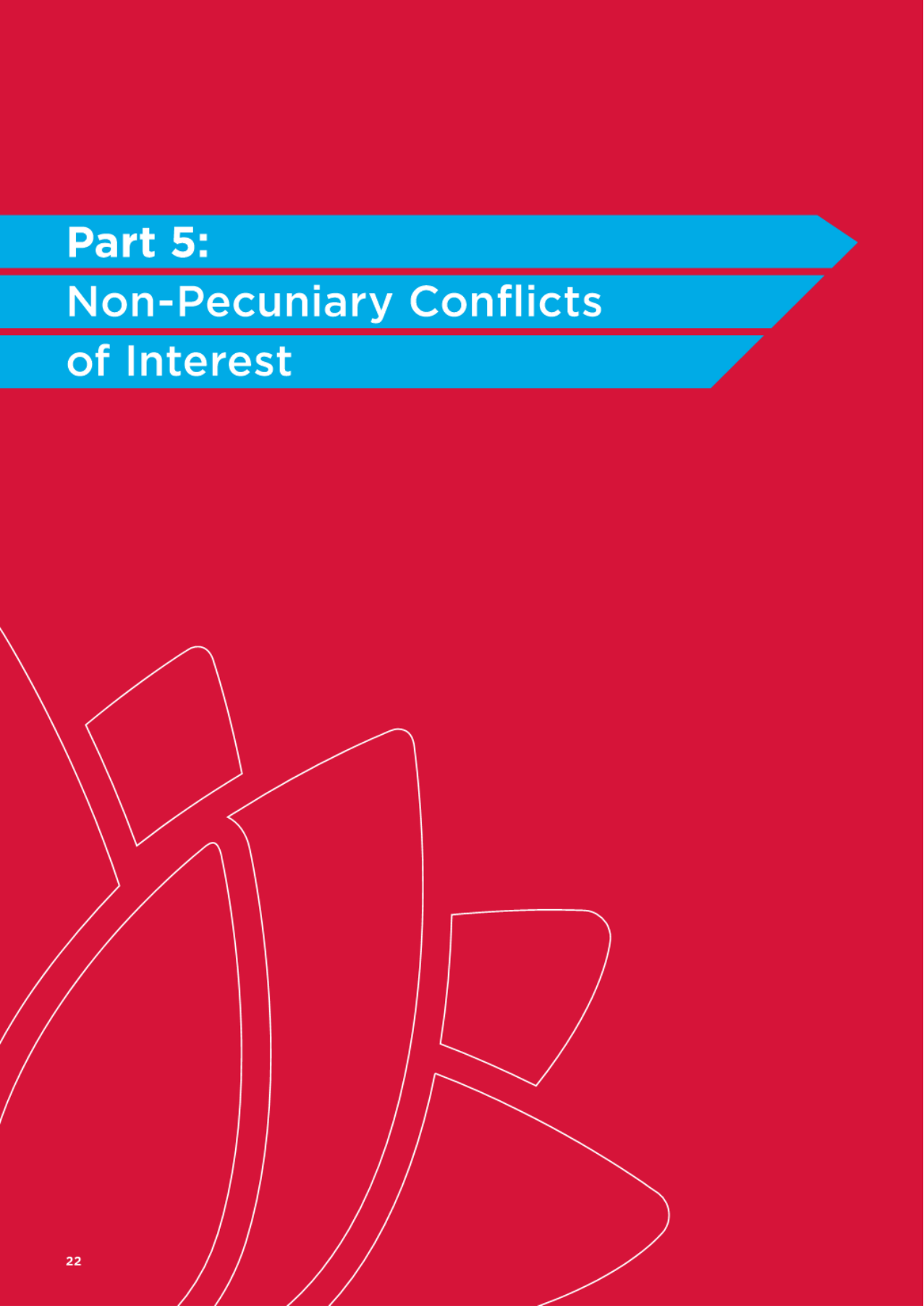
Disclosure of pecuniary interests at meetings

- 4.28 A councillor or a council committee member who has a pecuniary interest in any matter with which the council is concerned, and who is present at a meeting of the council or committee at which the matter is being considered, must disclose the nature of the interest to the meeting as soon as practicable.
- 4.29 The councillor or council committee member must not be present at, or in sight of, the meeting of the council or committee:
- (a) at any time during which the matter is being considered or discussed by the council or committee, or
- Such a notice is, unless and until the notice is withdrawn or until the end of the term of the council in which it is given (whichever is the sooner), sufficient disclosure of the councillor's or council committee member's interest in a matter relating to the specified company, body or person that may be the subject of consideration by the council or council committee after the date of the notice.
- 4.33 A councillor or a council committee member is not prevented from being present at and taking part in a meeting at which a matter is being considered, or from voting on the matter, merely because the councillor or council committee member has an interest in the matter of a kind referred to in clause 4.6.

Model Code of Conduct for Local Councils in NSW

- 4.34 A person does not breach clauses 4.28 or 4.29 if the person did not know, and could not reasonably be expected to have known, that the matter under consideration at the meeting was a matter in which they had a pecuniary interest.
- 4.35 Despite clause 4.29, a councillor who has a pecuniary interest in a matter may participate in a decision to delegate consideration of the matter in question to another body or person.
- 4.36 Clause 4.29 does not apply to a councillor who has a pecuniary interest in a matter that is being considered at a meeting if:
- (a) the matter is a proposal relating to:
 - (i) the making of a principal environmental planning instrument applying to the whole or a significant portion of the council's area, or
 - (ii) the amendment, alteration or repeal of an environmental planning instrument where the amendment, alteration or repeal applies to the whole or a significant portion of the council's area, and
 - (b) the pecuniary interest arises only because of an interest of the councillor in the councillor's principal place of residence or an interest of another person (whose interests are relevant under clause 4.3) in that person's principal place of residence, and
 - (c) the councillor made a special disclosure under clause 4.37 in relation to the interest before the commencement of the meeting.
- 4.37 A special disclosure of a pecuniary interest made for the purposes of clause 4.36(c) must:
- (a) be in the form set out in schedule 3 of this code and contain the information required by that form, and
 - (b) be laid on the table at a meeting of the council as soon as practicable after the disclosure is made, and the information contained in the special disclosure is to be recorded in the minutes of the meeting.
- 4.38 The Minister for Local Government may, conditionally or unconditionally, allow a councillor or a council committee member who has a pecuniary interest in a matter with which the council is concerned to be present at a meeting of the council or committee, to take part in the consideration or discussion of the matter and to vote on the matter if the Minister is of the opinion:
- (a) that the number of councillors prevented from voting would be so great a proportion of the whole as to impede the transaction of business, or
 - (b) that it is in the interests of the electors for the area to do so.
- 4.39 A councillor or a council committee member with a pecuniary interest in a matter who is permitted to be present at a meeting of the council or committee, to take part in the consideration or discussion of the matter and to vote on the matter under clause 4.38, must still disclose the interest they have in the matter in accordance with clause 4.28.





Part 5:

Non-Pecuniary Conflicts of Interest

What is a non-pecuniary conflict of interest?

- 5.1 Non-pecuniary interests are private or personal interests a council official has that do not amount to a pecuniary interest as defined in clause 4.1 of this code. These commonly arise out of family or personal relationships, or out of involvement in sporting, social, religious or other cultural groups and associations, and may include an interest of a financial nature.
- 5.2 A non-pecuniary conflict of interest exists where a reasonable and informed person would perceive that you could be influenced by a private interest when carrying out your official functions in relation to a matter.
- 5.3 The personal or political views of a council official do not constitute a private interest for the purposes of clause 5.2.
- 5.4 Non-pecuniary conflicts of interest must be identified and appropriately managed to uphold community confidence in the probity of council decision-making. The onus is on you to identify any non-pecuniary conflict of interest you may have in matters that you deal with, to disclose the interest fully and in writing, and to take appropriate action to manage the conflict in accordance with this code.
- 5.5 When considering whether or not you have a non-pecuniary conflict of interest in a matter you are dealing with, it is always important to think about how others would view your situation.

Managing non-pecuniary conflicts of interest

- 5.6 Where you have a non-pecuniary conflict of interest in a matter for the purposes of clause 5.2, you must disclose the relevant private interest you have in relation to the matter fully and in writing as soon as practicable after becoming aware of the non-pecuniary conflict of interest and on each occasion on which the non-pecuniary conflict of interest arises in relation to the matter. In the case of members of council staff other than the general manager, such a disclosure is to be made to the staff member's manager. In the case of the general manager, such a disclosure is to be made to the mayor.
- 5.7 If a disclosure is made at a council or committee meeting, both the disclosure and the nature of the interest must be recorded in the minutes on each occasion on which the non-pecuniary conflict of interest arises. This disclosure constitutes disclosure in writing for the purposes of clause 5.6.
- 5.8 How you manage a non-pecuniary conflict of interest will depend on whether or not it is significant.
- 5.9 As a general rule, a non-pecuniary conflict of interest will be significant where it does not involve a pecuniary interest for the purposes of clause 4.1, but it involves:
 - a) a relationship between a council official and another person who is affected by a decision or a matter under consideration that is particularly close, such as a current or former spouse or de facto partner, a relative for the purposes of clause 4.4 or another person from the council official's extended family that the council official has a close personal relationship with, or another person living in the same household

- b) other relationships with persons who are affected by a decision or a matter under consideration that are particularly close, such as friendships and business relationships. Closeness is defined by the nature of the friendship or business relationship, the frequency of contact and the duration of the friendship or relationship.
 - c) an affiliation between the council official and an organisation (such as a sporting body, club, religious, cultural or charitable organisation, corporation or association) that is affected by a decision or a matter under consideration that is particularly strong. The strength of a council official's affiliation with an organisation is to be determined by the extent to which they actively participate in the management, administration or other activities of the organisation.
 - d) membership, as the council's representative, of the board or management committee of an organisation that is affected by a decision or a matter under consideration, in circumstances where the interests of the council and the organisation are potentially in conflict in relation to the particular matter
 - e) a financial interest (other than an interest of a type referred to in clause 4.6) that is not a pecuniary interest for the purposes of clause 4.1
 - f) the conferral or loss of a personal benefit other than one conferred or lost as a member of the community or a broader class of people affected by a decision.
- 5.10 Significant non-pecuniary conflicts of interest must be managed in one of two ways:
- a) by not participating in consideration of, or decision making in relation to, the matter in which you have the significant non-pecuniary conflict of interest and the matter being allocated to another person for consideration or determination, or
 - b) if the significant non-pecuniary conflict of interest arises in relation to a matter under consideration at a council or committee meeting, by managing the conflict of interest as if you had a pecuniary interest in the matter by complying with clauses 4.28 and 4.29.
- 5.11 If you determine that you have a non-pecuniary conflict of interest in a matter that is not significant and does not require further action, when disclosing the interest you must also explain in writing why you consider that the non-pecuniary conflict of interest is not significant and does not require further action in the circumstances.
- 5.12 If you are a member of staff of council other than the general manager, the decision on which option should be taken to manage a non-pecuniary conflict of interest must be made in consultation with and at the direction of your manager. In the case of the general manager, the decision on which option should be taken to manage a non-pecuniary conflict of interest must be made in consultation with and at the direction of the mayor.
- 5.13 Despite clause 5.10(b), a councillor who has a significant non-pecuniary conflict of interest in a matter, may participate in a decision to delegate consideration of the matter in question to another body or person.

5.14 Council committee members are not required to declare and manage a non-pecuniary conflict of interest in accordance with the requirements of this Part where it arises from an interest they have as a person chosen to represent the community, or as a member of a non-profit organisation or other community or special interest group, if they have been appointed to represent the organisation or group on the council committee.

Political donations

5.15 Councillors should be aware that matters before council or committee meetings involving their political donors may also give rise to a non-pecuniary conflict of interest.

5.16 Where you are a councillor and have received or knowingly benefitted from a reportable political donation:

- a) made by a major political donor in the previous four years, and
- b) the major political donor has a matter before council,

you must declare a non-pecuniary conflict of interest in the matter, disclose the nature of the interest, and manage the conflict of interest as if you had a pecuniary interest in the matter by complying with clauses 4.28 and 4.29. A disclosure made under this clause must be recorded in the minutes of the meeting.

5.17 For the purposes of this Part:

- a) a "reportable political donation" has the same meaning as it has in section 6 of the *Electoral Funding Act 2018*
- b) "major political donor" has the same meaning as it has in the *Electoral Funding Act 2018*.

5.18 Councillors should note that political donations that are not a "reportable political donation", or political donations to a registered political party or group by which a councillor is endorsed, may still give rise to a non-pecuniary conflict of interest. Councillors should determine whether or not such conflicts are significant for the purposes of clause 5.9 and take the appropriate action to manage them.

5.19 Despite clause 5.16, a councillor who has received or knowingly benefitted from a reportable political donation of the kind referred to in that clause, may participate in a decision to delegate consideration of the matter in question to another body or person.

Loss of quorum as a result of compliance with this Part

5.20 A councillor who would otherwise be precluded from participating in the consideration of a matter under this Part because they have a non-pecuniary conflict of interest in the matter is permitted to participate in consideration of the matter if:

- a) the matter is a proposal relating to:
 - i) the making of a principal environmental planning instrument applying to the whole or a significant portion of the council's area, or
 - ii) the amendment, alteration or repeal of an environmental planning instrument where the amendment, alteration or repeal applies to the whole or a significant portion of the council's area, and

- b) the non-pecuniary conflict of interest arises only because of an interest that a person has in that person's principal place of residence, and
 - c) the councillor discloses the interest they have in the matter that would otherwise have precluded their participation in consideration of the matter under this Part in accordance with clause 5.6.
- 5.21 The Minister for Local Government may, conditionally or unconditionally, allow a councillor or a council committee member who is precluded under this Part from participating in the consideration of a matter to be present at a meeting of the council or committee, to take part in the consideration or discussion of the matter and to vote on the matter if the Minister is of the opinion:
- a) that the number of councillors prevented from voting would be so great a proportion of the whole as to impede the transaction of business, or
 - b) that it is in the interests of the electors for the area to do so.
- 5.22 Where the Minister exempts a councillor or committee member from complying with a requirement under this Part under clause 5.21, the councillor or committee member must still disclose any interests they have in the matter the exemption applies to, in accordance with clause 5.6.

Other business or employment

- 5.23 The general manager must not engage, for remuneration, in private employment, contract work or other business outside the service of the council without the approval of the council.
- 5.24 A member of staff must not engage, for remuneration, in private employment, contract work or other business outside the service of the council that relates to the business of the council or that might conflict with the staff member's council duties unless they have notified the general manager in writing of the employment, work or business and the general manager has given their written approval for the staff member to engage in the employment, work or business.
- 5.25 The general manager may at any time prohibit a member of staff from engaging, for remuneration, in private employment, contract work or other business outside the service of the council that relates to the business of the council, or that might conflict with the staff member's council duties.
- 5.26 A member of staff must not engage, for remuneration, in private employment, contract work or other business outside the service of the council if prohibited from doing so.
- 5.27 Members of staff must ensure that any outside employment, work or business they engage in will not:
- a) conflict with their official duties
 - b) involve using confidential information or council resources obtained through their work with the council including where private use is permitted

- c) require them to work while on council duty
- d) discredit or disadvantage the council
- e) pose, due to fatigue, a risk to their health or safety, or to the health and safety of their co-workers.

Personal dealings with council

- 5.28 You may have reason to deal with your council in your personal capacity (for example, as a ratepayer, recipient of a council service or applicant for a development consent granted by council). You must not expect or request preferential treatment in relation to any matter in which you have a private interest because of your position. You must avoid any action that could lead members of the public to believe that you are seeking preferential treatment.
- 5.29 You must undertake any personal dealings you have with the council in a manner that is consistent with the way other members of the community deal with the council. You must also ensure that you disclose and appropriately manage any conflict of interest you may have in any matter in accordance with the requirements of this code.

Part 6:

Personal Benefit

- 6.1 For the purposes of this Part, a gift or a benefit is something offered to or received by a council official or someone personally associated with them for their personal use and enjoyment.
- 6.2 A reference to a gift or benefit in this Part does not include:
- a) items with a value of \$10 or less
 - b) a political donation for the purposes of the *Electoral Funding Act 2018*
 - c) a gift provided to the council as part of a cultural exchange or sister-city relationship that is not converted for the personal use or enjoyment of any individual council official or someone personally associated with them
 - d) a benefit or facility provided by the council to an employee or councillor
 - e) attendance by a council official at a work-related event or function for the purposes of performing their official duties, or
 - f) free or subsidised meals, beverages or refreshments provided to council officials in conjunction with the performance of their official duties such as, but not limited to:
 - i) the discussion of official business
 - ii) work-related events such as council-sponsored or community events, training, education sessions or workshops
 - iii) conferences
 - iv) council functions or events
 - v) social functions organised by groups, such as council committees and community organisations.

Gifts and benefits

- 6.3 You must avoid situations that would give rise to the appearance that a person or body is attempting to secure favourable treatment from you or from the council, through the provision of gifts, benefits or hospitality of any kind to you or someone personally associated with you.
- 6.4 A gift or benefit is deemed to have been accepted by you for the purposes of this Part, where it is received by you or someone personally associated with you.

How are offers of gifts and benefits to be dealt with?

- 6.5 You must not:
- a) seek or accept a bribe or other improper inducement
 - b) seek gifts or benefits of any kind
 - c) accept any gift or benefit that may create a sense of obligation on your part, or may be perceived to be intended or likely to influence you in carrying out your public duty
 - d) subject to clause 6.7, accept any gift or benefit of more than token value as defined by clause 6.9
 - e) accept an offer of cash or a cash-like gift as defined by clause 6.13, regardless of the amount
 - f) participate in competitions for prizes where eligibility is based on the council being in or entering into a customer-supplier relationship with the competition organiser
 - g) personally benefit from reward points programs when purchasing on behalf of the council.

6.6 Where you receive a gift or benefit of any value other than one referred to in clause 6.2, you must disclose this promptly to your manager or the general manager in writing. The recipient, manager, or general manager must ensure that, at a minimum, the following details are recorded in the council's gift register:

- a) the nature of the gift or benefit
- b) the estimated monetary value of the gift or benefit
- c) the name of the person who provided the gift or benefit, and
- d) the date on which the gift or benefit was received.

6.7 Where you receive a gift or benefit of more than token value that cannot reasonably be refused or returned, the gift or benefit must be surrendered to the council, unless the nature of the gift or benefit makes this impractical.

Gifts and benefits of token value

6.8 You may accept gifts and benefits of token value. Gifts and benefits of token value are one or more gifts or benefits received from a person or organisation over a 12-month period that, when aggregated, do not exceed a value of \$100. They include, but are not limited to:

- a) invitations to and attendance at local social, cultural or sporting events with a ticket value that does not exceed \$100
- b) gifts of alcohol that do not exceed a value of \$100
- c) ties, scarves, coasters, tie pins, diaries, chocolates or flowers or the like
- d) prizes or awards that do not exceed \$100 in value.

Gifts and benefits of more than token value

6.9 Gifts or benefits that exceed \$100 in value are gifts or benefits of more than token value for the purposes of clause 6.5(d) and, subject to clause 6.7, must not be accepted.

6.10 Gifts and benefits of more than token value include, but are not limited to, tickets to major sporting events (such as international matches or matches in national sporting codes) with a ticket value that exceeds \$100, corporate hospitality at a corporate facility at major sporting events, free or discounted products or services for personal use provided on terms that are not available to the general public or a broad class of persons, the use of holiday homes, artworks, free or discounted travel.

6.11 Where you have accepted a gift or benefit of token value from a person or organisation, you must not accept a further gift or benefit from the same person or organisation or another person associated with that person or organisation within a single 12-month period where the value of the gift, added to the value of earlier gifts received from the same person or organisation, or a person associated with that person or organisation, during the same 12-month period would exceed \$100 in value.

6.12 For the purposes of this Part, the value of a gift or benefit is the monetary value of the gift or benefit inclusive of GST.

“Cash-like gifts”

- 6.13 For the purposes of clause 6.5(e), “cash-like gifts” include, but are not limited to, gift vouchers, credit cards, debit cards with credit on them, prepayments such as phone or internet credit, lottery tickets, memberships or entitlements to discounts that are not available to the general public or a broad class of persons.

Improper and undue influence

- 6.14 You must not use your position to influence other council officials in the performance of their official functions to obtain a private benefit for yourself or for somebody else. A councillor will not be in breach of this clause where they seek to influence other council officials through the proper exercise of their role as prescribed under the LGA.
- 6.15 You must not take advantage (or seek to take advantage) of your status or position with council, or of functions you perform for council, in order to obtain a private benefit for yourself or for any other person or body.

Part 7:

Relationships Between Council Officials

Obligations of councillors and administrators

- 7.1 Each council is a body politic. The councillors or administrator/s are the governing body of the council. Under section 223 of the LGA, the role of the governing body of the council includes the development and endorsement of the strategic plans, programs, strategies and policies of the council, including those relating to workforce policy, and to keep the performance of the council under review.
- 7.2 Councillors or administrators must not:
- a) direct council staff other than by giving appropriate direction to the general manager by way of council or committee resolution, or by the mayor or administrator exercising their functions under section 226 of the LGA
 - b) in any public or private forum, direct or influence, or attempt to direct or influence, any other member of the staff of the council or a delegate of the council in the exercise of the functions of the staff member or delegate
 - c) contact a member of the staff of the council on council-related business unless in accordance with the policy and procedures governing the interaction of councillors and council staff that have been authorised by the council and the general manager
 - d) contact or issue instructions to any of the council's contractors, including the council's legal advisers, unless by the mayor or administrator exercising their functions under section 226 of the LGA.

- 7.3 Despite clause 7.2, councillors may contact the council's external auditor or the chair of the council's audit risk and improvement committee to provide information reasonably necessary for the external auditor or the audit, risk and improvement committee to effectively perform their functions.

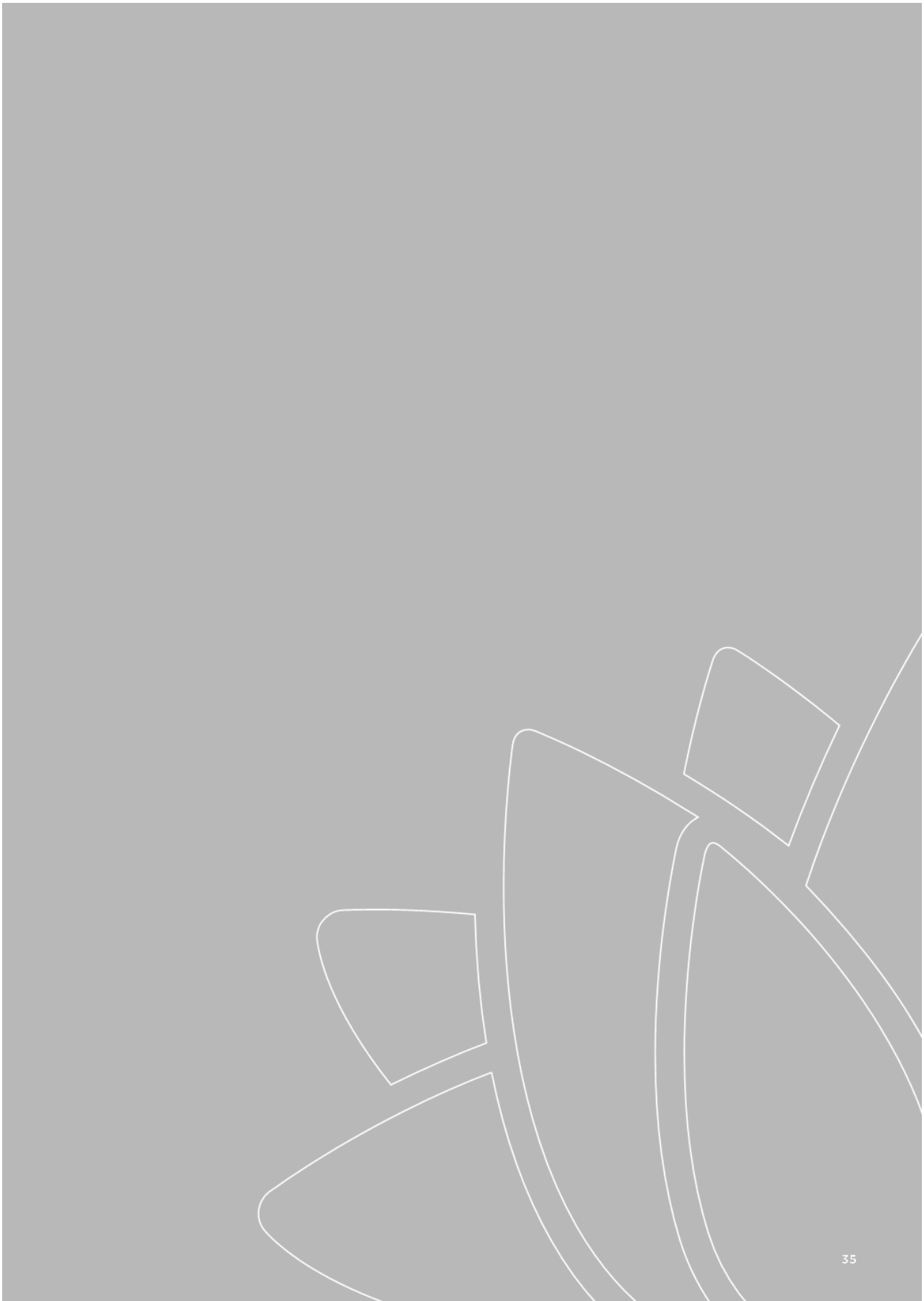
Obligations of staff

- 7.4 Under section 335 of the LGA, the role of the general manager includes conducting the day-to-day management of the council in accordance with the strategic plans, programs, strategies and policies of the council, implementing without undue delay, lawful decisions of the council and ensuring that the mayor and other councillors are given timely information and advice and the administrative and professional support necessary to effectively discharge their official functions.
- 7.5 Members of staff of council must:
- a) give their attention to the business of the council while on duty
 - b) ensure that their work is carried out ethically, efficiently, economically and effectively
 - c) carry out reasonable and lawful directions given by any person having authority to give such directions
 - d) give effect to the lawful decisions, policies and procedures of the council, whether or not the staff member agrees with or approves of them
 - e) ensure that any participation in political activities outside the service of the council does not interfere with the performance of their official duties.

Inappropriate interactions

7.6 You must not engage in any of the following inappropriate interactions:

- a) councillors and administrators approaching staff and staff organisations to discuss individual or operational staff matters (other than matters relating to broader workforce policy), grievances, workplace investigations and disciplinary matters
- b) council staff approaching councillors and administrators to discuss individual or operational staff matters (other than matters relating to broader workforce policy), grievances, workplace investigations and disciplinary matters
- c) subject to clause 8.6, council staff refusing to give information that is available to other councillors to a particular councillor
- d) councillors and administrators who have lodged an application with the council, discussing the matter with council staff in staff-only areas of the council
- e) councillors and administrators approaching members of local planning panels or discussing any application that is either before the panel or that will come before the panel at some future time, except during a panel meeting where the application forms part of the agenda and the councillor or administrator has a right to be heard by the panel at the meeting
- f) councillors and administrators being overbearing or threatening to council staff
- g) council staff being overbearing or threatening to councillors or administrators
- h) councillors and administrators making personal attacks on council staff or engaging in conduct towards staff that would be contrary to the general conduct provisions in Part 3 of this code in public forums including social media
- i) councillors and administrators directing or pressuring council staff in the performance of their work, or recommendations they should make
- j) council staff providing ad hoc advice to councillors and administrators without recording or documenting the interaction as they would if the advice was provided to a member of the community
- k) council staff meeting with applicants or objectors alone AND outside office hours to discuss planning applications or proposals
- l) councillors attending on-site inspection meetings with lawyers and/or consultants engaged by the council associated with current or proposed legal proceedings unless permitted to do so by the council's general manager or, in the case of the mayor or administrator, unless they are exercising their functions under section 226 of the LGA.



35

Part 8:

Access to Information and Council Resources

Councillor and administrator access to information

- 8.1 The general manager is responsible for ensuring that councillors and administrators can access information necessary for the performance of their official functions. The general manager and public officer are also responsible for ensuring that members of the public can access publicly available council information under the *Government Information (Public Access) Act 2009* (the GIPA Act).
- 8.2 The general manager must provide councillors and administrators with the information necessary to effectively discharge their official functions.
- 8.3 Members of staff of council must provide full and timely information to councillors and administrators sufficient to enable them to exercise their official functions and in accordance with council procedures.
- 8.4 Members of staff of council who provide any information to a particular councillor in the performance of their official functions must also make it available to any other councillor who requests it and in accordance with council procedures.
- 8.5 Councillors and administrators who have a private interest only in council information have the same rights of access as any member of the public.

- 8.6 Despite clause 8.4, councillors and administrators who are precluded from participating in the consideration of a matter under this code because they have a conflict of interest in the matter, are not entitled to request access to council information in relation to the matter unless the information is otherwise available to members of the public, or the council has determined to make the information available under the GIPA Act.

Councillors and administrators to properly examine and consider information

- 8.7 Councillors and administrators must ensure that they comply with their duty under section 439 of the LGA to act honestly and exercise a reasonable degree of care and diligence by properly examining and considering all the information provided to them relating to matters that they are required to make a decision on.

Refusal of access to information

- 8.8 Where the general manager or public officer determine to refuse access to information requested by a councillor or administrator, they must act reasonably. In reaching this decision they must take into account whether or not the information requested is necessary for the councillor or administrator to perform their official functions (see clause 8.2) and whether they have disclosed a conflict of interest in the matter the information relates to that would preclude their participation in consideration of the matter (see clause 8.6). The general manager or public officer must state the reasons for the decision if access is refused.

Use of certain council information

- 8.9 In regard to information obtained in your capacity as a council official, you must:
- a) subject to clause 8.14, only access council information needed for council business
 - b) not use that council information for private purposes
 - c) not seek or obtain, either directly or indirectly, any financial benefit or other improper advantage for yourself, or any other person or body, from any information to which you have access by virtue of your office or position with council
 - d) only release council information in accordance with established council policies and procedures and in compliance with relevant legislation.

Use and security of confidential information

- 8.10 You must maintain the integrity and security of confidential information in your possession, or for which you are responsible.
- 8.11 In addition to your general obligations relating to the use of council information, you must:
- a) only access confidential information that you have been authorised to access and only do so for the purposes of exercising your official functions
 - b) protect confidential information
 - c) only release confidential information if you have authority to do so
 - d) only use confidential information for the purpose for which it is intended to be used

- e) not use confidential information gained through your official position for the purpose of securing a private benefit for yourself or for any other person
- f) not use confidential information with the intention to cause harm or detriment to the council or any other person or body
- g) not disclose any confidential information discussed during a confidential session of a council or committee meeting or any other confidential forum (such as, but not limited to, workshops or briefing sessions).

Personal information

- 8.12 When dealing with personal information you must comply with:
- a) the *Privacy and Personal Information Protection Act 1998*
 - b) the *Health Records and Information Privacy Act 2002*
 - c) the Information Protection Principles and Health Privacy Principles
 - d) the council's privacy management plan
 - e) the Privacy Code of Practice for Local Government

Use of council resources

- 8.13 You must use council resources ethically, effectively, efficiently and carefully in exercising your official functions, and must not use them for private purposes, except when supplied as part of a contract of employment (but not for private business purposes), unless this use is lawfully authorised and proper payment is made where appropriate.

8.14 Union delegates and consultative committee members may have reasonable access to council resources and information for the purposes of carrying out their industrial responsibilities, including but not limited to:

- a) the representation of members with respect to disciplinary matters
- b) the representation of employees with respect to grievances and disputes
- c) functions associated with the role of the local consultative committee.

8.15 You must be scrupulous in your use of council property, including intellectual property, official services, facilities, technology and electronic devices and must not permit their misuse by any other person or body.

8.16 You must avoid any action or situation that could create the appearance that council property, official services or public facilities are being improperly used for your benefit or the benefit of any other person or body.

8.17 You must not use council resources (including council staff), property or facilities for the purpose of assisting your election campaign or the election campaigns of others unless the resources, property or facilities are otherwise available for use or hire by the public and any publicly advertised fee is paid for use of the resources, property or facility.

8.18 You must not use the council letterhead, council crests, council email or social media or other information that could give the appearance it is official council material:

- a) for the purpose of assisting your election campaign or the election campaign of others, or
- b) for other non-official purposes.

8.19 You must not convert any property of the council to your own use unless properly authorised.

Internet access

8.20 You must not use council's computer resources or mobile or other devices to search for, access, download or communicate any material of an offensive, obscene, pornographic, threatening, abusive or defamatory nature, or that could otherwise lead to criminal penalty or civil liability and/or damage the council's reputation.

Council record keeping

8.21 You must comply with the requirements of the *State Records Act 1998* and the council's records management policy.

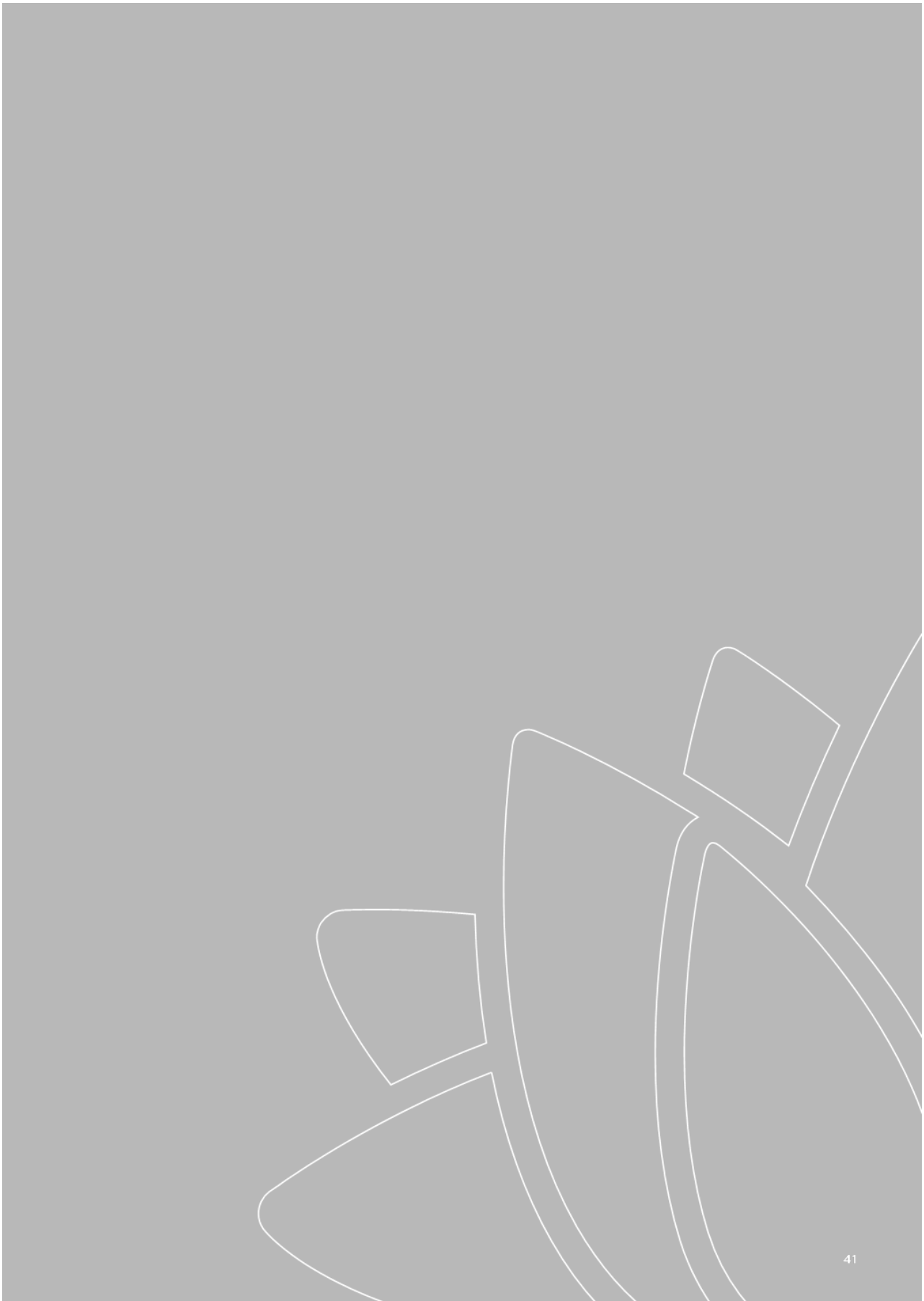
8.22 All information created, sent and received in your official capacity is a council record and must be managed in accordance with the requirements of the *State Records Act 1998* and the council's approved records management policies and practices.

8.23 All information stored in either soft or hard copy on council supplied resources (including technology devices and email accounts) is deemed to be related to the business of the council and will be treated as council records, regardless of whether the original intention was to create the information for personal purposes.

8.24 You must not destroy, alter, or dispose of council information or records, unless authorised to do so. If you need to alter or dispose of council information or records, you must do so in consultation with the council's records manager and comply with the requirements of the *State Records Act 1998*.

Councillor access to council buildings

- 8.25 Councillors and administrators are entitled to have access to the council chamber, committee room, mayor's office (subject to availability), councillors' rooms, and public areas of council's buildings during normal business hours and for meetings. Councillors and administrators needing access to these facilities at other times must obtain authority from the general manager.
- 8.26 Councillors and administrators must not enter staff-only areas of council buildings without the approval of the general manager (or their delegate) or as provided for in the procedures governing the interaction of councillors and council staff.
- 8.27 Councillors and administrators must ensure that when they are within a staff only area they refrain from conduct that could be perceived to improperly influence council staff decisions.



Part 9:

Maintaining the Integrity of this Code

Complaints made for an improper purpose

- 9.1 You must not make or threaten to make a complaint or cause a complaint to be made alleging a breach of this code for an improper purpose.
- 9.2 For the purposes of clause 9.1, a complaint is made for an improper purpose where it is trivial, frivolous, vexatious or not made in good faith, or where it otherwise lacks merit and has been made substantially for one or more of the following purposes:
- a) to bully, intimidate or harass another council official
 - b) to damage another council official's reputation
 - c) to obtain a political advantage
 - d) to influence a council official in the exercise of their official functions or to prevent or disrupt the exercise of those functions
 - e) to influence the council in the exercise of its functions or to prevent or disrupt the exercise of those functions
 - f) to avoid disciplinary action under the Procedures
 - g) to take reprisal action against a person for making a complaint alleging a breach of this code
 - h) to take reprisal action against a person for exercising a function prescribed under the Procedures
 - i) to prevent or disrupt the effective administration of this code under the Procedures.

Detrimental action

- 9.3 You must not take detrimental action or cause detrimental action to be taken against a person substantially in reprisal for a complaint they have made alleging a breach of this code.
- 9.4 You must not take detrimental action or cause detrimental action to be taken against a person substantially in reprisal for any function they have exercised under the Procedures.
- 9.5 For the purposes of clauses 9.3 and 9.4, a detrimental action is an action causing, comprising or involving any of the following:
- a) injury, damage or loss
 - b) intimidation or harassment
 - c) discrimination, disadvantage or adverse treatment in relation to employment
 - d) dismissal from, or prejudice in, employment
 - e) disciplinary proceedings.

Compliance with requirements under the Procedures

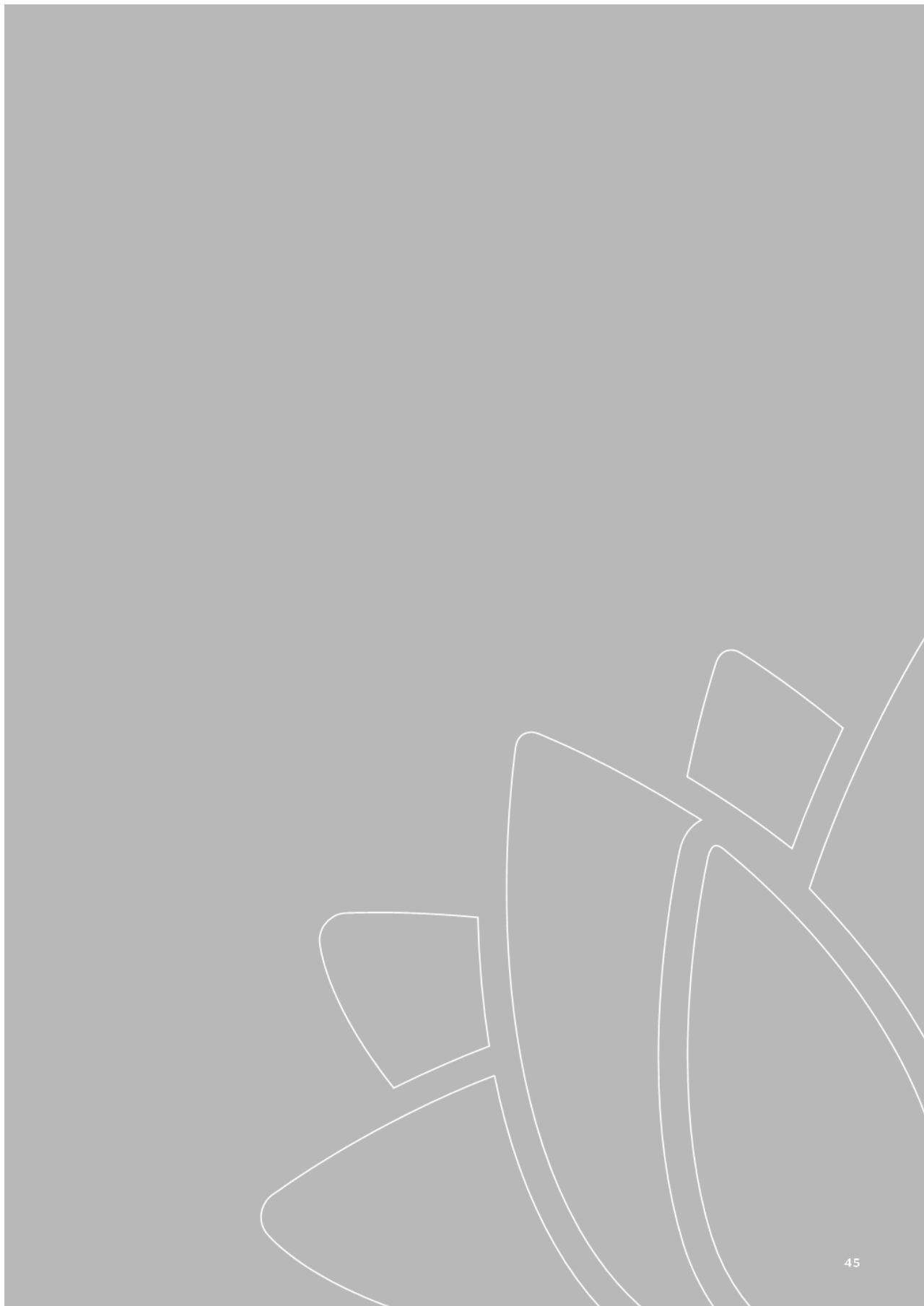
- 9.6 You must not engage in conduct that is calculated to impede or disrupt the consideration of a matter under the Procedures.
- 9.7 You must comply with a reasonable and lawful request made by a person exercising a function under the Procedures. A failure to make a written or oral submission invited under the Procedures will not constitute a breach of this clause.
- 9.8 You must comply with a practice ruling made by the Office under the Procedures.

Disclosure of information about the consideration of a matter under the Procedures

- 9.9 All allegations of breaches of this code must be dealt with under and in accordance with the Procedures.
- 9.10 You must not allege breaches of this code other than by way of a complaint made or initiated under the Procedures.
- 9.11 You must not make allegations about, or disclose information about, suspected breaches of this code at council, committee or other meetings, whether open to the public or not, or in any other forum, whether public or not.
- 9.12 You must not disclose information about a complaint you have made alleging a breach of this code or any other matter being considered under the Procedures except for the purposes of seeking legal advice, unless the disclosure is otherwise permitted under the Procedures.
- 9.13 Nothing under this Part prevents a person from making a public interest disclosure to an appropriate public authority or investigative authority under the *Public Interest Disclosures Act 1994*.

Complaints alleging a breach of this Part

- 9.14 Complaints alleging a breach of this Part by a councillor, the general manager or an administrator are to be managed by the Office. This clause does not prevent the Office from referring an alleged breach of this Part back to the council for consideration in accordance with the Procedures.
- 9.15 Complaints alleging a breach of this Part by other council officials are to be managed by the general manager in accordance with the Procedures.



Schedule 1:

Disclosures of Interest and Other Matters in Written Returns Submitted Under Clause 4.21

Part 1: Preliminary

Definitions

1. For the purposes of the schedules to this code, the following definitions apply:

address means:

- a) in relation to a person other than a corporation, the last residential or business address of the person known to the councillor or designated person disclosing the address, or
- b) in relation to a corporation, the address of the registered office of the corporation in New South Wales or, if there is no such office, the address of the principal office of the corporation in the place where it is registered, or
- c) in relation to any real property, the street address of the property.

de facto partner has the same meaning as defined in section 21C of the *Interpretation Act 1987*.

disposition of property means a conveyance, transfer, assignment, settlement, delivery, payment or other alienation of property, including the following:

- a) the allotment of shares in a company
- b) the creation of a trust in respect of property
- c) the grant or creation of a lease, mortgage, charge, easement, licence, power, partnership or interest in respect of property
- d) the release, discharge, surrender, forfeiture or abandonment, at law or in equity, of a debt, contract or chose in action, or of an interest in respect of property

- e) the exercise by a person of a general power of appointment over property in favour of another person
- f) a transaction entered into by a person who intends by the transaction to diminish, directly or indirectly, the value of the person's own property and to increase the value of the property of another person.

gift means a disposition of property made otherwise than by will (whether or not by instrument in writing) without consideration, or with inadequate consideration, in money or money's worth passing from the person to whom the disposition was made to the person who made the disposition, but does not include a financial or other contribution to travel.

interest means:

- a) in relation to property, an estate, interest, right or power, at law or in equity, in or over the property, or
- b) in relation to a corporation, a relevant interest (within the meaning of section 9 of the *Corporations Act 2001* of the Commonwealth) in securities issued or made available by the corporation.

listed company means a company that is listed within the meaning of section 9 of the *Corporations Act 2001* of the Commonwealth.

occupation includes trade, profession and vocation.

professional or business association means an incorporated or unincorporated body or organisation having as one of its objects or activities the promotion of the economic interests of its members in any occupation.

property includes money.

return date means:

- a) in the case of a return made under clause 4.21(a), the date on which a person became a councillor or designated person
- b) in the case of a return made under clause 4.21(b), 30 June of the year in which the return is made
- c) in the case of a return made under clause 4.21(c), the date on which the councillor or designated person became aware of the interest to be disclosed.

relative includes any of the following:

- a) a person's spouse or de facto partner
- b) a person's parent, grandparent, brother, sister, uncle, aunt, nephew, niece, lineal descendant or adopted child
- c) a person's spouse's or de facto partner's parent, grandparent, brother, sister, uncle, aunt, nephew, niece, lineal descendant or adopted child
- d) the spouse or de facto partner of a person referred to in paragraphs (b) and (c).

travel includes accommodation incidental to a journey.

Matters relating to the interests that must be included in returns

2. *Interests etc. outside New South Wales:*
A reference in this schedule or in schedule 2 to a disclosure concerning a corporation or other thing includes any reference to a disclosure concerning a corporation registered, or other thing arising or received, outside New South Wales.
3. *References to interests in real property:*
A reference in this schedule or in schedule 2 to real property in which a councillor or designated person has an interest includes a reference to any real property situated in Australia in which the councillor or designated person has an interest.
4. *Gifts, loans etc. from related corporations:*
For the purposes of this schedule and schedule 2, gifts or contributions to travel given, loans made, or goods or services supplied, to a councillor or designated person by two or more corporations that are related to each other for the purposes of section 50 of the *Corporations Act 2001* of the Commonwealth are all given, made or supplied by a single corporation.

Part 2: Pecuniary interests to be disclosed in returns

Real property

5. A person making a return under clause 4.21 of this code must disclose:
 - a) the street address of each parcel of real property in which they had an interest on the return date, and
 - b) the street address of each parcel of real property in which they had an interest in the period since 30 June of the previous financial year, and
 - c) the nature of the interest.
6. An interest in a parcel of real property need not be disclosed in a return if the person making the return had the interest only:
 - a) as executor of the will, or administrator of the estate, of a deceased person and not as a beneficiary under the will or intestacy, or
 - b) as a trustee, if the interest was acquired in the ordinary course of an occupation not related to their duties as the holder of a position required to make a return.
7. An interest in a parcel of real property need not be disclosed in a return if the person ceased to hold the interest prior to becoming a councillor or designated person.
8. For the purposes of clause 5 of this schedule, "interest" includes an option to purchase.

Gifts

9. A person making a return under clause 4.21 of this code must disclose:
 - a) a description of each gift received in the period since 30 June of the previous financial year, and
 - b) the name and address of the donor of each of the gifts.
10. A gift need not be included in a return if:
 - a) it did not exceed \$500, unless it was among gifts totalling more than \$500 made by the same person during a period of 12 months or less, or
 - b) it was a political donation disclosed, or required to be disclosed, under Part 3 of the *Electoral Funding Act 2018*, or
 - c) the donor was a relative of the donee, or
 - d) subject to paragraph (a), it was received prior to the person becoming a councillor or designated person.
11. For the purposes of clause 10 of this schedule, the amount of a gift other than money is an amount equal to the value of the property given.

Contributions to travel

12. A person making a return under clause 4.21 of this code must disclose:
 - a) the name and address of each person who made any financial or other contribution to the expenses of any travel undertaken by the person in the period since 30 June of the previous financial year, and

- b) the dates on which the travel was undertaken, and
 - c) the names of the states and territories, and of the overseas countries, in which the travel was undertaken.
13. A financial or other contribution to any travel need not be disclosed under this clause if it:
- a) was made from public funds (including a contribution arising from travel on free passes issued under an Act or from travel in government or council vehicles), or
 - b) was made by a relative of the traveller, or
 - c) was made in the ordinary course of an occupation of the traveller that is not related to their functions as the holder of a position requiring the making of a return, or
 - d) did not exceed \$250, unless it was among gifts totalling more than \$250 made by the same person during a 12-month period or less, or
 - e) was a political donation disclosed, or required to be disclosed, under Part 3 of the *Electoral Funding Act 2018*, or
 - f) was made by a political party of which the traveller was a member and the travel was undertaken for the purpose of political activity of the party in New South Wales, or to enable the traveller to represent the party within Australia, or
 - g) subject to paragraph (d) it was received prior to the person becoming a councillor or designated person.
14. For the purposes of clause 13 of this schedule, the amount of a contribution (other than a financial contribution) is an amount equal to the value of the contribution.

Interests and positions in corporations

15. A person making a return under clause 4.21 of this code must disclose:
- a) the name and address of each corporation in which they had an interest or held a position (whether remunerated or not) on the return date, and
 - b) the name and address of each corporation in which they had an interest or held a position in the period since 30 June of the previous financial year, and
 - c) the nature of the interest, or the position held, in each of the corporations, and
 - d) a description of the principal objects (if any) of each of the corporations, except in the case of a listed company.
16. An interest in, or a position held in, a corporation need not be disclosed if the corporation is:
- a) formed for the purpose of providing recreation or amusement, or for promoting commerce, industry, art, science, religion or charity, or for any other community purpose, and
 - b) required to apply its profits or other income in promoting its objects, and
 - c) prohibited from paying any dividend to its members.
17. An interest in a corporation need not be disclosed if the interest is a beneficial interest in shares in a company that does not exceed 10 per cent of the voting rights in the company.
18. An interest or a position in a corporation need not be disclosed if the person ceased to hold the interest or position prior to becoming a councillor or designated person.

Interests as a property developer or a close associate of a property developer

19. A person making a return under clause 4.21 of this code must disclose whether they were a property developer, or a close associate of a corporation that, or an individual who, is a property developer, on the return date.

20. For the purposes of clause 19 of this schedule:

close associate, in relation to a corporation or an individual, has the same meaning as it has in section 53 of the *Electoral Funding Act 2018*.

property developer has the same meaning as it has in Division 7 of Part 3 of the *Electoral Funding Act 2018*.

Positions in trade unions and professional or business associations

21. A person making a return under clause 4.21 of the code must disclose:
- the name of each trade union, and of each professional or business association, in which they held any position (whether remunerated or not) on the return date, and
 - the name of each trade union, and of each professional or business association, in which they have held any position (whether remunerated or not) in the period since 30 June of the previous financial year, and
 - a description of the position held in each of the unions and associations.

22. A position held in a trade union or a professional or business association need not be disclosed if the person ceased to hold the position prior to becoming a councillor or designated person.

Dispositions of real property

23. A person making a return under clause 4.21 of this code must disclose particulars of each disposition of real property by the person (including the street address of the affected property) in the period since 30 June of the previous financial year, under which they wholly or partly retained the use and benefit of the property or the right to re-acquire the property.
24. A person making a return under clause 4.21 of this code must disclose particulars of each disposition of real property to another person (including the street address of the affected property) in the period since 30 June of the previous financial year, that is made under arrangements with, but is not made by, the person making the return, being a disposition under which the person making the return obtained wholly or partly the use of the property.
25. A disposition of real property need not be disclosed if it was made prior to a person becoming a councillor or designated person.

Sources of income

26. A person making a return under clause 4.21 of this code must disclose:
 - a) each source of income that the person reasonably expects to receive in the period commencing on the first day after the return date and ending on the following 30 June, and
 - b) each source of income received by the person in the period since 30 June of the previous financial year.
27. A reference in clause 26 of this schedule to each source of income received, or reasonably expected to be received, by a person is a reference to:
 - a) in relation to income from an occupation of the person:
 - (i) a description of the occupation, and
 - (ii) if the person is employed or the holder of an office, the name and address of their employer, or a description of the office, and
 - (iii) if the person has entered into a partnership with other persons, the name (if any) under which the partnership is conducted, or
 - b) in relation to income from a trust, the name and address of the settlor and the trustee, or
 - c) in relation to any other income, a description sufficient to identify the person from whom, or the circumstances in which, the income was, or is reasonably expected to be, received.

28. The source of any income need not be disclosed by a person in a return if the amount of the income received, or reasonably expected to be received, by the person from that source did not exceed \$500, or is not reasonably expected to exceed \$500, as the case may be.
29. The source of any income received by the person that they ceased to receive prior to becoming a councillor or designated person need not be disclosed.
30. A fee paid to a councillor or to the mayor or deputy mayor under sections 248 or 249 of the LGA need not be disclosed.

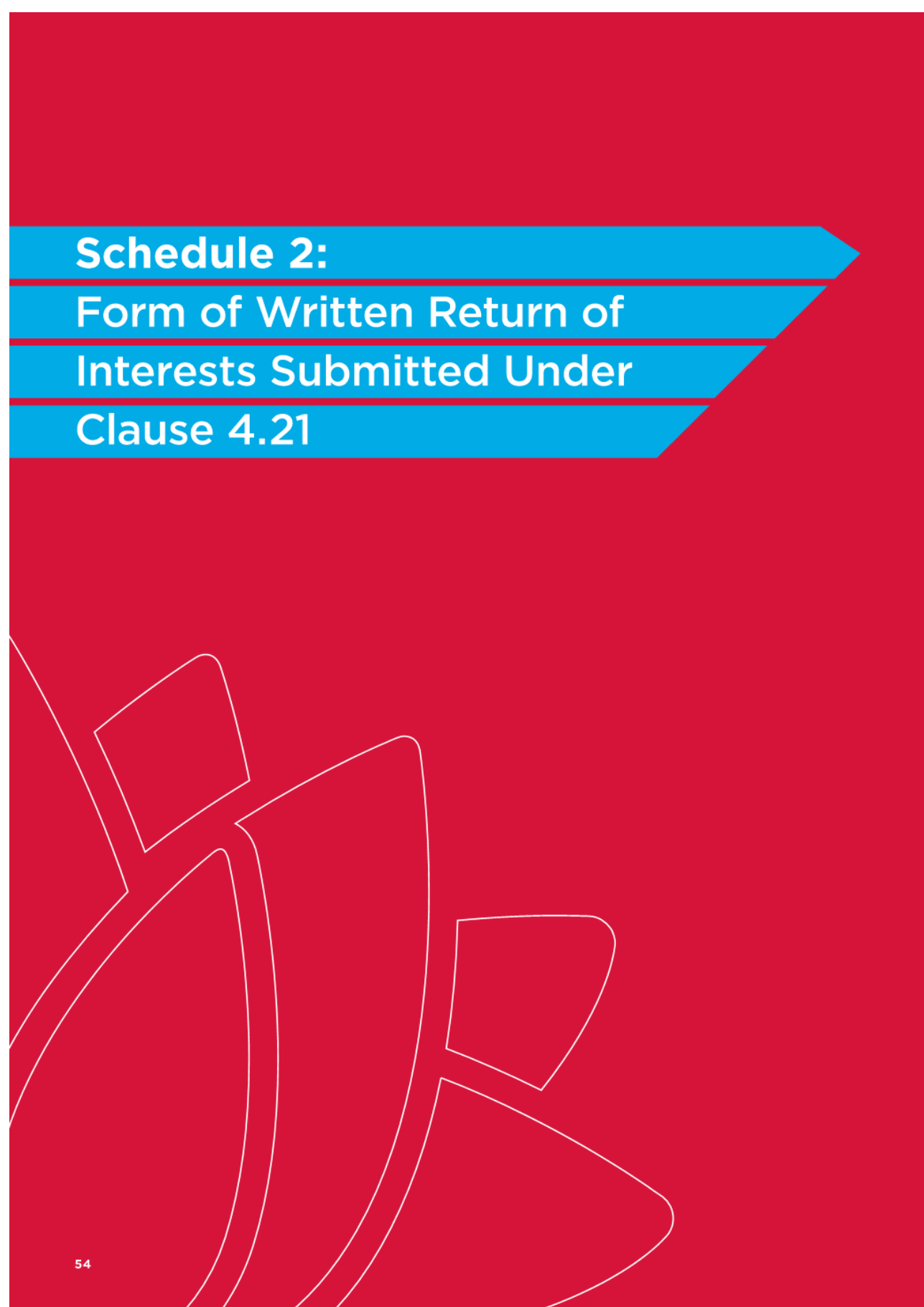
Debts

31. A person making a return under clause 4.21 of this code must disclose the name and address of each person to whom the person was liable to pay any debt:
 - a) on the return date, and
 - b) at any time in the period since 30 June of the previous financial year.
32. A liability to pay a debt must be disclosed by a person in a return made under clause 4.21 whether or not the amount, or any part of the amount, to be paid was due and payable on the return date or at any time in the period since 30 June of the previous financial year, as the case may be.
33. A liability to pay a debt need not be disclosed by a person in a return if:
 - a) the amount to be paid did not exceed \$500 on the return date or in the period since 30 June of the previous financial year, as the case may be, unless:

- (i) the debt was one of two or more debts that the person was liable to pay to one person on the return date, or at any time in the period since 30 June of the previous financial year, as the case may be, and
 - (ii) the amounts to be paid exceeded, in the aggregate, \$500, or
- b) the person was liable to pay the debt to a relative, or
- c) in the case of a debt arising from a loan of money the person was liable to pay the debt to an authorised deposit-taking institution or other person whose ordinary business includes the lending of money, and the loan was made in the ordinary course of business of the lender, or
- d) in the case of a debt arising from the supply of goods or services:
 - (i) the goods or services were supplied in the period of 12 months immediately preceding the return date, or were supplied in the period since 30 June of the previous financial year, as the case may be, or
 - (ii) the goods or services were supplied in the ordinary course of any occupation of the person that is not related to their duties as the holder of a position required to make a return, or
- e) subject to paragraph (a), the debt was discharged prior to the person becoming a councillor or designated person.

Discretionary disclosures

34. A person may voluntarily disclose in a return any interest, benefit, advantage or liability, whether pecuniary or not, that is not required to be disclosed under another provision of this Schedule.



Schedule 2:

Form of Written Return of Interests Submitted Under Clause 4.21

'Disclosures by councillors and designated persons' return

1. The pecuniary interests and other matters to be disclosed in this return are prescribed by Schedule 1 of the *Model Code of Conduct for Local Councils in NSW* (the Model Code of Conduct).
2. If this is the first return you have been required to lodge with the general manager after becoming a councillor or designated person, do not complete Parts C, D and I of the return. All other parts of the return should be completed with appropriate information based on your circumstances at the return date, that is, the date on which you became a councillor or designated person.
3. If you have previously lodged a return with the general manager and you are completing this return for the purposes of disclosing a new interest that was not disclosed in the last return you lodged with the general manager, you must complete all parts of the return with appropriate information for the period from 30 June of the previous financial year or the date on which you became a councillor or designated person, (whichever is the later date), to the return date which is the date you became aware of the new interest to be disclosed in your updated return.
4. If you have previously lodged a return with the general manager and are submitting a new return for the new financial year, you must complete all parts of the return with appropriate information for the 12-month period commencing on 30 June of the previous year to 30 June this year.
5. This form must be completed using block letters or typed.

6. If there is insufficient space for all the information you are required to disclose, you must attach an appendix which is to be properly identified and signed by you.
7. If there are no pecuniary interests or other matters of the kind required to be disclosed under a heading in this form, the word "NIL" is to be placed in an appropriate space under that heading.

Important information

This information is being collected for the purpose of complying with clause 4.21 of the Model Code of Conduct.

You must not lodge a return that you know or ought reasonably to know is false or misleading in a material particular (see clause 4.23 of the Model Code of Conduct). Complaints about breaches of these requirements are to be referred to the Office of Local Government and may result in disciplinary action by the council, the Chief Executive of the Office of Local Government or the NSW Civil and Administrative Tribunal.

The information collected on this form will be kept by the general manager in a register of returns. The general manager is required to table all returns at a council meeting.

Information contained in returns made and lodged under clause 4.21 is to be made publicly available in accordance with the requirements of the *Government Information (Public Access) Act 2009*, the *Government Information (Public Access) Regulation 2009* and any guidelines issued by the Information Commissioner.

You have an obligation to keep the information contained in this return up to date. If you become aware of a new interest that must be disclosed in this return, or an interest that you have previously failed to disclose, you must submit an updated return within three months of becoming aware of the previously undisclosed interest.

Model Code of Conduct for Local Councils in NSW

Disclosure of pecuniary interests and other matters by *[full name of councillor or designated person]*

as at *[return date]*

in respect of the period from *[date]* to *[date]*

[councillor's or designated person's signature]

[date]

A. Real Property

Street address of each parcel of real property in which I had an interest at the *return date/at any time since 30 June* Nature of interest

B. Sources of income

1 Sources of income I reasonably expect to receive from an occupation in the period commencing on the first day after the return date and ending on the following 30 June

Sources of income I received from an occupation at any time since 30 June

Description of occupation	Name and address of employer or description of office held (if applicable)	Name under which partnership conducted (if applicable)
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2 Sources of income I reasonably expect to receive from a trust in the period commencing on the first day after the return date and ending on the following 30 June

Sources of income I received from a trust since 30 June

Name and address of settlor	Name and address of trustee
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3 Sources of other income I reasonably expect to receive in the period commencing on the first day after the return date and ending on the following 30 June

Sources of other income I received at any time since 30 June

[Include description sufficient to identify the person from whom, or the circumstances in which, that income was received]

C. Gifts

Description of each gift I received at any time since 30 June	Name and address of donor
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D. Contributions to travel

Name and address of each person who made any financial or other contribution to any travel undertaken by me at any time since 30 June	Dates on which travel was undertaken	Name of States, Territories of the Commonwealth and overseas countries in which travel was undertaken
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E. Interests and positions in corporations

Name and address of each corporation in which I had an interest or held a position at the return date/at any time since 30 June	Nature of interest (if any)	Description of position (if any)	Description of principal objects (if any) of corporation (except in case of listed company)
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F. Were you a property developer or a close associate of a property developer on the return date? (Y/N)**G. Positions in trade unions and professional or business associations**

Name of each trade union and each professional or business association in which I held any position (whether remunerated or not) at the return date/at any time since 30 June	Description of position
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H. Debts

Name and address of each person to whom I was liable to pay any debt at the return date/at any time since 30 June

I. Dispositions of property

1 Particulars of each disposition of real property by me (including the street address of the affected property) at any time since 30 June as a result of which I retained, either wholly or in part, the use and benefit of the property or the right to re-acquire the property at a later time

2 Particulars of each disposition of property to a person by any other person under arrangements made by me (including the street address of the affected property), being dispositions made at any time since 30 June, as a result of which I obtained, either wholly or in part, the use and benefit of the property

J. Discretionary disclosures

Schedule 3:

Form of Special Disclosure of Pecuniary Interest Submitted Under Clause 4.37

1. This form must be completed using block letters or typed.
2. If there is insufficient space for all the information you are required to disclose, you must attach an appendix which is to be properly identified and signed by you.

Important information

This information is being collected for the purpose of making a special disclosure of pecuniary interests under clause 4.36(c) of the *Model Code of Conduct for Local Councils in NSW* (the Model Code of Conduct).

The special disclosure must relate only to a pecuniary interest that a councillor has in the councillor's principal place of residence, or an interest another person (whose interests are relevant under clause 4.3 of the Model Code of Conduct) has in that person's principal place of residence.

Clause 4.3 of the Model Code of Conduct states that you will have a pecuniary interest in a matter because of the pecuniary interest of your spouse or your de facto partner or your relative or because your business partner or employer has a pecuniary interest. You will also have a pecuniary interest in a matter because

you, your nominee, your business partner or your employer is a member of a company or other body that has a pecuniary interest in the matter.

"Relative" is defined by clause 4.4 of the Model Code of Conduct as meaning your, your spouse's or your de facto partner's parent, grandparent, brother, sister, uncle, aunt, nephew, niece, lineal descendant or adopted child and the spouse or de facto partner of any of those persons.

You must not make a special disclosure that you know or ought reasonably to know is false or misleading in a material particular. Complaints about breaches of these requirements are to be referred to the Office of Local Government and may result in disciplinary action by the Chief Executive of the Office of Local Government or the NSW Civil and Administrative Tribunal.

This form must be completed by you before the commencement of the council or council committee meeting at which the special disclosure is being made. The completed form must be tabled at the meeting. Everyone is entitled to inspect it. The special disclosure must be recorded in the minutes of the meeting.

Special disclosure of pecuniary interests by *[full name of councillor]*in the matter of *[insert name of environmental planning instrument]*which is to be considered at a meeting of the
[name of council or council committee (as the case requires)]

to be held on the day of 20 .

Pecuniary interest**Address of the affected principal place of residence of the councillor or an associated person, company or body (the identified land)**

Relationship of identified land to councillor

[Tick or cross one box.]

- ☐ The councillor has an interest in the land (e.g. is the owner or has another interest arising out of a mortgage, lease, trust, option or contract, or otherwise).
- ☐ An associated person of the councillor has an interest in the land.
- ☐ An associated company or body of the councillor has an interest in the land.

Matter giving rise to pecuniary interest¹Nature of the land that is subject to a change in zone/planning control by the proposed LEP (the subject land)²*[Tick or cross one box]*

- ☐ The identified land.
- ☐ Land that adjoins or is adjacent to or is in proximity to the identified land.

Current zone/planning control

[Insert name of current planning instrument and identify relevant zone/planning control applying to the subject land]

- 1 Clause 4.1 of the Model Code of Conduct provides that a pecuniary interest is an interest that a person has in a matter because of a reasonable likelihood or expectation of appreciable financial gain or loss to the person. A person does not have a pecuniary interest in a matter if the interest is so remote or insignificant that it could not reasonably be regarded as likely to influence any decision the person might make in relation to the matter, or if the interest is of a kind specified in clause 4.6 of the Model Code of Conduct.
- 2 A pecuniary interest may arise by way of a change of permissible use of land adjoining, adjacent to or in proximity to land in which a councillor or a person, company or body referred to in clause 4.3 of the Model Code of Conduct has a proprietary interest.

Proposed change of zone/planning control

[Insert name of proposed LEP and identify proposed change of zone/planning control applying to the subject land]

Effect of proposed change of zone/planning control on councillor or associated person

[Insert one of the following: "Appreciable financial gain" or "Appreciable financial loss"]

[If more than one pecuniary interest is to be declared, reprint the above box and fill in for each additional interest.]

Councillor's signature

Date

[This form is to be retained by the council's general manager and included in full in the minutes of the meeting]



Procedures for the
Administration of

The Model Code of Conduct

for Local Councils in NSW

2020



PROCEDURES FOR THE ADMINISTRATION OF THE MODEL CODE OF CONDUCT FOR LOCAL COUNCILS IN NSW

2020

ACCESS TO SERVICES

The Office of Local Government is located at:

Street Address: Levels 1 & 2, 5 O'Keefe Avenue, NOWRA NSW 2541

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Contents

Part 1:	Introduction	4
Part 2:	Definitions	6
Part 3:	Administrative Framework	10
Part 4:	How May Code of Conduct Complaints be Made?	14
Part 5:	How are Code of Conduct Complaints to be Managed?	18
Part 6:	Preliminary Assessment of Code of Conduct Complaints About Councillors or the General Manager by Conduct Reviewers	26
Part 7:	Investigations of Code of Conduct Complaints About Councillors or the General Manager	32
Part 8:	Oversight and Rights of Review	40
Part 9:	Procedural Irregularities	44
Part 10:	Practice Directions	46
Part 11:	Reporting Statistics on Code of Conduct Complaints About Councillors and the General Manager	48
Part 12:	Confidentiality	50

Part 1:

Introduction

These procedures ("the Model Code Procedures") are prescribed for the administration of the *Model Code of Conduct for Local Councils in NSW* ("the Model Code of Conduct").

The Model Code of Conduct is made under section 440 of the *Local Government Act 1993* ("the LGA") and the *Local Government (General) Regulation 2005* ("the Regulation"). Section 440 of the LGA requires every council (including county councils) and joint organisation to adopt a code of conduct that incorporates the provisions of the Model Code of Conduct.

The Model Code Procedures are made under section 440AA of the LGA and the Regulation. Section 440AA of the LGA requires every council (including county councils) and joint organisation to adopt procedures for the administration of their code of conduct that incorporate the provisions of the Model Code Procedures.

In adopting procedures for the administration of their adopted codes of conduct, councils and joint organisations may supplement the Model Code Procedures. However, provisions that are not consistent with those prescribed under the Model Code Procedures will have no effect.

Note: References in these procedures to councils are also to be taken as references to county councils and joint organisations.

Note: In adopting the Model Code Procedures, joint organisations should adapt them to substitute the terms "board" for "council", "chairperson" for "mayor", "voting representative" for "councillor" and "executive officer" for "general manager".

Note: In adopting the Model Code Procedures, county councils should adapt them to substitute the term "chairperson" for "mayor" and "member" for "councillor".

Note: Parts 6, 7, 8 and 11 of these procedures apply only to the management of code of conduct complaints about councillors (including the mayor) or the general manager.

Part 2:

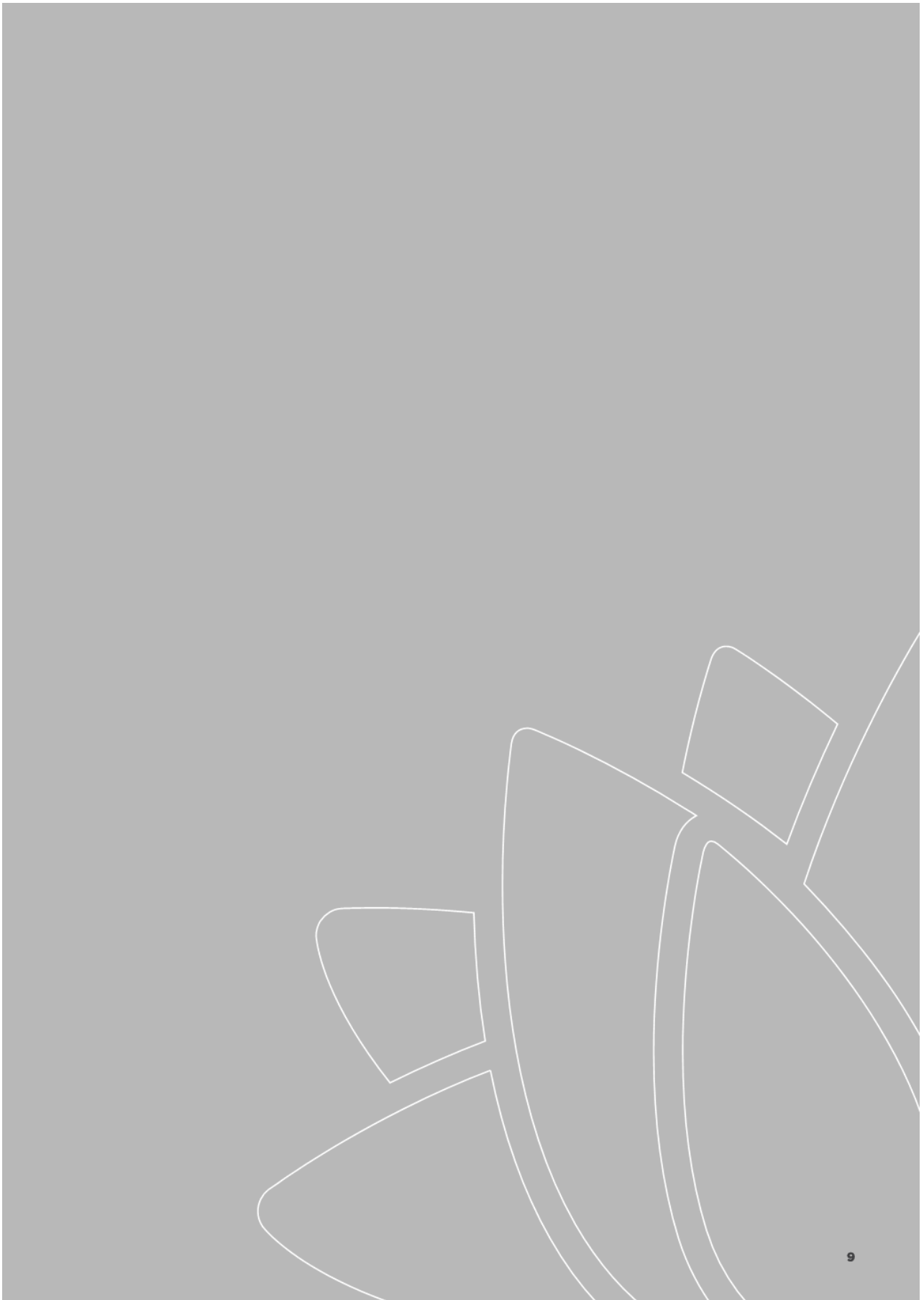
Definitions

In these procedures the following terms have the following meanings:

administrator	an administrator of a council appointed under the LGA other than an administrator appointed under section 66
code of conduct	a code of conduct adopted under section 440 of the LGA
code of conduct complaint	a complaint that is a code of conduct complaint for the purposes of clauses 4.1 and 4.2 of these procedures
complainant	a person who makes a code of conduct complaint
complainant councillor	a councillor who makes a code of conduct complaint
complaints coordinator	a person appointed by the general manager under these procedures as a complaints coordinator
conduct reviewer	a person appointed under these procedures to review allegations of breaches of the code of conduct by councillors or the general manager
council	includes county councils and joint organisations
council committee	a committee established by a council comprising of councillors, staff or other persons that the council has delegated functions to and the council's audit, risk and improvement committee
council committee member	a person other than a councillor or member of staff of a council who is a member of a council committee other than a wholly advisory committee, and a person other than a councillor who is a member of the council's audit, risk and improvement committee
councillor	any person elected or appointed to civic office, including the mayor, and includes members and chairpersons of county councils and voting representatives of the boards of joint organisations and chairpersons of joint organisations
council official	any councillor, member of staff of council, administrator, council committee member, delegate of council and, for the purposes of clause 4.16 of the Model Code of Conduct, council adviser
delegate of council	a person (other than a councillor or member of staff of a council) or body, and the individual members of that body, to whom a function of the council is delegated
external agency	a state government agency such as, but not limited to, the Office, the ICAC, the NSW Ombudsman or the police
general manager	includes the executive officer of a joint organisation

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

ICAC	the Independent Commission Against Corruption
joint organisation	a joint organisation established under section 4000 of the LGA
LGA	the <i>Local Government Act 1993</i>
mayor	includes the chairperson of a county council or a joint organisation
members of staff of a council	includes members of staff of county councils and joint organisations
the Office	the Office of Local Government
investigator	a conduct reviewer
the Regulation	the <i>Local Government (General) Regulation 2005</i>
respondent	a person whose conduct is the subject of investigation by a conduct reviewer under these procedures
wholly advisory committee	a council committee that the council has not delegated any functions to



Part 3:

Administrative Framework

The establishment of a panel of conduct reviewers

- 3.1 The council must establish a panel of conduct reviewers.
- 3.2 The council may enter into an arrangement with one or more other councils to share a panel of conduct reviewers including through a joint organisation or another regional body associated with the councils.
- 3.3 The panel of conduct reviewers is to be established following a public expression of interest process.
- 3.4 An expression of interest for members of the council's panel of conduct reviewers must, at a minimum, be advertised locally and in the Sydney metropolitan area.
- 3.5 To be eligible to be a conduct reviewer, a person must, at a minimum, meet the following requirements:
 - a) an understanding of local government, and
 - b) knowledge of investigative processes including but not limited to procedural fairness requirements and the requirements of the *Public Interest Disclosures Act 1994*, and
 - c) knowledge and experience of one or more of the following:
 - i) investigations
 - ii) law
 - iii) public administration
 - iv) public sector ethics
 - v) alternative dispute resolution, and
 - d) meet the eligibility requirements for membership of a panel of conduct reviewers under clause 3.6.
- 3.6 A person is not eligible to be a conduct reviewer if they are:
 - a) a councillor, or
 - b) a nominee for election as a councillor, or
 - c) an administrator, or
 - d) an employee of a council, or
 - e) a member of the Commonwealth Parliament or any State Parliament or Territory Assembly, or
 - f) a nominee for election as a member of the Commonwealth Parliament or any State Parliament or Territory Assembly, or
 - g) a person who has a conviction for an indictable offence that is not an expired conviction.
- 3.7 A person is not precluded from being a member of the council's panel of conduct reviewers if they are a member of another council's panel of conduct reviewers.
- 3.8 An incorporated or other entity may be appointed to a council's panel of conduct reviewers where the council is satisfied that all the persons who will be undertaking the functions of a conduct reviewer on behalf of the entity meet the selection and eligibility criteria prescribed under this Part.
- 3.9 A panel of conduct reviewers established under this Part is to have a term of up to four years.
- 3.10 The council may terminate the panel of conduct reviewers at any time. Where a panel of conduct reviewers has been terminated, conduct reviewers who were members of the panel may continue to deal with any matter referred to them under these procedures prior to the termination of the panel until they have finalised their consideration of the matter.

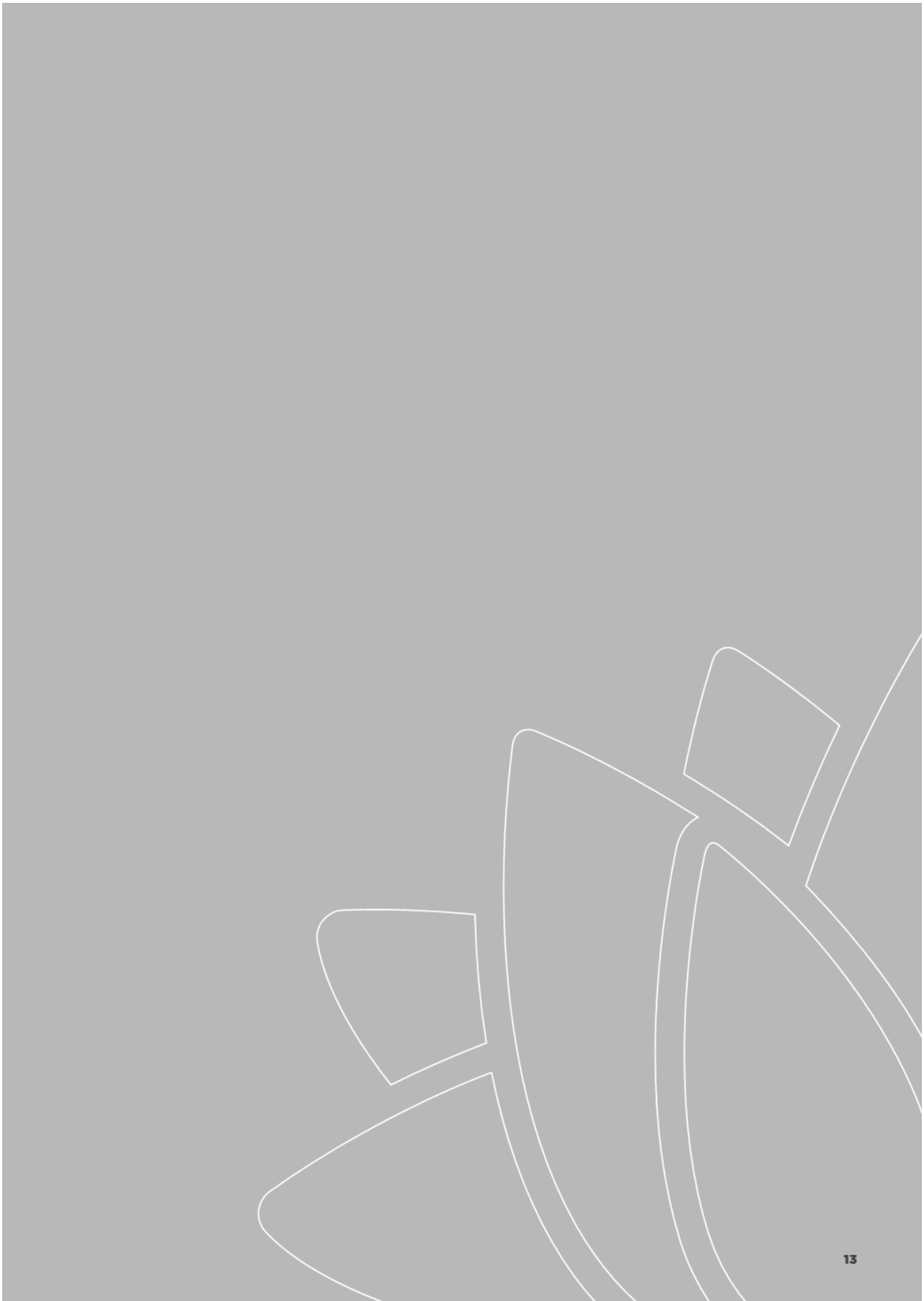
- 3.11 When the term of the panel of conduct reviewers concludes or is terminated, the council must establish a new panel of conduct reviewers in accordance with the requirements of this Part.
- 3.12 A person who was a member of a previous panel of conduct reviewers established by the council may be a member of subsequent panels of conduct reviewers established by the council if they continue to meet the selection and eligibility criteria for membership of the panel.

The appointment of an internal ombudsman to a panel of conduct reviewers

- 3.13 Despite clause 3.6(d), an employee of a council who is the nominated internal ombudsman of one or more councils may be appointed to a council's panel of conduct reviewers with the Office's consent.
- 3.14 To be appointed to a council's panel of conduct reviewers, an internal ombudsman must meet the qualification requirements for conduct reviewers prescribed under clause 3.5 as modified by the operation of clause 3.13.
- 3.15 An internal ombudsman appointed to a council's panel of conduct reviewers may also exercise the functions of the council's complaints coordinator. For the purposes of clause 6.1, an internal ombudsman who is a council's complaints coordinator and has been appointed to the council's panel of conduct reviewers, may either undertake a preliminary assessment and investigation of a matter referred to them under clauses 5.26 or 5.33 or refer the matter to another conduct reviewer in accordance with clause 6.2.
- 3.16 Clause 6.4(c) does not apply to an internal ombudsman appointed to a council's panel of conduct reviewers.

The appointment of complaints coordinators

- 3.17 The general manager must appoint a member of staff of the council or another person (such as, but not limited to, a member of staff of another council or a member of staff of a joint organisation or other regional body associated with the council), to act as a complaints coordinator. Where the complaints coordinator is a member of staff of the council, the complaints coordinator should be a senior and suitably qualified member of staff.
- 3.18 The general manager may appoint other members of staff of the council or other persons (such as, but not limited to, members of staff of another council or members of staff of a joint organisation or other regional body associated with the council), to act as alternates to the complaints coordinator.
- 3.19 The general manager must not undertake the role of complaints coordinator.
- 3.20 The person appointed as complaints coordinator or alternate complaints coordinator must also be a nominated disclosures coordinator appointed for the purpose of receiving and managing reports of wrongdoing under the *Public Interest Disclosures Act 1994*.
- 3.21 The role of the complaints coordinator is to:
- coordinate the management of complaints made under the council's code of conduct
 - liaise with and provide administrative support to a conduct reviewer
 - liaise with the Office, and
 - arrange the annual reporting of code of conduct complaints statistics.



Part 4:

How May Code of Conduct Complaints be Made?

14

What is a code of conduct complaint?

- 4.1 For the purpose of these procedures, a code of conduct complaint is a complaint that shows or tends to show conduct on the part of a council official in connection with their role as a council official or the exercise of their functions as a council official that would constitute a breach of the standards of conduct prescribed under the council's code of conduct if proven.
- 4.2 The following are not "code of conduct complaints" for the purposes of these procedures:
- a) complaints about the standard or level of service provided by the council or a council official
 - b) complaints that relate solely to the merits of a decision made by the council or a council official or the exercise of a discretion by the council or a council official
 - c) complaints about the policies or procedures of the council
 - d) complaints about the conduct of a council official arising from the exercise of their functions in good faith, whether or not involving error, that would not otherwise constitute a breach of the standards of conduct prescribed under the council's code of conduct.
- 4.3 Only code of conduct complaints are to be dealt with under these procedures. Complaints that do not satisfy the definition of a code of conduct complaint are to be dealt with under the council's routine complaints management processes.

When must a code of conduct complaint be made?

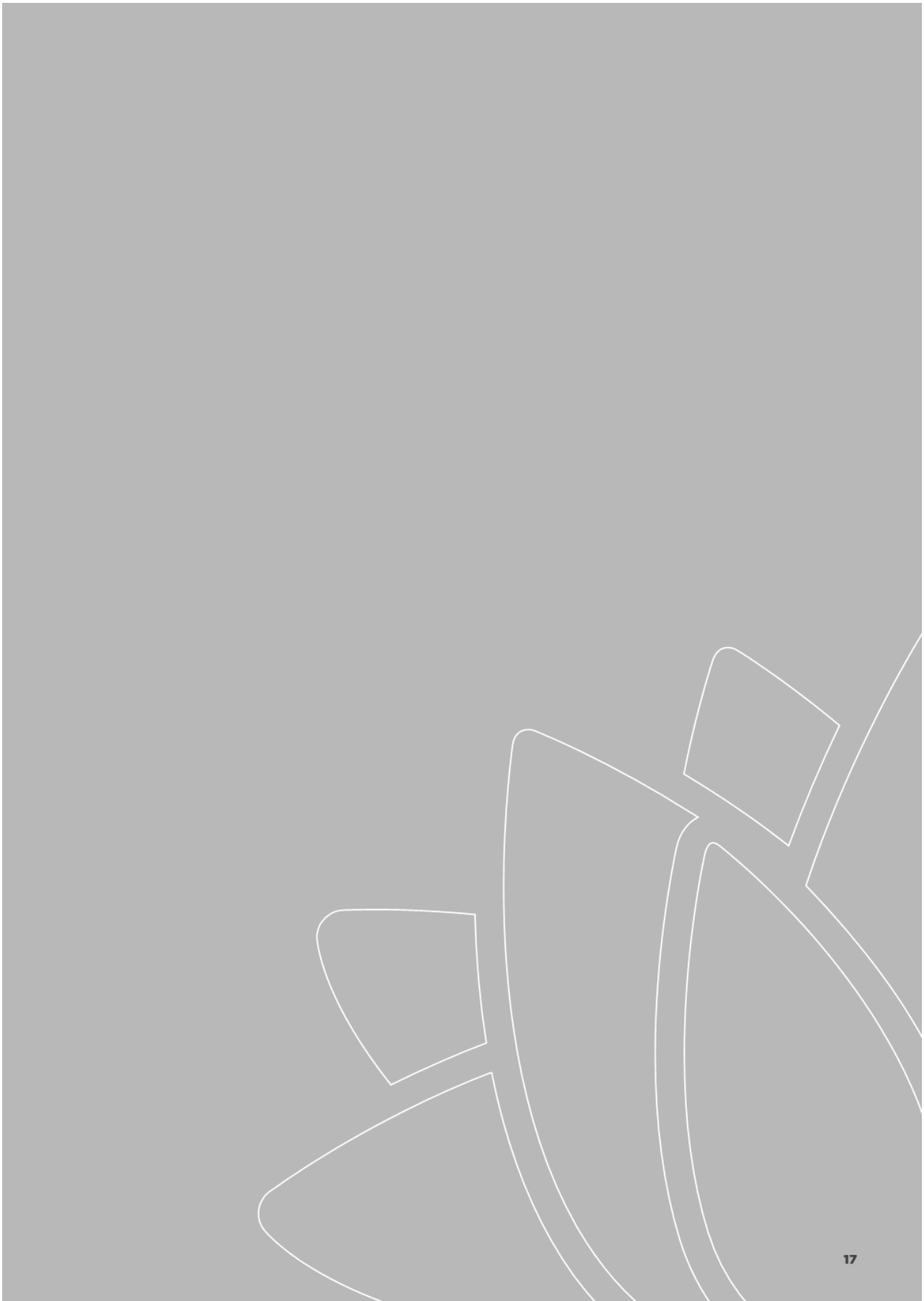
- 4.4 A code of conduct complaint must be made within 3 months of the alleged conduct occurring or within 3 months of the complainant becoming aware of the alleged conduct.
- 4.5 A complaint made after 3 months may only be accepted if the general manager or their delegate, or, in the case of a complaint about the general manager, the mayor or their delegate, is satisfied that the allegations are serious and compelling grounds exist for the matter to be dealt with under the code of conduct.

How may a code of conduct complaint about a council official other than the general manager be made?

- 4.6 All code of conduct complaints other than those relating to the general manager are to be made to the general manager in writing. This clause does not operate to prevent a person from making a complaint to an external agency.
- 4.7 Where a code of conduct complaint about a council official other than the general manager cannot be made in writing, the complaint must be confirmed with the complainant in writing as soon as possible after the receipt of the complaint.
- 4.8 In making a code of conduct complaint about a council official other than the general manager, the complainant may nominate whether they want the complaint to be resolved by mediation or by other alternative means.
- 4.9 The general manager or their delegate, or, where the complaint is referred to a conduct reviewer, the conduct reviewer, must consider the complainant's preferences in deciding how to deal with the complaint.
- 4.10 Notwithstanding clauses 4.6 and 4.7, where the general manager becomes aware of a possible breach of the council's code of conduct, they may initiate the process for the consideration of the matter under these procedures without a written complaint.

How may a code of conduct complaint about the general manager be made?

- 4.11 Code of conduct complaints about the general manager are to be made to the mayor in writing. This clause does not operate to prevent a person from making a complaint about the general manager to an external agency.
- 4.12 Where a code of conduct complaint about the general manager cannot be made in writing, the complaint must be confirmed with the complainant in writing as soon as possible after the receipt of the complaint.
- 4.13 In making a code of conduct complaint about the general manager, the complainant may nominate whether they want the complaint to be resolved by mediation or by other alternative means.
- 4.14 The mayor or their delegate, or, where the complaint is referred to a conduct reviewer, the conduct reviewer, must consider the complainant's preferences in deciding how to deal with the complaint.
- 4.15 Notwithstanding clauses 4.11 and 4.12, where the mayor becomes aware of a possible breach of the council's code of conduct by the general manager, they may initiate the process for the consideration of the matter under these procedures without a written complaint.



Part 5:

How are Code of Conduct Complaints to be Managed?

How are Code of Conduct Complaints to be Managed?

Delegation by general managers and mayors of their functions under this Part

- 5.1 A general manager or mayor may delegate their functions under this Part to a member of staff of the council or to a person or persons external to the council other than an external agency. References in this Part to the general manager or mayor are also to be taken to be references to their delegates.

Consideration of complaints by general managers and mayors

- 5.2 In exercising their functions under this Part, general managers and mayors may consider the complaint assessment criteria prescribed under clause 6.31.

What complaints may be declined at the outset?

- 5.3 Without limiting any other provision in these procedures, the general manager or, in the case of a complaint about the general manager, the mayor, may decline to deal with a complaint under these procedures where they are satisfied that the complaint:
- a) is not a code of conduct complaint, or
 - b) subject to clause 4.5, is not made within 3 months of the alleged conduct occurring or the complainant becoming aware of the alleged conduct, or
 - c) is trivial, frivolous, vexatious or not made in good faith, or

- d) relates to a matter the substance of which has previously been considered and addressed by the council and does not warrant further action, or
- e) is not made in a way that would allow the alleged conduct and any alleged breaches of the council's code of conduct to be readily identified.

How are code of conduct complaints about staff (other than the general manager) to be dealt with?

- 5.4 The general manager is responsible for the management of code of conduct complaints about members of staff of council (other than complaints alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct) and for determining the outcome of such complaints.
- 5.5 The general manager must refer code of conduct complaints about members of staff of council alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct to the Office.
- 5.6 The general manager may decide to take no action in relation to a code of conduct complaint about a member of staff of council other than one requiring referral to the Office under clause 5.5 where they consider that no action is warranted in relation to the complaint.
- 5.7 Where the general manager decides to take no action in relation to a code of conduct complaint about a member of staff of council, the general manager must give the complainant reasons in writing for their decision and this shall finalise the consideration of the matter under these procedures.

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

- 5.8 Code of conduct complaints about members of staff of council must be managed in accordance with the relevant industrial instrument or employment contract and make provision for procedural fairness including the right of an employee to be represented by their union.
- 5.9 Sanctions for breaches of the code of conduct by staff depend on the severity, scale and importance of the breach and must be determined in accordance with any relevant industrial instruments or contracts.

How are code of conduct complaints about delegates of council, council advisers and council committee members to be dealt with?

- 5.10 The general manager is responsible for the management of code of conduct complaints about delegates of council and council committee members (other than complaints alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct) and for determining the outcome of such complaints.
- 5.11 The general manager must refer code of conduct complaints about council advisers, delegates of council and council committee members alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct to the Office.
- 5.12 The general manager may decide to take no action in relation to a code of conduct complaint about a delegate of council or a council committee member other than one requiring referral to the Office under clause 5.11 where they consider that no action is warranted in relation to the complaint.

- 5.13 Where the general manager decides to take no action in relation to a code of conduct complaint about a delegate of council or a council committee member, the general manager must give the complainant reasons in writing for their decision and this shall finalise the consideration of the matter under these procedures.
- 5.14 Where the general manager considers it to be practicable and appropriate to do so, the general manager may seek to resolve code of conduct complaints about delegates of council or council committee members, by alternative means such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour. The resolution of a code of conduct complaint under this clause is not to be taken as a determination that there has been a breach of the council's code of conduct.
- 5.15 Where the general manager resolves a code of conduct complaint under clause 5.14 to the general manager's satisfaction, the general manager must notify the complainant in writing of the steps taken to resolve the complaint and this shall finalise the consideration of the matter under these procedures.
- 5.16 Sanctions for breaches of the code of conduct by delegates of council and/or council committee members depend on the severity, scale and importance of the breach and may include one or more of the following:
- a) censure
 - b) requiring the person to apologise to any person or organisation adversely affected by the breach in such a time and form specified by the general manager
 - c) prosecution for any breach of the law

- d) removing or restricting the person's delegation
 - e) removing the person from membership of the relevant council committee.
- 5.17 Prior to imposing a sanction against a delegate of council or a council committee member under clause 5.16, the general manager or any person making enquiries on behalf of the general manager must comply with the requirements of procedural fairness. In particular:
- a) the substance of the allegation (including the relevant provision/s of the council's code of conduct that the alleged conduct is in breach of) must be put to the person who is the subject of the allegation, and
 - b) the person must be given an opportunity to respond to the allegation, and
 - c) the general manager must consider the person's response in deciding whether to impose a sanction under clause 5.16.

How are code of conduct complaints about administrators to be dealt with?

- 5.18 The general manager must refer all code of conduct complaints about administrators to the Office for its consideration.
- 5.19 The general manager must notify the complainant of the referral of their complaint in writing.

How are code of conduct complaints about councillors to be dealt with?

- 5.20 The general manager must refer the following code of conduct complaints about councillors to the Office:
- a) complaints alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct
 - b) complaints alleging a failure to comply with a requirement under the code of conduct to disclose and appropriately manage conflicts of interest arising from political donations (see section 328B of the LGA)
 - c) complaints alleging a breach of the provisions relating to the maintenance of the integrity of the code of conduct contained in Part 9 of the code of conduct
 - d) complaints that are the subject of a special complaints management arrangement with the Office under clause 5.49.
- 5.21 Where the general manager refers a complaint to the Office under clause 5.20, the general manager must notify the complainant of the referral in writing.
- 5.22 The general manager may decide to take no action in relation to a code of conduct complaint about a councillor, other than one requiring referral to the Office under clause 5.20, where they consider that no action is warranted in relation to the complaint.

- 5.23 Where the general manager decides to take no action in relation to a code of conduct complaint about a councillor, the general manager must give the complainant reasons in writing for their decision within 21 days of receipt of the complaint and this shall finalise the consideration of the matter under these procedures.
- 5.24 Where the general manager considers it to be practicable and appropriate to do so, the general manager may seek to resolve code of conduct complaints about councillors, other than those requiring referral to the Office under clause 5.20, by alternative means such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour. The resolution of a code of conduct complaint under this clause is not to be taken as a determination that there has been a breach of the council's code of conduct.
- 5.25 Where the general manager resolves a code of conduct complaint under clause 5.24 to the general manager's satisfaction, the general manager must notify the complainant in writing of the steps taken to resolve the complaint within 21 days of receipt of the complaint and this shall finalise the consideration of the matter under these procedures.
- 5.26 The general manager must refer all code of conduct complaints about councillors, other than those referred to the Office under clause 5.20 or finalised under clause 5.23 or resolved under clause 5.24, to the complaints coordinator.

How are code of conduct complaints about the general manager to be dealt with?

- 5.27 The mayor must refer the following code of conduct complaints about the general manager to the Office:
- a) complaints alleging a breach of the pecuniary interest provisions contained in Part 4 of the code of conduct
 - b) complaints alleging a breach of the provisions relating to the maintenance of the integrity of the code of conduct contained in Part 9 of the code of conduct
 - c) complaints that are the subject of a special complaints management arrangement with the Office under clause 5.49.
- 5.28 Where the mayor refers a complaint to the Office under clause 5.27, the mayor must notify the complainant of the referral in writing.
- 5.29 The mayor may decide to take no action in relation to a code of conduct complaint about the general manager, other than one requiring referral to the Office under clause 5.27, where they consider that no action is warranted in relation to the complaint.
- 5.30 Where the mayor decides to take no action in relation to a code of conduct complaint about the general manager, the mayor must give the complainant reasons in writing for their decision within 21 days of receipt of the complaint and this shall finalise the consideration of the matter under these procedures.

How are Code of Conduct Complaints to be Managed?

- 5.31 Where the mayor considers it to be practicable and appropriate to do so, the mayor may seek to resolve code of conduct complaints about the general manager, other than those requiring referral to the Office under clause 5.27, by alternative means such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour. The resolution of a code of conduct complaint under this clause is not to be taken as a determination that there has been a breach of the council's code of conduct.
- 5.32 Where the mayor resolves a code of conduct complaint under clause 5.31 to the mayor's satisfaction, the mayor must notify the complainant in writing of the steps taken to resolve the complaint within 21 days of receipt of the complaint and this shall finalise the consideration of the matter under these procedures.
- 5.33 The mayor must refer all code of conduct complaints about the general manager, other than those referred to the Office under clause 5.27 or finalised under clause 5.30 or resolved under clause 5.31, to the complaints coordinator.

How are complaints about both the general manager and the mayor to be dealt with?

- 5.34 Where the general manager or mayor receives a code of conduct complaint that alleges a breach of the code of conduct by both the general manager and the mayor, the general manager or mayor must either:
- a) delegate their functions under this part with respect to the complaint to a member of staff of the council other than the general manager where the allegation is not serious, or to a person external to the council, or
 - b) refer the matter to the complaints coordinator under clause 5.26 and clause 5.33.

Referral of code of conduct complaints to external agencies

- 5.35 The general manager, mayor or a conduct reviewer may, at any time, refer a code of conduct complaint to an external agency for its consideration, where they consider such a referral is warranted.
- 5.36 The general manager, mayor or a conduct reviewer must report to the ICAC any matter that they suspect on reasonable grounds concerns or may concern corrupt conduct.
- 5.37 Where the general manager, mayor or conduct reviewer refers a complaint to an external agency under clause 5.35, they must notify the complainant of the referral in writing unless they form the view, on the advice of the relevant agency, that it would not be appropriate for them to do so.

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

5.38 Referral of a matter to an external agency shall finalise consideration of the matter under these procedures unless the council is subsequently advised otherwise by the referral agency.

Disclosure of the identity of complainants

5.39 In dealing with matters under these procedures, information that identifies or tends to identify complainants is not to be disclosed unless:

- a) the complainant consents in writing to the disclosure, or
- b) it is generally known that the complainant has made the complaint as a result of the complainant having voluntarily identified themselves as the person who made the complaint, or
- c) it is essential, having regard to procedural fairness requirements, that the identifying information be disclosed, or
- d) a conduct reviewer is of the opinion that disclosure of the information is necessary to investigate the matter effectively, or
- e) it is otherwise in the public interest to do so.

5.40 Clause 5.39 does not apply to code of conduct complaints made by councillors about other councillors or the general manager.

5.41 Where a councillor makes a code of conduct complaint about another councillor or the general manager, and the complainant councillor considers that compelling grounds exist that would warrant information that identifies or tends to identify them as the complainant not to be disclosed, they may request in writing that such information not be disclosed.

5.42 A request made by a complainant councillor under clause 5.41 must be made at the time they make a code of conduct complaint and must state the grounds upon which the request is made.

5.43 The general manager or mayor, and where the matter is referred to a conduct reviewer, the conduct reviewer, must consider a request made under clause 5.41 before disclosing information that identifies or tends to identify the complainant councillor, but they are not obliged to comply with the request.

5.44 Where a complainant councillor makes a request under clause 5.41, the general manager or mayor or, where the matter is referred to a conduct reviewer, the conduct reviewer, shall notify the councillor in writing of their intention to disclose information that identifies or tends to identify them prior to disclosing the information.

Code of conduct complaints made as public interest disclosures

5.45 These procedures do not override the provisions of the *Public Interest Disclosures Act 1994*. Code of conduct complaints that are made as public interest disclosures under that Act are to be managed in accordance with the requirements of that Act, the council's internal reporting policy, and any guidelines issued by the NSW Ombudsman that relate to the management of public interest disclosures.

5.46 Where a councillor makes a code of conduct complaint about another councillor or the general manager as a public interest disclosure, before the matter may be dealt with under these procedures, the complainant councillor must consent in writing to the disclosure of their identity as the complainant.

5.47 Where a complainant councillor declines to consent to the disclosure of their identity as the complainant under clause 5.46, the general manager or the mayor must refer the complaint to the Office for consideration. Such a referral must be made under section 26 of the *Public Interest Disclosures Act 1994*.

Special complaints management arrangements

5.48 The general manager may request in writing that the Office enter into a special complaints management arrangement with the council in relation to code of conduct complaints made by or about a person or persons.

5.49 Where the Office receives a request under clause 5.48, it may agree to enter into a special complaints management arrangement if it is satisfied that the number or nature of code of conduct complaints made by or about a person or persons has:

- a) imposed an undue and disproportionate cost burden on the council's administration of its code of conduct, or
- b) impeded or disrupted the effective administration by the council of its code of conduct, or
- c) impeded or disrupted the effective functioning of the council.

5.50 A special complaints management arrangement must be in writing and must specify the following:

- a) the code of conduct complaints the arrangement relates to, and
- b) the period that the arrangement will be in force.

5.51 The Office may, by notice in writing, amend or terminate a special complaints management arrangement at any time.

5.52 While a special complaints management arrangement is in force, an officer of the Office (the assessing OLG officer) must undertake the preliminary assessment of the code of conduct complaints specified in the arrangement in accordance with the requirements of Part 6 of these procedures.

5.53 Where, following a preliminary assessment, the assessing OLG officer determines that a code of conduct complaint warrants investigation by a conduct reviewer, the assessing OLG officer shall notify the complaints coordinator in writing of their determination and the reasons for their determination. The complaints coordinator must comply with the recommendation of the assessing OLG officer.

5.54 Prior to the expiry of a special complaints management arrangement, the Office may, at the request of the general manager, review the arrangement to determine whether it should be renewed or amended.

5.55 A special complaints management arrangement shall expire on the date specified in the arrangement unless renewed under clause 5.54.

Part 6:
Preliminary Assessment of
Code of Conduct Complaints
About Councillors or the
General Manager by
Conduct Reviewers

Referral of code of conduct complaints about councillors or the general manager to conduct reviewers

- 6.1 The complaints coordinator must refer all code of conduct complaints about councillors or the general manager that have not been referred to an external agency or declined or resolved by the general manager, mayor or their delegate and that have been referred to them under clauses 5.26 or 5.33, to a conduct reviewer within 21 days of receipt of the complaint by the general manager or the mayor.
- 6.2 For the purposes of clause 6.1, the complaints coordinator will refer a complaint to a conduct reviewer selected from:
- a) a panel of conduct reviewers established by the council, or
 - b) a panel of conduct reviewers established by an organisation approved by the Office.
- 6.3 In selecting a suitable conduct reviewer, the complaints coordinator may have regard to the qualifications and experience of members of the panel of conduct reviewers. Where the conduct reviewer is an incorporated or other entity, the complaints coordinator must also ensure that the person assigned to receive the referral on behalf of the entity meets the selection and eligibility criteria for conduct reviewers prescribed under Part 3 of these procedures.
- 6.4 A conduct reviewer must not accept the referral of a code of conduct complaint where:
- a) they have a conflict of interest in relation to the matter referred to them, or
 - b) a reasonable apprehension of bias arises in relation to their consideration of the matter, or
 - c) they or their employer has entered into one or more contracts with the council (other than contracts relating to the exercise of their functions as a conduct reviewer) in the 2 years preceding the referral, and they or their employer have received or expect to receive payments under the contract or contracts of a value that, when aggregated, exceeds \$100,000, or
 - d) at the time of the referral, they or their employer are the council's legal service provider or are a member of a panel of legal service providers appointed by the council.
- 6.5 For the purposes of clause 6.4(a), a conduct reviewer will have a conflict of interest in a matter where a reasonable and informed person would perceive that they could be influenced by a private interest when carrying out their public duty (see clause 5.2 of the Model Code of Conduct).
- 6.6 For the purposes of clause 6.4(b), a reasonable apprehension of bias arises where a fair-minded observer might reasonably apprehend that the conduct reviewer might not bring an impartial and unprejudiced mind to the matter referred to the conduct reviewer.

- 6.7 Where the complaints coordinator refers a matter to a conduct reviewer, they will provide the conduct reviewer with a copy of the code of conduct complaint and any other information relevant to the matter held by the council, including any information about previous proven breaches and any information that would indicate that the alleged conduct forms part of an ongoing pattern of behaviour.
- 6.8 The complaints coordinator must notify the complainant in writing that the matter has been referred to a conduct reviewer, and advise which conduct reviewer the matter has been referred to.
- 6.9 Conduct reviewers must comply with these procedures in their consideration of matters that have been referred to them and exercise their functions in a diligent and timely manner.
- 6.10 The complaints coordinator may at any time terminate the referral of a matter to a conduct reviewer and refer the matter to another conduct reviewer where the complaints coordinator is satisfied that the conduct reviewer has failed to:
- a) comply with these procedures in their consideration of the matter, or
 - b) comply with a lawful and reasonable request by the complaints coordinator, or
 - c) exercise their functions in a timely or satisfactory manner.
- 6.11 Where the complaints coordinator terminates a referral to a conduct reviewer under clause 6.10, they must notify the complainant and any other affected person in writing of their decision and the reasons for it and advise them which conduct reviewer the matter has been referred to instead.

Preliminary assessment of code of conduct complaints about councillors or the general manager by a conduct reviewer

- 6.12 The conduct reviewer is to undertake a preliminary assessment of a complaint referred to them by the complaints coordinator for the purposes of determining how the complaint is to be managed.
- 6.13 The conduct reviewer may determine to do one or more of the following in relation to a complaint referred to them by the complaints coordinator:
- a) to take no action
 - b) to resolve the complaint by alternative and appropriate strategies such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour
 - c) to refer the matter back to the general manager or, in the case of a complaint about the general manager, the mayor, for resolution by alternative and appropriate strategies such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour
 - d) to refer the matter to an external agency
 - e) to investigate the matter.
- 6.14 In determining how to deal with a matter under clause 6.13, the conduct reviewer must have regard to the complaint assessment criteria prescribed under clause 6.31.

**Preliminary Assessment of Code of Conduct Complaints About
Councillors or the General Manager by Conduct Reviewers**

- 6.15 The conduct reviewer may make such enquiries the conduct reviewer considers to be reasonably necessary to determine what options to exercise under clause 6.13.
- 6.16 The conduct reviewer may request the complaints coordinator to provide such additional information the conduct reviewer considers to be reasonably necessary to determine what options to exercise in relation to the matter under clause 6.13. The complaints coordinator will, as far as is reasonably practicable, supply any information requested by the conduct reviewer.
- 6.17 The conduct reviewer must refer to the Office any complaints referred to them that should have been referred to the Office under clauses 5.20 and 5.27.
- 6.18 The conduct reviewer must determine to take no action on a complaint that is not a code of conduct complaint for the purposes of these procedures.
- 6.19 The resolution of a code of conduct complaint under clause 6.13, paragraphs (b) or (c) is not to be taken as a determination that there has been a breach of the council's code of conduct.
- 6.20 Where the conduct reviewer completes their preliminary assessment of a complaint by determining to exercise an option under clause 6.13, paragraphs (a), (b) or (c), they must provide the complainant with written notice of their determination and provide reasons for it, and this will finalise consideration of the matter under these procedures.
- 6.21 Where the conduct reviewer refers a complaint to an external agency, they must notify the complainant of the referral in writing unless they form the view, on the advice of the relevant agency, that it would not be appropriate for them to do so.
- 6.22 The conduct reviewer may only determine to investigate a matter where they are satisfied as to the following:
- a) that the complaint is a code of conduct complaint for the purposes of these procedures, and
 - b) that the alleged conduct is sufficiently serious to warrant the formal censure of a councillor under section 440G of the LGA or disciplinary action against the general manager under their contract of employment if it were to be proven, and
 - c) that the matter is one that could not or should not be resolved by alternative means.
- 6.23 In determining whether a matter is sufficiently serious to warrant formal censure of a councillor under section 440G of the LGA or disciplinary action against the general manager under their contract of employment, the conduct reviewer is to consider the following:
- a) the harm or cost that the alleged conduct has caused to any affected individuals and/or the council
 - b) the likely impact of the alleged conduct on the reputation of the council and public confidence in it
 - c) whether the alleged conduct was deliberate or undertaken with reckless intent or negligence
 - d) any previous proven breaches by the person whose alleged conduct is the subject of the complaint and/or whether the alleged conduct forms part of an ongoing pattern of behaviour.
- 6.24 The conduct reviewer must complete their preliminary assessment of the complaint within 28 days of referral of the matter to them by the complaints coordinator and notify the complaints coordinator in writing of the outcome of their assessment.
- 6.25 The conduct reviewer is not obliged to give prior notice to or to consult with any person before making a determination in relation to their preliminary assessment of a complaint, except as may be specifically required under these procedures.

29

Referral back to the general manager or mayor for resolution

- 6.26 Where the conduct reviewer determines to refer a matter back to the general manager or to the mayor to be resolved by alternative and appropriate means, they must write to the general manager or, in the case of a complaint about the general manager, to the mayor, recommending the means by which the complaint may be resolved.
- 6.27 The conduct reviewer must consult with the general manager or mayor prior to referring a matter back to them under clause 6.13(c).
- 6.28 The general manager or mayor may decline to accept the conduct reviewer's recommendation. In such cases, the conduct reviewer may determine to deal with the complaint by other means under clause 6.13.
- 6.29 Where the conduct reviewer refers a matter back to the general manager or mayor under clause 6.13(c), the general manager or, in the case of a complaint about the general manager, the mayor, is responsible for implementing or overseeing the implementation of the conduct reviewer's recommendation.
- 6.30 Where the conduct reviewer refers a matter back to the general manager or mayor under clause 6.13(c), the general manager, or, in the case of a complaint about the general manager, the mayor, must advise the complainant in writing of the steps taken to implement the conduct reviewer's recommendation once these steps have been completed.

Complaints assessment criteria

- 6.31 In undertaking the preliminary assessment of a complaint, the conduct reviewer must have regard to the following considerations:
- a) whether the complaint is a code of conduct complaint for the purpose of these procedures
 - b) whether the complaint has been made in a timely manner in accordance with clause 4.4, and if not, whether the allegations are sufficiently serious for compelling grounds to exist for the matter to be dealt with under the council's code of conduct
 - c) whether the complaint is trivial, frivolous, vexatious or not made in good faith
 - d) whether the complaint discloses prima facie evidence of conduct that, if proven, would constitute a breach of the code of conduct
 - e) whether the complaint raises issues that would be more appropriately dealt with by an external agency
 - f) whether there is or was an alternative and satisfactory means of redress available in relation to the conduct complained of
 - g) whether the complaint is one that can be resolved by alternative and appropriate strategies such as, but not limited to, explanation, counselling, training, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour

**Preliminary Assessment of Code of Conduct Complaints About
Councillors or the General Manager by Conduct Reviewers**

- h) whether the issue/s giving rise to the complaint have previously been addressed or resolved
- i) any previous proven breaches of the council's code of conduct
- j) whether the conduct complained of forms part of an ongoing pattern of behaviour
- k) whether there were mitigating circumstances giving rise to the conduct complained of
- l) the seriousness of the alleged conduct (having regard to the criteria specified in clause 6.23)
- m) the significance of the conduct or the impact of the conduct for the council
- n) how much time has passed since the alleged conduct occurred
- o) such other considerations that the conduct reviewer considers may be relevant to the assessment of the complaint.



Part 7:

Investigations of Code of Conduct Complaints About Councillors or the General Manager

What matters may a conduct reviewer investigate?

- 7.1 A conduct reviewer (hereafter referred to as an “investigator”) may investigate a code of conduct complaint that has been referred to them by the complaints coordinator and any matters related to or arising from that complaint.
- 7.2 Where an investigator identifies further separate possible breaches of the code of conduct that are not related to or do not arise from the code of conduct complaint that has been referred to them, they are to report the matters separately in writing to the general manager, or, in the case of alleged conduct on the part of the general manager, to the mayor.
- 7.3 The general manager or the mayor or their delegate is to deal with a matter reported to them by an investigator under clause 7.2 as if it were a new code of conduct complaint in accordance with these procedures.

How are investigations to be commenced?

- 7.4 The investigator must at the outset of their investigation provide a written notice of investigation to the respondent. The notice of investigation must:
- a) disclose the substance of the allegations against the respondent, and
 - b) advise of the relevant provisions of the code of conduct that apply to the alleged conduct, and
 - c) advise of the process to be followed in investigating the matter, and

- d) advise the respondent of the requirement to maintain confidentiality, and
- e) invite the respondent to make a written submission in relation to the matter within a period of not less than 14 days specified by the investigator in the notice, and
- f) provide the respondent the opportunity to address the investigator on the matter within such reasonable time specified in the notice.

- 7.5 The respondent may, within 7 days of receipt of the notice of investigation, request in writing that the investigator provide them with such further information they consider necessary to assist them to identify the substance of the allegation against them. An investigator will only be obliged to provide such information that the investigator considers reasonably necessary for the respondent to identify the substance of the allegation against them.
- 7.6 An investigator may at any time prior to issuing a draft report, issue an amended notice of investigation to the respondent in relation to the matter referred to them.
- 7.7 Where an investigator issues an amended notice of investigation, they must provide the respondent with a further opportunity to make a written submission in response to the amended notice of investigation within a period of not less than 14 days specified by the investigator in the amended notice.
- 7.8 The investigator must also, at the outset of their investigation, provide written notice of the investigation to the complainant, the complaints coordinator and the general manager, or in the case of a complaint about the general manager, to the complainant, the complaints coordinator and the mayor. The notice must:

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

- a) advise them of the matter the investigator is investigating, and
- b) in the case of the notice to the complainant, advise them of the requirement to maintain confidentiality, and
- c) invite the complainant to make a written submission in relation to the matter within a period of not less than 14 days specified by the investigator in the notice.

- 7.13 Where the respondent accepts the opportunity to address the investigator in person, they may have a support person or legal adviser in attendance. The support person or legal adviser will act in an advisory or support role to the respondent only. They must not speak on behalf of the respondent or otherwise interfere with or disrupt proceedings.
- 7.14 The investigator must consider all written and oral submissions made to them in relation to the matter.

Written and oral submissions

- 7.9 Where the respondent or the complainant fails to make a written submission in relation to the matter within the period specified by the investigator in their notice of investigation or amended notice of investigation, the investigator may proceed to prepare their draft report without receiving such submissions.
- 7.10 The investigator may accept written submissions received outside the period specified in the notice of investigation or amended notice of investigation.
- 7.11 Prior to preparing a draft report, the investigator must give the respondent an opportunity to address the investigator on the matter being investigated. The respondent may do so in person or by telephone or other electronic means.
- 7.12 Where the respondent fails to accept the opportunity to address the investigator within the period specified by the investigator in the notice of investigation, the investigator may proceed to prepare a draft report without hearing from the respondent.

How are investigations to be conducted?

- 7.15 Investigations are to be undertaken without undue delay.
- 7.16 Investigations are to be undertaken in the absence of the public and in confidence.
- 7.17 Investigators must make any such enquiries that may be reasonably necessary to establish the facts of the matter.
- 7.18 Investigators may seek such advice or expert guidance that may be reasonably necessary to assist them with their investigation or the conduct of their investigation.
- 7.19 An investigator may request that the complaints coordinator provide such further information that the investigator considers may be reasonably necessary for them to establish the facts of the matter. The complaints coordinator will, as far as is reasonably practicable, provide the information requested by the investigator.

Referral or resolution of a matter after the commencement of an investigation

7.20 At any time after an investigator has issued a notice of investigation and before they have issued their final report, an investigator may determine to:

- a) resolve the matter by alternative and appropriate strategies such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour, or
- b) refer the matter to the general manager, or, in the case of a complaint about the general manager, to the mayor, for resolution by alternative and appropriate strategies such as, but not limited to, explanation, counselling, training, mediation, informal discussion, negotiation, a voluntary apology or an undertaking not to repeat the offending behaviour, or
- c) refer the matter to an external agency.

7.21 Where an investigator determines to exercise any of the options under clause 7.20 after the commencement of an investigation, they must do so in accordance with the requirements of Part 6 of these procedures relating to the exercise of these options at the preliminary assessment stage.

7.22 The resolution of a code of conduct complaint under clause 7.20, paragraphs (a) or (b) is not to be taken as a determination that there has been a breach of the council's code of conduct.

7.23 Where an investigator determines to exercise any of the options under clause 7.20 after the commencement of an investigation, they may by written notice to the respondent, the complainant, the complaints coordinator and the general manager, or in the case of a complaint about the general manager, to the respondent, the complainant, the complaints coordinator and the mayor, discontinue their investigation of the matter.

7.24 Where the investigator discontinues their investigation of a matter under clause 7.23, this shall finalise the consideration of the matter under these procedures.

7.25 An investigator is not obliged to give prior notice to or to consult with any person before making a determination to exercise any of the options under clause 7.20 or to discontinue their investigation except as may be specifically required under these procedures.

Draft investigation reports

7.26 When an investigator has completed their enquiries and considered any written or oral submissions made to them in relation to a matter, they must prepare a draft of their proposed report.

7.27 The investigator must provide their draft report to the respondent and invite them to make a written submission in relation to it within a period of not less than 14 days specified by the investigator.

7.28 Where the investigator proposes to make adverse comment about any other person (an affected person) in their report, they must also provide the affected person with relevant extracts of their draft report containing such comment and invite the affected person to make a written submission in relation to it within a period of not less than 14 days specified by the investigator.

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

7.29 The investigator must consider written submissions received in relation to the draft report prior to finalising their report in relation to the matter.

7.30 The investigator may, after consideration of all written submissions received in relation to their draft report, make further enquiries into the matter. If, as a result of making further enquiries, the investigator makes any material change to their proposed report that makes new adverse comment about the respondent or an affected person, they must provide the respondent or affected person as the case may be with a further opportunity to make a written submission in relation to the new adverse comment.

7.31 Where the respondent or an affected person fails to make a written submission in relation to the draft report within the period specified by the investigator, the investigator may proceed to prepare and issue their final report without receiving such submissions.

7.32 The investigator may accept written submissions in relation to the draft report received outside the period specified by the investigator at any time prior to issuing their final report.

Final investigation reports

7.33 Where an investigator issues a notice of investigation, they must prepare a final report in relation to the matter unless the investigation is discontinued under clause 7.23.

7.34 An investigator must not prepare a final report in relation to the matter at any time before they have finalised their consideration of the matter in accordance with the requirements of these procedures.

7.35 The investigator's final report must:

- a) make findings of fact in relation to the matter investigated, and,
- b) make a determination that the conduct investigated either,
 - i) constitutes a breach of the code of conduct, or
 - ii) does not constitute a breach of the code of conduct, and
- c) provide reasons for the determination.

7.36 At a minimum, the investigator's final report must contain the following information:

- a) a description of the allegations against the respondent
- b) the relevant provisions of the code of conduct that apply to the alleged conduct investigated
- c) a statement of reasons as to why the matter warranted investigation (having regard to the criteria specified in clause 6.23)
- d) a statement of reasons as to why the matter was one that could not or should not be resolved by alternative means
- e) a description of any attempts made to resolve the matter by use of alternative means
- f) the steps taken to investigate the matter
- g) the facts of the matter
- h) the investigator's findings in relation to the facts of the matter and the reasons for those findings
- i) the investigator's determination and the reasons for that determination
- j) any recommendations.

Investigations of Code of Conduct Complaints About Councillors or the General Manager

- 7.37 Where the investigator determines that the conduct investigated constitutes a breach of the code of conduct, the investigator may recommend:
- a) in the case of a breach by the general manager, that disciplinary action be taken under the general manager's contract of employment for the breach, or
 - b) in the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the LGA, or
 - c) in the case of a breach by a councillor, that the council resolves as follows:
 - i) that the councillor be formally censured for the breach under section 440G of the LGA, and
 - ii) that the matter be referred to the Office for further action under the misconduct provisions of the LGA.
- 7.38 Where the investigator proposes to make a recommendation under clause 7.37(c), the investigator must first consult with the Office on their proposed findings, determination and recommendation prior to finalising their report, and must take any comments by the Office into consideration when finalising their report.
- 7.39 Where the investigator has determined that there has been a breach of the code of conduct, the investigator may, in addition to making a recommendation under clause 7.37, recommend that the council revise any of its policies, practices or procedures.
- 7.40 Where the investigator determines that the conduct investigated does not constitute a breach of the code of conduct, the investigator may recommend:
- a) that the council revise any of its policies, practices or procedures
 - b) that a person or persons undertake any training or other education.
- 7.41 The investigator must provide a copy of their report to the complaints coordinator and the respondent.
- 7.42 At the time the investigator provides a copy of their report to the complaints coordinator and the respondent, the investigator must provide the complainant with a written statement containing the following information:
- a) the investigator's findings in relation to the facts of the matter and the reasons for those findings
 - b) the investigator's determination and the reasons for that determination
 - c) any recommendations, and
 - d) such other additional information that the investigator considers may be relevant.
- 7.43 Where the investigator has determined that there has not been a breach of the code of conduct, the complaints coordinator must provide a copy of the investigator's report to the general manager or, where the report relates to the general manager's conduct, to the mayor, and this will finalise consideration of the matter under these procedures.
- 7.44 Where the investigator has determined that there has been a breach of the code of conduct and makes a recommendation under clause 7.37, the complaints coordinator must, where practicable, arrange for the investigator's report to be reported to the next ordinary council meeting for the council's consideration, unless the meeting is to be held within the 4 weeks prior to an ordinary local government election, in which case the report must be reported to the first ordinary council meeting following the election.

7.45 Where it is apparent to the complaints coordinator that the council will not be able to form a quorum to consider the investigator's report, the complaints coordinator must refer the investigator's report to the Office for its consideration instead of reporting it to the council under clause 7.44.

Consideration of the final investigation report by council

7.46 The role of the council in relation to a final investigation report is to impose a sanction if the investigator has determined that there has been a breach of the code of conduct and has made a recommendation in their final report under clause 7.37.

7.47 The council is to close its meeting to the public to consider the final investigation report in cases where it is permitted to do so under section 10A of the LGA.

7.48 Where the complainant is a councillor, they must absent themselves from the meeting and take no part in any discussion or voting on the matter. The complainant councillor may absent themselves without making any disclosure of interest in relation to the matter unless otherwise required to do so under the code of conduct.

7.49 Prior to imposing a sanction, the council must provide the respondent with an opportunity to make a submission to the council. A submission may be made orally or in writing. The respondent is to confine their submission to addressing the investigator's recommendation.

7.50 Once the respondent has made their submission they must absent themselves from the meeting and, where they are a councillor, take no part in any discussion or voting on the matter.

7.51 The council must not invite submissions from other persons for the purpose of seeking to rehear evidence previously considered by the investigator.

7.52 Prior to imposing a sanction, the council may by resolution:

- a) request that the investigator make additional enquiries and/or provide additional information to it in a supplementary report, or
- b) seek an opinion from the Office in relation to the report.

7.53 The council may, by resolution, defer further consideration of the matter pending the receipt of a supplementary report from the investigator or an opinion from the Office.

7.54 The investigator may make additional enquiries for the purpose of preparing a supplementary report.

7.55 Where the investigator prepares a supplementary report, they must provide copies to the complaints coordinator who shall provide a copy each to the council and the respondent.

7.56 The investigator is not obliged to notify or consult with any person prior to submitting the supplementary report to the complaints coordinator.

7.57 The council is only required to provide the respondent a further opportunity to make an oral or written submission on a supplementary report if the supplementary report contains new information that is adverse to them.

Investigations of Code of Conduct Complaints About Councillors or the General Manager

- 7.58 A council may by resolution impose one of the following sanctions on a respondent:
- a) in the case of a breach by the general manager, that disciplinary action be taken under the general manager's contract of employment for the breach, or
 - b) in the case of a breach by a councillor, that the councillor be formally censured for the breach under section 440G of the LGA, or
 - c) in the case of a breach by a councillor:
 - i) that the councillor be formally censured for the breach under section 440G of the LGA, and
 - ii) that the matter be referred to the Office for further action under the misconduct provisions of the LGA.
- 7.59 Where the council censures a councillor under section 440G of the LGA, the council must specify in the censure resolution the grounds on which it is satisfied that the councillor should be censured by disclosing in the resolution, the investigator's findings and determination and/or such other grounds that the council considers may be relevant or appropriate.
- 7.60 The council is not obliged to adopt the investigator's recommendation. Where the council proposes not to adopt the investigator's recommendation, the council must resolve not to adopt the recommendation and state in its resolution the reasons for its decision.
- 7.61 Where the council resolves not to adopt the investigator's recommendation, the complaints coordinator must notify the Office of the council's decision and the reasons for it.

Part 8:

Oversight and Rights of Review

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The Office's powers of review

- 8.1 The Office may, at any time, whether or not in response to a request, review the consideration of a matter under a council's code of conduct where it is concerned that a person has failed to comply with a requirement prescribed under these procedures or has misinterpreted or misapplied the standards of conduct prescribed under the code of conduct in their consideration of a matter.
- 8.2 The Office may direct any person, including the council, to defer taking further action in relation to a matter under consideration under the council's code of conduct pending the completion of its review. Any person the subject of a direction must comply with the direction.
- 8.3 Where the Office undertakes a review of a matter under clause 8.1, it will notify the complaints coordinator and any other affected persons, of the outcome of the review.

Complaints about conduct reviewers

- 8.4 The general manager or their delegate must refer code of conduct complaints about conduct reviewers to the Office for its consideration.
- 8.5 The general manager must notify the complainant of the referral of their complaint about the conduct reviewer in writing.
- 8.6 The general manager must implement any recommendation made by the Office as a result of its consideration of a complaint about a conduct reviewer.

Practice rulings

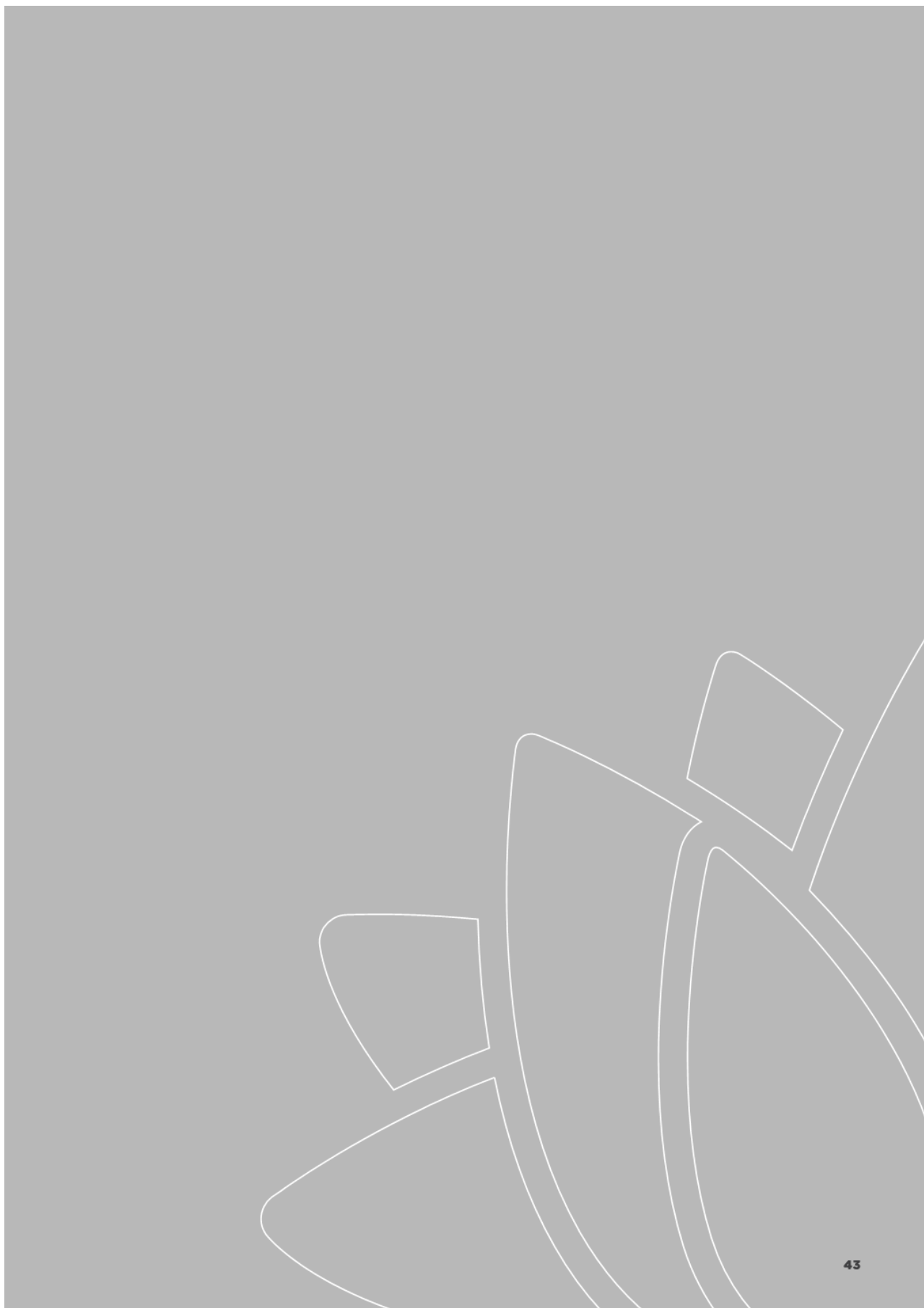
- 8.7 Where a respondent and an investigator are in dispute over a requirement under these procedures, either person may make a request in writing to the Office to make a ruling on a question of procedure (a practice ruling).
- 8.8 Where the Office receives a request in writing for a practice ruling, the Office may provide notice in writing of its ruling and the reasons for it to the person who requested it and to the investigator, where that person is different.
- 8.9 Where the Office makes a practice ruling, all parties must comply with it.
- 8.10 The Office may decline to make a practice ruling. Where the Office declines to make a practice ruling, it will provide notice in writing of its decision and the reasons for it to the person who requested it and to the investigator, where that person is different.

Review of decisions to impose sanctions

- 8.11 A person who is the subject of a sanction imposed under Part 7 of these procedures other than one imposed under clause 7.58, paragraph (c), may, within 28 days of the sanction being imposed, seek a review of the investigator's determination and recommendation by the Office.
- 8.12 A review under clause 8.11 may be sought on the following grounds:
- a) that the investigator has failed to comply with a requirement under these procedures, or
 - b) that the investigator has misinterpreted or misapplied the standards of conduct prescribed under the code of conduct, or
 - c) that in imposing its sanction, the council has failed to comply with a requirement under these procedures.

Procedures for the Administration of the Model Code of Conduct for Local Councils in NSW

- 8.13 A request for a review made under clause 8.11 must be made in writing and must specify the grounds upon which the person believes the investigator or the council has erred.
- 8.14 The Office may decline to conduct a review, in cases where the grounds upon which the review is sought are not sufficiently specified.
- 8.15 The Office may undertake a review of a matter without receiving a request under clause 8.11.
- 8.16 The Office will undertake a review of the matter on the papers. However, the Office may request that the complaints coordinator provide such further information that the Office considers reasonably necessary for it to review the matter. The complaints coordinator must, as far as is reasonably practicable, provide the information requested by the Office.
- 8.17 Where a person requests a review under clause 8.11, the Office may direct the council to defer any action to implement a sanction. The council must comply with a direction to defer action by the Office.
- 8.18 The Office must notify the person who requested the review and the complaints coordinator of the outcome of the Office's review in writing and the reasons for its decision. In doing so, the Office may comment on any other matters the Office considers to be relevant.
- 8.19 Where the Office considers that the investigator or the council has erred, the Office may recommend that a decision to impose a sanction under these procedures be reviewed. Where the Office recommends that the decision to impose a sanction be reviewed:
- a) the complaints coordinator must, where practicable, arrange for the Office's determination to be tabled at the next ordinary council meeting unless the meeting is to be held within the 4 weeks prior to an ordinary local government election, in which case it must be tabled at the first ordinary council meeting following the election, and
 - b) the council must:
 - i) review its decision to impose the sanction, and
 - ii) consider the Office's recommendation in doing so, and
 - iii) resolve to either rescind or reaffirm its previous resolution in relation to the matter.
- 8.20 Where, having reviewed its previous decision in relation to a matter under clause 8.19(b), the council resolves to reaffirm its previous decision, the council must state in its resolution its reasons for doing so.



Part 9:

Procedural Irregularities

Procedural Irregularities

- 9.1 A failure to comply with these procedures does not, on its own, constitute a breach of the code of conduct, except as may be otherwise specifically provided under the code of conduct.
- 9.2 A failure to comply with these procedures will not render a decision made in relation to a matter invalid where:
 - a) the non-compliance is isolated and/or minor in nature, or
 - b) reasonable steps are taken to correct the non-compliance, or
 - c) reasonable steps are taken to address the consequences of the non-compliance.

Part 10:

Practice Directions

Practice Directions

- 10.1 The Office may at any time issue a practice direction in relation to the application of these procedures.
- 10.2 The Office will issue practice directions in writing, by circular to all councils.
- 10.3 All persons performing a function prescribed under these procedures must consider the Office's practice directions when performing the function.



Part 11:

Reporting Statistics on Code of Conduct Complaints About Councillors and the General Manager

Reporting Statistics on Code of Conduct Complaints About Councillors and the General Manager

- 11.1 The complaints coordinator must arrange for the following statistics to be reported to the council within 3 months of the end of September of each year:
- a) the total number of code of conduct complaints made about councillors and the general manager under the code of conduct in the year to September (the reporting period)
 - b) the number of code of conduct complaints referred to a conduct reviewer during the reporting period
 - c) the number of code of conduct complaints finalised by a conduct reviewer at the preliminary assessment stage during the reporting period and the outcome of those complaints
 - d) the number of code of conduct complaints investigated by a conduct reviewer during the reporting period
 - e) without identifying particular matters, the outcome of investigations completed under these procedures during the reporting period
 - f) the number of matters reviewed by the Office during the reporting period and, without identifying particular matters, the outcome of the reviews, and
 - g) the total cost of dealing with code of conduct complaints made about councillors and the general manager during the reporting period, including staff costs.
- 11.2 The council is to provide the Office with a report containing the statistics referred to in clause 11.1 within 3 months of the end of September of each year.

Part 12:

Confidentiality

50

- 12.1 Information about code of conduct complaints and the management and investigation of code of conduct complaints is to be treated as confidential and is not to be publicly disclosed except as may be otherwise specifically required or permitted under these procedures.
- 12.2 Where a complainant publicly discloses information on one or more occasions about a code of conduct complaint they have made or purported to make, the general manager or their delegate may, with the consent of the Office, determine that the complainant is to receive no further information about their complaint and any future code of conduct complaint they make or purport to make.
- 12.3 Prior to seeking the Office's consent under clause 12.2, the general manager or their delegate must give the complainant written notice of their intention to seek the Office's consent, invite them to make a written submission within a period of not less than 14 days specified by the general manager or their delegate, and consider any submission made by them.
- 12.4 In giving its consent under clause 12.2, the Office must consider any submission made by the complainant to the general manager or their delegate.
- 12.5 The general manager or their delegate must give written notice of a determination made under clause 12.2 to:
- a) the complainant
 - b) the complaints coordinator
 - c) the Office, and
 - d) any other person the general manager or their delegate considers should be notified of the determination.
- 12.6 Any requirement under these procedures that a complainant is to be provided with information about a code of conduct complaint that they have made or purported to make, will not apply to a complainant the subject of a determination made by the general manager or their delegate under clause 12.2.
- 12.7 Clause 12.6 does not override any entitlement a person may have to access to council information under the *Government Information (Public Access) Act 2009* or to receive information under the *Public Interest Disclosures Act 1994* in relation to a complaint they have made.





Quarterly Review Report
Delivery Program & Operational Plan Actions
Q4, 2019/2020

leadership

Develop an engaged and connected community

Provide clear and transparent communication to the community.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide a diverse range of mediums to communicate with the community.	1.1.1.1	Ensure regular communication provided through adopted measures.	Communications Officer	Number of COGs issued. Number of Media Releases vs % coverage. Number Social Media engagements. Number of Social Media followers. Minimum of 10 Community Catchups per quarter.	Council continues to use a variety of mediums to get messages to the Community. 32 media releases were sent out, with a 100% coverage through media outlets and Council's Catch Up Publication which is now printed weekly as well as available online through social media and the Council website. COG and Catch Up emails are being sent on a weekly basis, with the Yambil Street Update e-news sent out as needed. Facebook continues to grow in popularity with 5,605 likers, with engagement increasing 67% during the quarter. A Council Instagram account was activated during this quarter, with the account

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					having 434 followers. Radio continues to be a popular medium with the weekly Council call ins remaining relevant and providing current information.
Provide interactive websites for all Council facilities.	1.1.2.1	Review of current website design, functionality and content 2019/2020.	Communications Officer	Number of website hits across the organisation.	Council's website provides a user friendly platform for locals and visitors to receive up to date information. There were 20,131 users across 36,662 sessions, and 2.42 pages viewed per session for the quarter (main website). Work on a new website design will commence later in 2020.
				New site rolled out during 2019/20.	

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide opportunities for the community to interact with Council and staff.	1.1.3.1	Provide Committees, Working Groups to enable community input to Council services and facilities.	Director - Economic and Organisational Development	Number of Committee and Working Group recommendations to Council.	Regular calendar of Committee and Working Groups and Minutes reported to Council for adoption. Committees and Working Groups meetings suspended due to COVID19 restrictions. Term of Committees extended due to extension of election timeframes. Updates to community members of Committees provided online. Community updates provided via social media and Council newsletters

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	1.1.3.2	Maintain an active social media presence; provide Workshops, interactive meetings and community engagement sessions in accordance with the Community Engagement Strategy.	Communications Officer	Number of community engagement sessions per quarter.	Facebook continues to be a popular medium for engaging with the community. 5,605 likers and engagement up 67%. Community engagement highlights include Council Cafe, positions vacant, public notifications. March saw the beginning of the COVID-19 pandemic with Council's facebook page providing valuable information for followers. The pandemic also altered how we engage with the community, with social media proving to be a vital source for Council information including updates, notices, road closures, positions vacant etc. Consultation sessions moved online through ZOOM, as were Council Meetings with more people 'attending' these virtual meetings and workshops that we have historically in person. Council Cafe also went virtual throughout the pandemic.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Inform community of Council decisions.	1.1.4.1	Council and Committee Agendas and Minutes prepared and distributed within agreed timeframes.	Director - Economic and Organisational Development	Council and Committee Minutes uploaded to Council website.	Council Meetings held twice monthly. Committee meetings started returning to normal schedule in June 2020.
Tourism and event information collated and distributed to the community.	1.1.5.1	Key events, good news stories, workshops and regional articles collated and distributed to stakeholders and operators.	Tourism Manager	E Newsletter sent out monthly. Facebook continues to grow by 15%.	Monthly Tourism Talk e-news, Quarterly tourism report, Seasonal Event Guide (Covid has interrupted the run on this but we are still delivering the best we can under the current circumstances).

Be well informed, proactive and responsive to current issues that impact our community.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Assist our community and State Government to maximise positive outcomes from secondary education infrastructure investment in Griffith.	1.2.1.1	Council to provide feedback to NSW Education Department during planning and construction phases. (Option 1 - new secondary school. Option 2 - upgrading Griffith High School and Wade High School.)	General Manager	Regular engagement with Department of Education.	Planning phase completed. NSW Government has commenced construction at Murrumbidgee Regional High School September 2019.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide a robust Council Committee and Working Group of structure.	1.2.3.1	Implementation of a new Council Committee and Working Group structure.	Director - Economic and Organisational Development	Number of meetings postponed due to lack of quorum.	Term of Committees and Working Groups extended to 2021 due to reschedule of Council election.
				Number of committee recommendations to Council.	
Maintain two way dialogue with Community Opinion Group (COG).	1.2.4.1	COG is consulted on key projects and issues impacting the community.	Communications Officer	Minimum 3 communications to COG per quarter.	COG proved to be an important tool throughout COVID-19, assisting in getting important information to registered users. Council now also sends out the weekly Council Catch Up to the COG members, of which there were 3 dedicated COGs and 11 Council Catch Ups.
Keep abreast of emerging trends and issues through internal monitoring.	1.2.5.1	Investigate mediums and technologies to enable improved information flow and reporting.	Communications Officer	Reports to SMT as required.	The final quarter of 2020 saw the COVID-19 pandemic affect Griffith with the closure of The Area News. As a result, Council began to print the Council Catch Up locally and now distributes 500 copies through local

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					outlets, is emailed to more than 2,500 subscribers, posted to our website and reaches more than 5,500 people weekly through social media. Going predominantly online has assisted in a greater reach with our information, publications, notices, workshops and meetings. ZOOM meetings streamed live has been very popular with more people viewing the live feeds than would have attended in person historically. Council is seeing an increase in engagement through our website and social media, receiving a lot of feedback through posts, messages and the online forms. An Instagram account was created in June 2020 and is already proving to be popular with users. The Communications Strategy was adopted this quarter.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Investigate options to improve Councillor interaction with constituents.	1.2.6.1	Provide opportunities for Councillor interaction and investigate online communication options.	Communications Officer	Number of Community Workshops/Mornings in the Mall held. Number of online sessions held.	Councillors are provided with the opportunity to engage with the community through the Community Catch Up and various community consultation sessions. The implementation of Council Cafe provides another way for Councillors to be involved and engage with the community, however this has been limited due to the COVID-19 pandemic. During this quarter, Councillors were given the opportunity to speak about their committees (as Chairpersons) as meetings were suspended due to COVID-19. These articles were published on the Council website, on Facebook and included in each edition of the Council Catch Up.
Investigate ways to improve Internal Communications.	1.2.7	Provide Internal Communications such as staff newsletters and staff intranet.	Communications Officer	Review Extranet functionality and design.	The Staff newsletter, Council Capers, is issued to all Staff, with three sent out this quarter. Council

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Number of Staff Newsletters distributed.	Capers updates Staff with news and upcoming events. The new Extranet is live and is a valuable source of information and resources.

Work together to achieve our goals

Actively engage with State, Federal and non-government agencies in a local advocacy role.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Griffith City Council seeks leadership role with implementation of Joint Organisation of Councils (JOs) initiative.	2.1.1.1	Griffith City Council will take a proactive role in the strategic direction of the Riverina and Murray Joint Organisation (RAMJO) of Councils.	General Manager	The Riverina Murray RAMJO was established in accordance with State Government framework.	GM attends RAMJO GM Meetings. Mayor and GM attend all Board Meetings. Active participation in prioritisation of actions for the JO.
Council actively lobbies Government agencies to provide infrastructure to support our growing City of Griffith and Western Riverina.	2.1.2.1	Construct remaining sections of Griffith Industrial Link Road.	General Manager	Griffith Industrial Link Road stages funded in operational budgets.	Funding secured to complete works. Funding secured to replace and widen causeway Jones Road. Litigation proceeding to resolve dispute with landholder causing significant delay with completion of Thorne Rd West/Walla Avenue Intersection works.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Ongoing liaison with State and Federal and non-government agencies on matters of relevance.	2.1.3.1	Meetings held as required.	Director - Economic and Organisational Development	Number of meetings with State and Federal representatives with Mayor and or GM.	Engagement has increased due to COVID 19. Engagement now changed to utilising online platforms such as MS Teams, Zoom, Webex and others which enables greater engagement opportunities.
Lobby with and on behalf of agencies to State and Federal governments on matters which affect the community.	2.1.4.1	Meet with key stakeholders and lobby State and Federal governments on current issues which affect the community.	Community Development Coordinator	Number of meetings and projects.	Ongoing committee meetings and interagency meetings with relevant stakeholders including Multicultural NSW, Youth, Australian Drug Foundation and Community meetings.
Work with Destination NSW, Destination Riverina Murray, Thrive Riverina and the Kidman Way promotional committee.	2.1.5.1	Respond to marketing/media requests from DRM. Attend Thrive and Kidman Way meetings.	Tourism Manager	Destination Riverina Murray, Thrive Riverina and Kidman Way key projects circulated to the Tourism and Events Committee.	Collaborative projects established and meetings held/attended. Collaborations undertaken with Destination Riverina Murray, Destination NSW, Kidman Way Promotional Committee, Riverina Winemakers, local and regional industry and operators/ ambassadors.

Partner with and provide support to organisations who deliver services and programs locally.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Explore opportunities to partner with NSW Department of Education in regard to Secondary Education investment in Griffith.	2.2.1.1	Seek funding partnerships with NSW Education and PCYC NSW to complete funding profile for Regional Sporting Precinct Project.	General Manager	Seek funding patrons by 31/12/19.	Regional Sports Complex (West End Stadium and Oval) component. Negotiations continuing with PCYC including proposal by GCC to PCYC. Detailed design being progressed on basis that PCYC will not be progressing partnership with Council. Construction commenced on new 50m pool at Griffith Regional Aquatic Leisure Centre. Completion scheduled for January 2021.
Construct Griffith Community Centre.	2.2.2.1	Construct Griffith Community Centre in partnership with Griffith Community Centre Inc.	General Manager	Funding deed signed off.	Contract for design and construction of Community Centre incorporating Country Universities Centre awarded via Council resolution 10 March. Construction to commence August 2020.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide opportunities for community groups to access grant funding.	2.2.3.1	Deliver two rounds of Community Grant funding and four information sessions each year.	Community Development Coordinator	Number of grant applications received and number of grants awarded. Number of grant information sessions/workshops held.	Two rounds of grants delivered and four information workshops.
	2.2.3.2	Support Club Grants NSW to allocate funds.	Community Development Coordinator	Number of Club Grants allocated.	The 2019 ClubGRANTS round awarded just under \$90,000 to a range of local community groups. 2020 funding round was postponed due to COVID19 restrictions.
Collaborate with local tourism operators by building and growing relationships.	2.2.4.1	Hold a quarterly Tourism Social Networking evening.	Tourism Manager	4 sessions held per year. maintain growing attendance.	Four sessions held per year. Maintain growing attendance. Unfortunately due to Covid our sessions weren't able to go ahead as planned post March for 2020.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	2.2.4.2	Regular contact with operators on site, phone, email.	Tourism Manager	4 visits per year to major operators & 2 workshops that extend skill and knowledge. Regular Operator famils.	Continually and consistently identifying and establishing opportunities for our operators.

Maximise opportunities to secure external funding for partnerships, projects and programs to improve the quality of life for residents and visitors.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Identify funding opportunities for the improvement of the regional and local road networks.	2.3.1.1	Apply for relevant grants and identify projects.	Director - Infrastructure & Operations	Number of grant applications submitted and successful grants obtained.	Announcement made for Boorga and Dickie Road - Successful - Joint funding from Federal Government and NSW Government Fixing Local Roads.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Seek appropriate funding to implement the actions and priorities outlined in the Pedestrian Access Mobility Plan (PAMP) and Bicycle Plan.	2.3.2.1	Apply for relevant grant funding opportunities to undertake construction of footpaths and cycleways.	Director - Infrastructure & Operations	Number of grant applications submitted and successful grants obtained.	Application has been completed for Merrigal Street and Sidlow Road, although yet to be confirmed for the 2020/21 TfNSW Active Transport Program. Additional funds have been confirmed for the Hanwood Cycleway to install street lighting and complete the road crossing on Kidman Way south of Sangster Crescent.
Develop and maintain a network of grant sources to identify grant opportunities.	2.3.3.1	Provide monthly report to Senior Management Team on grants available and applied for.	Finance Manager	Number of grants applied for and received.	Report is provided to Senior Management Team on a monthly basis.
Investigate external funding opportunities to support the Griffith Playground Strategy (2014) and Griffith CBD Strategy (2015) rollout.	2.3.4.1	Apply for external funding for approved Urban Design Projects.	Principal Planner Urban Design & Strategic Planning	Grants applied for and grants awarded.	Ongoing. Apply for all available Grant Funding. Aim to be 100% successful with Grant Funding applications.
	2.3.4.2	Apply for grant funding.	Principal Planner Urban Design & Strategic Planning	Grants applied for and grants awarded.	Ongoing, looking for funding streams and using Council budget funds for seed money.

Develop partnerships with industry and agriculture leaders.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Encourage existing partnerships with tertiary education providers that support quality education pathways for Griffith students.	2.4.1.1	Establish Country Universities Centre Weestern Riverina in Griffith.	General Manager	Funding deeds signed with NSW and Federal Government.	Western Riverina Country Universities Centre (Griffith) operational 4 July 2019. Official Opening of Griffith and Leeton Centres 18 October 2019.
Collaborate with food and wine industry to ensure Griffith becomes top of mind in the area of authentic wine and culinary experiences in Australia.	2.4.2.1	Establish networks and collaborate with food and wine industry leaders to increase profile of Griffith region as a foodie destination.	Tourism Manager	At least one media famil per year and 2 articles published.	Our new Visitor Guide which was launched in March 2020 (pre Covid) has a huge focus on the local food and wine industry which has been a consistent focus in all marketing campaigns being delivered. We recently partnered with Riverina Winemakers for a feature in Gourmet Traveller Magazine.

Develop partnerships to provide leadership in irrigation, water efficiency and availability.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain strategic and operational relationships with Murrumbidgee Irrigation.	2.5.1.1	Work with MI to contribute to a Master Plan to assist with addressing Blue Green Algae at Lake Wyangan.	General Manager	Discuss circulation of water at Lake Wyangan with a view to improving water quality.	Tender awarded for construction of Sedimentation Ponds and Wetland.
Provide ongoing support for the Build More Dams Action Group.		Convene Build More Dams Action Group meetings as required.	Director - Utilities	Number of meetings held.	Meetings are held when there is an item required for discussion on the agenda.

Plan and lead with good governance

Undertake Council activities within a clear framework of strategic planning, policies, procedures and service standards.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Council's Integrated Planning and Reporting suite of documents developed, outcomes reported and documents reviewed in accordance with statutory requirements.	3.1.1.1	Operational Plan developed, exhibited and adopted by Council by June 2020. Progress reports provided to Council.	General Manager	IP&R documents prepared in accordance with statutory requirements.	2020/21 Operational Plan Adopted by Council 23 June 2020 Meeting.
Ongoing monitoring of Customer Focus Review outcomes.	3.1.3.1	Monitor customer contact and transactions on a regular basis.	Director - Sustainable Development	Analysis of telephone contact data. Survey of customer experience. CRM resolution performance. Customer Complaint resolution performance. Quarterly customer service report prepared and communicated.	Detailed weekly and monthly report produced and reviewed

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide a risk management framework.	3.1.4.1	Review Risk Register and develop Risk Management Action Plans.	Human Resources and Risk Manager	Risk Register reviewed. Risk Management Action Plans developed and communicated annually.	Unfortunately due to Covid-19 and time constraints, this project has not been completed during this 2019/2020 financial year. Time will be allocated for the Insurance and Recover at Work Coordinator to start having conversations with Managers and teams regarding information within the Risk Register in PULSE. 2020/2021 the Enterprise Risk Management Framework will be drafted for review by SMT.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Ensure appropriate Internal Audit program is maintained at Griffith City Council.	3.1.5.1	Annual internal audit plan developed.	Governance Manager	Number of internal audit projects undertaken. Number of internal audit recommendations undertaken.	Internal Auditor completing reports in accordance with annual internal audit plan. The Audit Risk & Improvement Committee has not been able to meet due to Covid 19 restrictions. The following internal audit reviews have been conducted by Council's appointed Internal Auditor and were adopted by Council 28 April 2020. Councillor Payment of Expenses and Provision of Facilities Review (October 2019) Corporate Credit Cards, Gifts and Benefits, Pecuniary Interest Returns (October 2019) Business Continuity Plan Review (December 2019/January 2020) Inventory Management (January 2020). Internal Auditor's reports on Procurement, Grants management and Security of Infrastructure are being prepared.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide a compliant Human Resource Management service to meet legislative and organisational requirements.	3.1.6.1	Undertake review of HR policies.	Human Resources and Risk Manager	HR policies reviewed as per cycle.	2019/2020 actions have been completed. 2020/2021 Financial year review of all HR policies to reflect amendments to the LG NSW (2020) Award.
	3.1.6.2	Provide a relevant training calendar for staff development and compliance.	Workforce Planning Manager	Training Calendar completed and available.	Calendar completed.
	3.1.6.3	Implement Award changes as required.	Human Resources and Risk Manager	Number of Consultative Committee meetings held.	The Consultative Committee met seven (7) times in the 2019/2020 financial year. Due to Covid-19, restricted meetings March and May 2020. Amendment to the Agenda item to reflect changes to the LG (2020) State Award.
Provide effective compliance services including animal control, parking compliance, litter compliance, overgrown	3.1.7.1	Undertake regular patrols of restricted parking areas and school zones.	Planning & Environment Manager	Number of PINS per month. School zone patrols conducted daily during school terms.	Register in HDM maintained and monitored on a weekly basis to indicate presence in school zone. Incident investigations are captured in Council's CRM system.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
vegetation on privately owned land. Respond to stock complaints.	3.1.7.2	Provide and maintain an effective companion animal program and facility.	Planning & Environment Manager	Number of PINS per month. Number of rehomed companion animals per month. Number of stock complaints dealt with.	Pound statistics accurately maintained and reported. Engaging with rehoming groups
	3.1.7.3	Respond to litter complaints in a timely manner.	Planning & Environment Manager	Number of inspections conducted per quarter.	CRM's actioned and monitored on a regular basis .
	3.1.7.4	Maintain a seasonal program for compliance with overgrown vegetation.	Planning & Environment Manager	Number of intention notices sent per quarter.	CRM's actioned and monitored on a regular basis .
Provide governance services to Council.	3.1.8.1	Review public policies as required.	Governance Manager	Local policies reviewed by September 2017.	Utilities Directorate policies presented to Council in June 2020. Council policies are available for public viewing on Council website. Internal policies processes being reviewed.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	3.1.8.2	Ensure compliance with statutory requirements including Public Interest Disclosures, management of Delegations, Disclosures of Councillors and Designated Persons Register.	Governance Manager	Statutory tasks undertaken within guidelines and required time frames.	Review of delegations progressing and Delegations issued to new staff as required. Disclosure of interests forms issued to new designated staff. Disclosures Register updated regularly. Due to Covid 19 online Conflict of Interest forms made available for Councillors and staff to submit electronically.
	3.1.8.3	Coordinate production of Council's Business Papers, Minutes, Committee Agendas and Committee Minutes.	Governance Manager	Agendas and Minutes prepared in accordance with Council policy and deadlines.	Business Paper Agendas and Minutes prepared in accordance with Code of Meeting Practice policy. Council Meetings held - 6 including 2 Extraordinary. Council meetings are being held remotely using Zoom Audio Visual technology and livestreamed on Facebook in line with Covid 19 restrictions and OLG guidelines. Committee and Working Group meetings were suspended from 24 March 2020 due to Covid 19. A Traffic Committee Meeting was held 9 June 2020 (Statutory Committee) to consider items requiring deliberation.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	3.1.8.4	Manage Council's Integrated Planning and Reporting Requirements.	Governance Manager	IP&R undertaken within required time frames including Annual Report, Delivery Program reports, Quarterly reports, review of Delivery Program and Operational Plan.	Quarterly report including KPIs presented to Council 26 May 2020. Operational Plan 2020/21 on public exhibition with a livestreamed community consultation presentation held through Facebook on 21 May 2020. Operational Plan 2020/21 adopted by Council. Community satisfaction survey results analysed.
	3.8.1.5	Coordinate Legal Services Panel in accordance with tender provisions.	Governance Manager	Maintain Legal Services Panel.	No action required this quarter.
	3.8.1.6	Develop induction and ongoing professional activities for Councillors in accordance with the Regulations.	Governance Manager	Number of training opportunities provided.	Councillors have been requested to complete PD in a Box to assess training requirements. Covid 19 has placed restrictions on travel and therefore Councillor training activities have been suspended.
Ensure statutory reporting complies with legislative requirements.	3.1.9.1	Prepare statutory reports within required timeframes.	Governance Manager	Annual Report delivered by 30 November. Statutory reports presented to Council within required timeframes.	Statutory reports prepared within required timeframes.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Facilitate the proactive public release of government information in accordance with legislative and organisational requirements.	3.1.10.1	Respond and assess GIPA applications in a timely manner. Review Information Guide.	Governance Manager	Number of applications approved within statutory timeframes.	1 Formal GIPA finalised in this quarter. Processed in accordance with required timelines. Information Guide was reviewed and adopted June 2020.
Provide efficient, accurate and compliant record management services to both internal and external customers of Council.	3.1.11.1	Continuous monitoring of State Records Act and other related legislation to ensure Council's compliance with record management standards and requirements.	Information Manager	Implement electronic record disposal workflows. Develop Records Risk Register and develop Communication Plan	Risk matrix development for records training undertaken in May 2020. Records Risk Register currently in draft.
	3.1.11.2	Ongoing training and promotion of record management to Council staff with the aim to continually reduce the use of paper-based records and improve search and retrieval of electronic records.	Information Manager	Records management induction training for new staff, monthly refresher training offered for all staff. Group training for departments by request.	IM team conducted 9 records management training sessions with staff during this quarter - 7 new staff inductions & 2 refresher sessions.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	3.1.11.3	Investigation of emerging technologies that can improve record management processes.	Information Manager	Investigation into Trapeze and Objective Connect software for digital DA processes.	NSW Planning Portal continues to be investigated, Blue Beam digital stamping software implemented, and other markup, sharing and electronic signature digital tools researched this quarter.
	3.1.11.4	Continue digitisation of paper based Council records.	Information Manager	Digitisation of paper based Council Business papers. Archive/dispose/digitise contracts, legal documents, basement records and department paper records.	Historical business papers & minutes successfully digitised - electronic files currently being finalised before registering in CM. Disposal of Council paper records stored in basement commenced in June 2020. These records have reached the end of their legal retention period according to NSW State Records General Retention & Disposal Authority 39 - Local Government Records.
	3.1.11.5	Maintain accurate Property and Name and Address data.	Information Manager	Completion of Rural Addressing Project.	Completed.
Provide corporate property services to Council.	3.1.12.4	Coordinate preparation of Plans of Management for Council owned community land.	Director - Sustainable Development	Priority Plans of Management completed.	Plans of Management 12 month program achieved

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	3.1.12.5	Commence the local Crown Land: Number of land parcels transferred to Council and identify local benefits from Crown Land lots.	Director - Sustainable Development	Categories land into precincts	All Crown Land lots classified
Provide reliable IT services within Council.	3.1.13.1	Review all software applications and other programs on an annual basis. Replacement of hardware as required.	Information Technology Manager	PCs to maintain a turnover ratio of 5 years minimum. Annual upgrade of Authority completed. Report on other applications as renewed.	All hardware has been purchased and roll out will be completed by 30th June 2020.
	3.1.13.2	Maintain support services to Council departments.	Information Technology Manager	80% CRMs closed as per service standard.	82% of CRMs closed within service standard.
Land Use Strategy Development	3.1.15.1	Review Council's Land Use Strategy.	Director - Sustainable Development	Strategy meets legislative requirements	Reviewed during the preparation of Local Strategic Planning Statement
Review of Development Control Plans	3.1.16.1	Review and rewrite Council's Development Control Plans (DPCs)	Director - Sustainable Development	Development Control Plans adopted by Council.	Residential DCP reviewed and new DCP created

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Develop Local Strategic Planning Statements (LSPS)	3.1.17	Compile Local Strategic Planning Statements for Griffith.	Director - Sustainable Development	Adoption of Local Strategic Planning Statements.	LSPS finalised for adoption by Council
Griffith Community Participation Plan	3.1.18	Compile a Community Participation Plan for Griffith.	Planning & Environment Manager	Adoption of the Community Participation Plan and implementation of recommendations.	Endorsed by Council December 2019.

Ensure Council's financial sustainability through effective financial management that is transparent and accountable.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Adopt Delivery Program and Operational Plans (Budget) inclusive of 10 Year Long Term Financial Plan.	3.2.1.1	Meet annual statutory reporting requirements.	Finance Manager	Adoption of annual financial statements within OLG guidelines. Adoption of annual operating budget by Council prior to 30 June. Adoption of quarterly operational review reports. Meet OLG financial sustainability ratios.	Statutory reporting requirements for the 2019/2020 year are currently being met. The annual financial statements for the year ending 30 June 2019 were lodged with the OLG on the 24 October 2019 prior to the 31 October 2019 deadline.

love the lifestyle

Ensure Griffith is a great place to live

Enable accessible diversity in housing choice.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Review Planning instruments to encourage development.	4.1.1.2	Investigate land and housing availability with the view to influence supply to meet demand.	Economic Development Coordinator	Affordable housing incentives investigated. Affordable housing strategy.	Strategy adopted. BBR Fund grant received for new project.
Monitor land availability (Residential, Commercial, Industrial, Recreational)	4.1.2.1	Compare actual land take up with projections in the Land Use Strategy during a five year review period.	Planning & Environment Manager	At any period of time the amount of correctly zoned land available for development should out-perform the demand for such land.	Public submissions requested to inform revised LUS
Work with land and property developers to develop residential properties.	4.1.3.1	Work with developers to facilitate construction of residential properties.	Economic Development Coordinator	Number of new housing developments.	Council & Argyle applied for a BBRF Grant for affordable housing development in December. Grant received June 2020.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Griffith Affordable Housing Strategy.	4.1.4	Compile an Affordable Housing Strategy for Griffith.	Director - Sustainable Development	Adoption of the Affordable Housing Strategy and implementation of recommendations.	Housing Strategy adopted by Council

A shared responsibility for the safety of individuals and the community.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Identify and promote road safety projects relevant to Griffith Local Government Area.	4.2.1.1	Investigate strategies to resolve road safety issues.	Road Safety & Traffic Officer	Develop and implement a 3 year road safety action plan and report strategies to the Transport Committee by June 2019.	Five (5) existing projects updated and approved for delivery by TfNSW in the 20/21 financial year. Confirmation of funding by TfNSW is still pending.
Improve public safety by provision of appropriate information signage in public areas.	4.2.2.1	Develop and implement of "Signs as Remote Supervision" in public areas.	Parks & Gardens Manager	Review of existing signage.	Signage has been placed at location as required to meet the policy 'Signs for Remote Supervision'.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Investigate opportunities to fund and develop safer parks and streetscapes consistent with the Crime Prevention Strategy.	4.2.3.1	Install lighting and CCTV in designated areas.	Principal Planner Urban Design & Strategic Planning	Number of installations.	Ongoing. Constantly looking for funding streams to extend the CCTV network Throughout the City.
Review of Crime Prevention Plan.	4.2.4.1	Review local Bureau of Crime Statistics and Research (BOCSAR) data and amend current Crime Prevention Plan.	Community Development Coordinator	Crime Prevention Plan reviewed annually.	BOCSAR crime statistics for Griffith LGA identified the top three crimes as malicious damage, Domestic Violence and stealing. The number of drug detection has increased which might align with the increase in theft.
	4.2.4.2	Work with agencies to create awareness and improve community safety.	Community Development Coordinator	Number of campaigns/meetings held.	Community programs to address alcohol and other drug concerns, trauma and recovery and domestic violence continued across agencies. Pioneer Community Action Group created inclusive events and projects to engage at risk people with agencies to reduce negative behaviours. COVID19 restrictions suspended some activities.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver Food Business Inspections on food premises within the Griffith and surrounding LGA's as required under the NSW Food Act 2003.	4.2.05.1	Undertake Food Business Inspections within the Griffith LGA.	Environment, Health & Sustainability Coordinator	240 X Inspections Griffith LGA/ann.	No High and Medium Risk Food Business inspections within the Griffith LGA undertaken. Routine Food Business inspections were postponed due to COVID-19 restrictions on Food Business operations. 1 x Food Business complaint and 1 x Food Business re-inspection responded to and resolved. All Griffith Food Businesses have been contacted and updated electronically on the latest Food Business COVID-19 advice.
	4.2.05.2	Undertake Food Business Inspections within the Narrandera, Hay and Murrumbidgee LGA's.	Environment, Health & Sustainability Coordinator	80 X Inspections Narrandera LGA/ann. 55 X Inspections Hay LGA/ann. 55 X Inspections Murrumbidgee LGA/ann.	No High and Medium Risk Food Business inspections within Narrandera and Hay LGA's undertaken. Routine Food Business inspections were postponed due to COVID-19 restrictions on Food Business Operations. NSW Food Authority, Food Reports completed for October/November 2019 for both Narrandera and Hay LGA Food Business Inspections. RSAA with Murrumbidgee Council no longer administered.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver Arbovirus Surveillance Program as required by NSW Health.	4.2.06.1	Set and collect Mosquito traps weekly from 2 x sites surrounding Griffith during November to April.	Environment, Health & Sustainability Coordinator	2 X Mosquito Traps set, collected and collections freighted for analysis weekly between November to April. (24 weeks/ann) (48 trappings/ann).	Completed annual Arbovirus Mosquito Monitoring Surveillance (Setting and collecting Mosquito traps) program in March 2020.
	4.2.06.2	Test Sentinel Flock of chickens weekly between November to April.	Environment, Health & Sustainability Coordinator	Sentinel Flock (15 chickens) tested weekly and samples sent for analysis weekly. (24 weeks/ann) (360 tests/ann).	Completed annual Arbovirus Mosquito Monitoring Surveillance (Testing Sentinel Flock) program in March 2020.
Manage Risk Based Performance of Cooling Water Systems as required under the Public Health Regulation 2010.	4.2.07.1	Urgently respond to notifications of high Legionella and HCC test results. Undertake audit of installation of UIN's on Cooling Water Systems. Take receipt of Risk Management Certificates for each Cooling Water System. Maintain UIN register.	Environment, Health & Sustainability Coordinator	Respond to all notifications of High Legionella and HCC (No. unknown). Audit 100 X UIN's. Take receipt of 25 X Risk Management Certificates. Maintain UIN Register for 100 + X Cooling Water Systems. Maintain all Cooling Water System Records Management.	No notifications of High Cooling Water System test results received by GCC. 2 x updated RMP's received. 2 x UIN's for new installed Cooling Water Systems verified. 22 x Cooling Water System Compliance Letters sent to Business Owners/Occupiers reminding them of their responsibility to maintain their systems in accordance with the Public Health Regulation 2012.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver Public Swimming Pool inspections as required under the Public Health Act 2010.	4.2.08.1	Undertake pool sampling of Public Swimming Pools and Spa Pools. Complete pool sampling of Hotel, Motel and Accommodation facilities. Undertake pool sampling of School Pools (Kalinda & GPSO). Undertake sampling of GCC's Splash Park.	Environment, Health & Sustainability Coordinator	35 X pool samples of Public Pools and Spa's/ann. 10 X pool samples of Hotels, Motels and Accommodation facilities/ann. 15 X School pool samples /ann. 5 X GCC Splash Park samples/ann.	Pool sampling of Hotel, Motel and Accommodation facilities completed in 2019 - 2020, Qrt 3 period. Pools closed due to COVID-19 restrictions on Public Swimming Pool and Spa Pool operations.
Deliver On-site Sewage Management inspections as required under NSW Local Government Act 1993 and POEO Act 1997.	4.2.09.1	Undertake On-site Sewage Management inspections on both existing Septic and Aerated Water Treatment Systems (AWTS) as they arise. Issue 'Approvals to Operate'.	Environment, Health & Sustainability Coordinator	18 X On-site Sewage Management inspections/ann. 18 X 'Approvals to Operate' issued/ann.	8 x existing OSSM systems inspected. 4 x Applications to Install an OSSM system received. 2 x Approvals to Install an OSSM system issued. 4 x Approvals to Operate an OSSM system issued.
Deliver Immunisation Clinics as supported by	4.2.10.1	Undertake monthly Early Childhood Immunisation Clinics for vaccination and prevention of childhood preventable diseases.	Environment, Health & Sustainability Coordinator	12 X Monthly Immunisation Clinics delivered/ann.	Monthly Childhood Immunisation Clinics during 2019 - 2020 Qrt 4 have been postponed due to COVID - 19 restrictions.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Griffith City Council and NSW Health.	4.2.10.2	Deliver Annual Flu Vaccinations to all Council staff requesting vaccination.	Environment, Health & Sustainability Coordinator	130 X Annual Flu Vaccinations delivered to Council staff/ann.	190 x GCC staff members were vaccinated as part of the Annual Flu Vaccination program across 2 x separate day clinics during the 2019 - 2020, Qtr. 4 period. Delivery of these clinics was in line and amidst the COVID-19 social distancing restrictions period necessitating considerable extra arrangements and preparations for the successful delivery of these clinics.
Deliver Hairdresser, Beauty and Skin Penetration Inspections within Griffith and Narrandera LGA's as required by NSW Health.	4.2.11.1	Undertake inspections of Griffith LGA Hairdresser, Beauty and Skin Penetration premises including equipment and facilities.	Environment, Health & Sustainability Coordinator	55 X Hairdresser, Beauty and Skin Penetration premise inspections in Griffith LGA/ann.	Inspections of Griffith LGA Hairdresser, Beauty and Skin Penetration premises inspections postponed during 2019 - 2020, Qrt 4 due to COVID-19 restrictions.
	4.2.11.2	Undertake inspections of Narrandera LGA Hairdresser, Beauty and Skin Penetration premises including equipment and facilities.	Environment, Health & Sustainability Coordinator	10 X Hairdresser, Beauty and Skin Penetration premise inspections in Narrandera LGA/ann.	Inspections of Narrandera LGA Hairdresser, Beauty and Skin Penetration premises postponed due to COVID-19 restrictions.
Deliver Mortuary Inspections as required by NSW Health.	4.2.12.1	Undertake inspections of Mortuary premises including equipment and facilities.	Environment, Health & Sustainability Coordinator	4 X Mortuary inspections/ann.	All Griffith LGA Mortuary premise inspections have been postponed during 2019 - 2020 Qrt 4 period due to COVID-19 restrictions.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver Lake Wyangan Water Quality Sampling as required by the Australian Recreational Water Guidelines and Murrumbidgee Regional Algal Coordinating Committee.	4.2.13.1	Undertake regular water samples of Lake Wyangan to determine lake water suitability for Recreational water use.	Environment, Health & Sustainability Coordinator	90 X water samples/ann. (Taken fortnightly between October-April). 30 X water samples (Taken Monthly between May-Sept). 10 X water samples (Taken weekly during 'Red Alerts').	14 x water sampling rounds collected from Lake Wyangan (North) and dispatched to Sydney Water Laboratories for analysis. Further sampling of Lake Wyangan (North) waters undertaken by other units within Sustainable Development post Fish Kill event.

Promote and celebrate our social and cultural diversity.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Prepare and implement Multicultural Engagement Strategy.	4.3.1.1	Work with the multicultural interagency network to prepare draft Multicultural Engagement Strategy (MES).	Community Development Coordinator	Number of consultations held.	Support for Griffith's new arrivals, being a Refugee Friendly Zone and regular multicultural advisory group meetings were held to inform peak bodies and government bodies.
Hold Citizenship Ceremonies as required.	4.3.2.1	Citizenship Ceremonies held as required.	Community Development Coordinator	Number of ceremonies held. Number of people receiving Citizenship.	Unable to undertake final ceremony due to COVID 19 restrictions.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Promote various events to showcase Griffith's social and cultural diversity.	4.3.3.1	Promote and grow events including Spring Fest, Griffith Easter Party, Italian weekend, sports and other new events.	Tourism Manager	Number of events and increase in attendees for these events.	We continue to support and provide opportunities for promotion of key events. A new initiative in August 2019 was the TASTE OF ITALY GRIFFITH marketing campaign which saw an injection of over \$800K into our local economy over that weekend alone.
Organise Australia Day Ceremony.	4.3.4.1	Australia Day Ceremony held.	Community Development Coordinator	Number of nominations received.	26 Australia Day nominees shared with 83 new citizens.

Provide and promote accessibility to services and facilities.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide sufficient aquatic facilities to meet the demands of the community.	4.4.1.2	Complete construction of a 50 m pool.	Director - Business, Cultural & Financial Services	Deliver an accredited competition standard 50 m outdoor pool plus associated filtration infrastructure.	The 50M Pool, Amenities and Plant room component of the Griffith Regional Sports Precinct Project is in track to be delivered by end January 2021. Hines Construction are the construction contractors and have a project plan in place for the above completion. The excavation of the pool is complete along with the majority of concrete work with the Myrtha Pool due on site in mid August.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain the Griffith Regional Aquatic Leisure Centre (GRALC) in accordance with Asset Management Plans.	4.4.2.1	Provide a clean functional and well maintained aquatic facility available to the public.	Leisure Services Manager	Compliance with GRALC Maintenance Schedule.	GRALC was provided in a clean and functional state throughout the year when able to be open. The centre was closed from 12 noon Monday 23 March along with all NSW pools and gyms due to the NSW Public Health Order to restrict the transmission of COVID-19 and reopened. The centre reopened at 8am Saturday 13 June and has continued to operate since that date.
Provide a collection of library material, meeting community and industry standards.	4.4.3.1	Maintain a collection of library material in accordance with State Library guidelines.	Library Manager	Circulation per capita at a minimum of 3.5 times average for each resource. Track number of visits to WRL website - 48% stock less than five years old.	- 2019/20 Circulation per capita for Griffith = 3.89; Griffith and Murrumbidgee Mobile Library = 8.8 - 2019/20 Visits to WRL website = 17,066 - 2019/20 Collection = 69.4% stock < 5 years old
Griffith City Library to facilitate digital inclusion in the community.	4.4.4.1	Provide digital education programs to the community.	Library Manager	Hardware asset less than 5 years old. Number of internet access bookings utilising WiFi and also public computers.	- Public computers upgraded in line with Council IT's five year replacement schedule - 2019/20 wifi logins: 9,061 - 2019/20 public computer sessions: 10,986

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	4.4.4.2	Provide reliable high speed internet and computer equipment.	Library Manager	Maintain ratio of 1 PC per 3,000 residents.	- July 2019-March 2020: 16 public computers - June 2020-ongoing: To ensure adherence to social distancing requirements, public computers have been spaced further apart reducing the number of public computers to 9. - 9 public computers = 1 PC per 2,987 residents
Position the Griffith City Library as a community hub for learning, networking and leisure.	4.4.5.1	Provide a number of Library programs to all sectors of the community.	Library Manager	Provide a quarterly report on visitation per annum (minimum 5 visits per capita). Deliver a minimum of 20 programs annually reflecting the population demographic.	- April-June 2020 Quarterly visitation: 4,540 (Library closed April-May, reopened 1 June 2020) - 2019/20 annual visitation: 94,076 = 3.5 visits per capita - 2019/20 programs: 305 programs attended by 10,478 participants - In-house Library programs suspended since 25 March 2020; replaced with virtual programs such as Rhyme Time, Storytime, and school holiday STEAM activities
	4.4.5.2	Promote the Library facilities for optimum community use.	Library Manager	Report on number of participants in programs quarterly. Aim for 5% per annum increase year on year.	- April-June quarterly program attendance = 0 (in-house programs suspended since 25 March 2020). - 2019/20 program attendance = 10,478

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide Library accommodation and ancillary services to community and industry standards.	4.4.6	Complete development of Theathrette Facility.	Library Manager	Achieve Occupation Certificate for room by 30 December 2019	Occupation Certificate awarded. Room open and grant acquitted.
	4.4.6.1	Provide a clean, functional and well maintained library facility available to the public.	Library Manager	Compliance with Library Maintenance Schedule. Report quarterly.	Building maintenance continues to occur in line with the Library Maintenance Schedule and on an as-needs basis. The most substantial work carried out over the April-June quarter was to enhance COVID-19 safety for staff and customers in preparation for reopening the Library. Works included: - the installation of perspex protection barriers at the customer service desk and door greeter desk - reconfiguration of library shelves and furniture to support social distancing - installation of crowd control systems - barriers and floor stickers - to direct foot traffic and enhance social distancing in high traffic areas such as the customer service desk and public self service stations - installation of numerous wall mounted hand sanitiser units throughout the building

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide access to community services.	4.4.7.1	Maintain an up to date Community Directory.	Community Development Coordinator	Community Directory reviewed annually.	Community Service Directory was updated throughout the year. Notifications were sent out and phone calls made to individual agencies and groups in the Directory.
	4.4.7.2	Work with Inter agency Networks and other organisations on issues impacting the community.	Community Development Coordinator	Number of activities held and projects.	Pioneer Housing Estate continued with youth programs supported by CDAT and Place Plan Mental Health projects, Rural Gambling Awareness week, AOD focus on recovery, support for all Carers and youth engagement Many activities were being developed but cancelled due to COVID 19 with a focus remaining on wellbeing and mental health. Regular meetings were held with Multicultural NSW to oversee impacts of new arrivals and refugees throughout COVID 19 isolation.

Plan for, develop and provide a suitable range of cultural and art facilities, engaging programs and diverse events.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Griffith Regional Theatre will deliver a diverse and engaging program of events that caters to the needs of the community.	4.5.1.1	Develop and deliver high quality, diverse entrepreneurial season that is inclusive of different age, cultural and interest groups in the community.	Griffith Regional Arts & Museum Manager	Deliver a minimum of 16 entrepreneurial shows per calendar year including a minimum of 3 seniors shows, 4 educational/family shows and a minimum of 1 show for the CALD community.	Due to COVID 19 the Theatre was closed throughout this quarter. No season shows were presented, all hirer shows were cancelled or postponed to 2021 or late in 2020. Six season shows were cancelled - one Morning Melodies, 1 drama work, one comedy, 2 children's shows and 1 youth work. Five commercial hires were cancelled or postponed, including sold out shows such as The Wiggles and the Marion musical was cancelled.
	4.5.1.2	Deliver biannual community music production.	Griffith Regional Arts & Museum Manager	Produce and deliver Community Production every 2 years.	Community musical is not due to start until end of 2020.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	4.5.1.3	Deliver annual Theatre Workshops for young people.	Griffith Regional Arts & Museum Manager	Number of Workshops held and number of attendees.	Due to COVID-19 we were unable to run any theatre classes this quarter. The school holiday workshop - focusing on screen skills and working with and to camera - for which we had received funding, also had to be postponed. We hope to be able to recommence classes next quarter.
	4.5.1.4	Marketing strategy developed, reviewed and implemented annually.	Griffith Regional Arts & Museum Manager	Increase audience by 5 - 10 %, increase up take of memberships and subscriptions by 3 - 5% annually.	Our usual marketing activities were largely halted in Q4 due to COVID-19 meaning that all performances were cancelled or postponed.
Provide a well maintained Theatre facility for the public and performers, meeting	4.5.2.1	Provide a clean functional and well maintained Theatre facility available to the public.	Griffith Regional Arts & Museum Manager	Compliance with Theatre Maintenance Schedule.	Renovations at the Theatre were completed this quarter, apart from a few minor finishing touches.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
community and industry standards.	4.5.2.2	Ensure technological facilities are maintained and upgraded to meet current industry standards.	Griffith Regional Arts & Museum Manager	Technology updated as per budget allocation. Annual review against current industry standards.	Technical staff continued to maintain and clean technical equipment this quarter while the theatre was closed due to COVID-19. Replacement of lights with LEDs, and other minor technical replacements and upgrades also occurred in line with maintenance schedule.
Investigate opportunities for sponsorship for the Griffith Regional Theatre.	4.5.3.1	Develop an annual sponsorship strategy for Griffith Regional Theatre.	Griffith Regional Arts & Museum Manager	Number of sponsors engaged with the Theatre.	Due to COVID-19 the planned major sponsorship of Sydney Symphony Orchestra by Capello Rowe was cancelled - along with the performance. It is expected this will be re-instated in 2021 when new dates for the performance are confirmed. Due to cancellation of all

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					season shows due to COVID-19 the season sponsorship by Griffith City Volkswagen was suspended and no payments received. Deakin University came on board as a sponsor for Sunshine Super Girl which is still expected to go ahead this year.
The Griffith Regional Art Gallery will develop and deliver a diverse and engaging program of cultural activities.	4.5.4.1	Develop and deliver annual exhibition program that includes quality touring and locally sourced solo and group exhibitions.	Griffith Regional Arts & Museum Manager	Minimum of 8 exhibitions per year including a minimum of 2 touring exhibitions and a minimum of 2 exhibitions by local artists.	Due to COVID 19 our exhibitions for Q4 were cancelled as the Gallery was closed and the National Portrait Gallery withdrew their tour. In place of these we activated the digital space initiating a series of profile videos for each of the 10 local artists featured in our Each for Equal exhibition which ended 29 March. There were 10

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					videos which received very positive response.
	4.5.4.2	Deliver a minimum of 6 Artspace exhibitions per year including works by local artists and displays of interest to the local community.	Griffith Regional Arts & Museum Manager	Minimum of 6 exhibitions per year including minimum of 3 exhibitions by local artists.	Due to COVID-19 no exhibitions were able to be held at Artspace in Q4 due to Theatre being closed.
	4.5.4.3	Develop and review the annual marketing strategy for the Art Gallery.	Griffith Regional Arts & Museum Manager	Increase community engagement by 5 - 10%.	Due to COVID-19 the Gallery was closed from 20 March to 5 June. This significantly impacted in person visitor numbers for this period. However engagement via online artist talk resulted in 3307 views, from across the country. This is a huge amount of new engagement.
	4.5.4.4	Develop and deliver high quality, diverse schedule of public programs that caters to the needs of different age, cultural and interest groups.	Griffith Regional Arts & Museum Manager	Minimum of 8 public programs delivered annually including a minimum of 2 school holiday programs, minimum of 3 educational programs	Due to COVID -19 the art gallery was closed for over 2 months during this period and once re-opened restrictions meant we were

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				and a minimum of 2 Master Classes.	limited in what we were able to do. Life drawing classes recommenced in June with 8 people at each class. School holiday workshops and other activities are due to recommence in Q1 2020-2021.
Provide a well maintained Art Gallery facility for the public and performers meeting community and industry standards.	4.5.5.1	Provide a clean functional and well maintained Art Gallery facility available to the public.	Griffith Regional Arts & Museum Manager	Compliance with Art Gallery Maintenance Schedule.	Annual maintenance program, including painting of gallery, clearing out of storage areas and filing; and test and tag completed during this quarter in lock down. Plumbing issues fixed.
Develop and manage regional museum collections of historic and social significance to Griffith region and communities.	4.5.6.1	Review and upgrade museum policies and procedures to establish a sound basis for development of the collections including acquisitions and deaccession policies.	Griffith Regional Arts & Museum Manager	Policies upgraded or developed by 30 June 2020.	Collections management and acquisition policy has been drafted and needs to be finalised and presented to Cultural Facilities Committee.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	4.5.6.2	Make recommendations for acquisitions and deaccession of collections in accordance with Strategic Plan and budget requirements. Review collections acquisitions and deaccessions annually.	Griffith Regional Arts & Museum Manager	Exhibits and materials are acquired or deaccessioned in accordance with relevant policies. Reviewed by 30 June annually.	The Curator successfully negotiated to acquire two significant vehicles this quarter to add to the Todd historic vehicle collection and display in new Todd shed. These were two items that were believed to have been intended to be part of original Todd bequest but removed from the first donation list. This is a significant gain for the Museum as they are amongst the most important historic vehicles from Todd's collection.
	4.5.6.3	Utilise collections software to ensure all exhibits are accurately recorded and appropriately documented.	Griffith Regional Arts & Museum Manager	Collections catalogue is updated and reviewed quarterly.	During this quarter the Curator finalised preparation of the Museum's existing database and transferred to Lucidea to upload to the new ARGUS

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					software database. The new database and collections software should be operational next quarter.
	4.5.6.4	Conduct an assessment of current state of Museum buildings to identify conservation needs and develop Asset Maintenance and Restoration Plan according to priority.	Griffith Regional Arts & Museum Manager	Asset Maintenance and Restoration Plan completed by 30 June 2020.	Quarterly review of asset management activities undertaken, and priorities for attention identified. These included replacement of HWS in commercial kitchen and replacement of decking damaged by leaking water. Upgrade of Post Office building - replacement of ceiling and repointing of roof tiles has been identified as next priority.
	4.5.6.5	Conduct an assessment of collections assets to identify conservation needs, and develop program of conservation based on priority. Progress reviewed annually.	Griffith Regional Arts & Museum Manager	Conservation Plan completed for one element of each collection each year.	Volunteer textile group continues to undertake conservation and

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Review 30 June annually.	care of textile items. Post Office building items have been removed and placed in storage in preparation for creation of new radio transmission and radio history exhibition being installed.
	4.5.6.6	Arrange and carry out routine and detailed conversation activities to preserve the collections in accordance with Asset Restoration Plan and budget requirements. Review of maintenance annually.	Griffith Regional Arts & Museum Manager	Compliance with asset Restoration Plan. Review by 30 June annually.	The Todd Shed has been completed and the important Todd vehicle collection has now been moved into this display area where they have been cleaned, and will be preserved from environmental damage as well as being accessible to the public. All collection items in the Post Office building have been cleared out ready for its restoration and display of items telling the story of

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					radio transmission and communications in the region. The Todd shed will be officially opened in the next quarter.
	4.5.6.7	Develop an annual program of exhibition displays, curatorial talks and activities to present the collections in a vibrant and engaging manner.	Griffith Regional Arts & Museum Manager	Two new exhibition displays, 4 curatorial talks, and 3 public programs completed each year.	Due to COVID-19 a number of planned events - a curator talk, first Sunday 'In their Tracks' train tours, and school holiday activities were unable to occur. However the Curator used the time to create a series of videos around significant items in the collections relating to events similar to current pandemic: gold nurse's watch and photos from Griffith during Spanish flu epidemic in 1919 and the Iron Lung used during polio epidemic. These

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					videos have engaged a massive audience, unprecedented in Museum's history, across and beyond the region : Spanish flu video has been viewed 8,900 times and the polio video 3,300 times. The videos were also seen by staff at ANU who invited the Curator to do a zoom talk and presentation as an ANU alumni around her career and work at the Museum, creating even more positive media and engagement.
Develop and manage Pioneer Park as a centre for community and cultural engagement.	4.5.7.1	Develop an annual program of social and cultural activities and events at Griffith Pioneer Park Museum to attract and engage a more diverse local demographic.	Griffith Regional Arts & Museum Manager	Visitor numbers to increase by 5%. Two community cultural events held each year. Increase diversity in annual usage by local community by 3%.	Due to COVID-19 there was very limited programmed community engagement with the Museum. From Q1 2020-21 the playgroup will activate and the

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Murrumbidgee Ukelele club will commence monthly gatherings. School holiday workshops with local Aboriginal artist Cory McKenzie is scheduled for next quarter.
	4.5.7.2	Identify opportunities and develop resources to engage schools and community organisations in interactive learning experiences.	Griffith Regional Arts & Museum Manager	Increase visitation by local and regional school groups by 10%.	Engagement with schools this quarter has been limited due to effects of COVID-19 although curator has received a number of requests for school incursions and has presented in one school this quarter. Further incursions are planned for next quarter as schools re-open to visitors.
Develop and manage Griffith Pioneer Park and Regional Museum	4.5.9.1	Develop facilities and resources to enhance Pioneer Park as a venue for hire and promote it to organisations, businesses and community groups.	Griffith Regional Arts & Museum Manager	Increase hire of facilities by 3%.	The HWS at Myall Park Hall has been replaced and the decking is to be replaced due to water damage. Due

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
as function and event venues.					to COVID-19 no commercial bookings were accepted at the Museum.
	4.5.9.2	Identify opportunities for funding or in-kind assistance to enhance the quality and amenity of facilities for events and functions.	Griffith Regional Arts & Museum Manager	Funding or in-kind assistance secured to upgrade venue facilities.	Additional \$5000 private funding was received from the Griffith section of Wagga Amateur radio club to support upgrade the Post office building for the new radio transmission display. An application was submitted to Clubs NSW for funding to repair the Baptist Church.
Develop and new Strategic Plan incorporating concept for Museum Master Plan for Griffith Pioneer Park Museum.	4.5.10.1	Engage a consultant to undertake strategic/master planning process for Griffith Pioneer Park Museum in consultation with stakeholders including GPPM Working Group, Cultural Facilities Committee and Council.	Griffith Regional Arts & Museum Manager	New 5 year Strategic Plan and Master Plan completed by 30 June 2020.	A draft of the Strategic Plan was completed and a detailed review process completed with Manager and Curator. A second 'final' draft to be submitted early next quarter.

Encourage a socially inclusive community that cares for all age groups and genders, people of different abilities, disadvantaged or minority groups.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Prepare the Disability Inclusion and Access Plan (DIAP) and implement recommendations.	4.6.1.1	Prepare draft, place on exhibition and endorse DIAP.	Community Development Coordinator	DIAP endorsed reviewed and updated annually.	The Disability inclusion and Access Plan was updated. New community members joined the committee providing advice and information. A successful information and movie night was held to acknowledge all carers during Carers Week. Access at a Glance is being developed but is on hold due to COVID 19.
Prepare Youth Engagement Strategy and implement recommendations.	4.6.2.1	Consult with young people to inform the Youth Engagement Strategy (YES) and commence preparation of the Youth Engagement Strategy. Prepare draft YES, place on public exhibition and endorse.	Community Development Coordinator	Number of young people participating in the Griffith Youth Committee and or the number of meetings held and YES endorsed.	Increase in the number of youth engaging through the Griffith Youth Committee. COVID19 has not allowed further consultation. The annual youth

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					survey identified safety, youth suicide and lack of youth activities as issues of concern.
Engage with young people and liaise with local agencies and user groups.	4.6.3.1	Promote and facilitate Youth Week and other events in partnership with Agencies to deliver programs and activities.	Community Development Coordinator	Number of youth activities held in partnership with Council. Number of young people involved in organising events.	Unable to proceed with activity due to COVID 19.
Develop Ageing Strategy.	4.6.4.1	Consult with stakeholders and form a working group to develop an ageing strategy.	Community Development Coordinator	Number of consultations/meetings held.	on hold due to COVID 19
Maintain the Citrus Sculptures (Spring Fest) as one of Griffith's greatest community events.	4.6.5.1	Work with the community to ensure all groups feel welcome to be involved with this significant annual festival.	Tourism Manager	Maintain at least 70 sculptures. Measure increase of Facebook hits and reach and capture the diverse range of Griffith and number of volunteers engaged.	This year will be very different and uncertain due to COVID-19. Ideas and plans are currently being worked on.
Promote Local Government and Griffith City Council through the organisation and coordination of Local Government Week activities.	4.6.6.1	Provide suitable activities to promote Local Government Week and increase the public's awareness of Local Government objectives and services.	Governance Manager	Number of events held over Local Government Week.	Planning for Local Government Week has commenced taking into consideration Covid 19 restrictions. Online activities are being

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					prepared and some regular events may be postponed until later in the year.
Promote the benefits and social inclusion of volunteering.	4.6.7.1	Engage volunteers to participate in community activities and facilities.	Tourism Manager	Number of volunteers engaged and the number that continue to volunteer.	We have a wonderful, passionate and extremely knowledgeable team of Volunteer Tour Guides that we utilise for our group markets and we are looking at other avenues where we can utilise our volunteers for group activities such as walking tours etc. We also engage with many volunteers during events however due to Covid this year events haven't gone ahead.

Promote reconciliation and embrace our Wiradjuri heritage and culture.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Aboriginal Community Engagement Protocol to be endorsed and implemented by Council.	4.7.1.1	Implement recommendations from Aboriginal Community Engagement Protocol.	Community Development Coordinator	Report on progress to Communities Committee.	Protocols are being implemented with CWP determining all actions after consultation with members.
Prepare Aboriginal Reconciliation Plan and implement recommendations.	4.7.2.1	Form Elders group and undertake consultation process to inform the Aboriginal Reconciliation Plan.	Community Development Coordinator	Report on progress to Communities Committee. Number of consultations held. ARP placed on exhibition and endorsed.	Aboriginal Elders steered the development of the Reconciliation Action Plan but no further actions have been implemented due to COVID 19.
	4.7.2.2	Consult, and or partner with the local Aboriginal Community Working Party (CWP).	Community Development Coordinator	Number of meetings held and number of events held in partnership.	Ongoing partnership.

Promote a healthy and active lifestyle

Develop partnerships to improve local access to health, mental health and allied health services.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Lobby State Government to commit funding in forward estimates for renewal of Griffith Base Hospital.	5.1.1.1	Monitor construction of new Base Hospital.	General Manager	Funding committed by State Government.	NSW Government has committed \$250M for construction of a new Griffith Base Hospital. Stage 1 construction under way. New Ambulatory Care Services Hub operational.

Build a community which promotes, facilitates and supports an active and healthy lifestyle for all.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain and renew playgrounds in accordance with the Playground Strategy.	5.2.1.1	Manage and maintain playgrounds in accordance with the Playground Strategy.	Parks & Gardens Manager	Playground safety inspections carried out as per the schedule.	Completion of Enticknap Park playground.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain Council's parks and reserves in accordance with Playground Strategy.	5.2.2.1	Manage and maintain parks and reserves to the level of service.	Parks & Gardens Manager	Parks and reserves maintained within allocated budget.	Parks and reserves continue to be maintained to meet the expectations of the community.
Promote healthy lifestyle programs to the community.	5.2.3.1	Collaborate with Murrumbidgee Local Health District (MLHD) to promote the Make Healthy Normal campaign.	Community Development Coordinator	Make Healthy Normal campaign promoted on Council's web page. Number of initiatives promoted.	Information received from MLHD but no projects implemented.
Continue to build strong networks with sporting bodies.	5.2.4.1	Support local sporting organisations to host major meets in Griffith.	Tourism Manager	2 major sporting events per year.	Unfortunately due to Covid all sporting events we were sponsoring in 2020 with our seed funding were cancelled.

Plan for and provide sporting and recreational facilities to encourage an active lifestyle and wellbeing.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain all Council's sporting ovals.	5.3.1.1	Manage and maintain Council's sporting ovals to the level of service.	Parks & Gardens Manager	Sporting ovals maintained within allocated budget.	Sporting facilities continue to meet the requirements

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					of the sporting associations.
Implement capital upgrades to sporting and recreational facilities as funding becomes available through grants or otherwise.	5.3.2.1	Seek grant funding for capital upgrades on sporting and recreational facilities.	Parks & Gardens Manager	Number of successful grants.	Funding for Jubilee Park and Westend oval will both receive facility upgrades.
Griffith Regional Aquatic Leisure Centre (GRALC) to provide a range of services for the improved health, well-being and lifestyle of the community.	5.3.3.1	Provide a high standard of services and programs in the following areas: general swimming, swimming carnivals, swim school, gymnasium classes and programs, creche, swim squad, kiosk, gymnasium access.	Leisure Services Manager	Aquatic Centre is open a minimum of 4,200 hours per annum. Increase attendances by 5% year on year.	The 4th quarter has been a difficult time with the centre required to close from 12 noon 23 March through till 8am on 13 June due to the NSW Government Public Health Order. Since reopening services have gradually restarted as allowed and as risk assessments have been completed to ensure the safety of all patrons and staff. At the end of June the gym,

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					pools and aerobics classes have restarted. Learn to swim, Aqua Aerobics and Creche are due to start on 20 July 2020. There is currently no start date for the kiosk.
Griffith Stadium to provide a range of services for the improved health, well-being and lifestyle of the community.	5.3.4.1	Provide a clean, functional facility, available to the community.	Leisure Services Manager	Increased utilisation of the Stadium. Compliance with Stadium Maintenance Schedule.	The stadium was required to close at 12 noon 23 March and did not reopen until 1 July 2020 due to the NSW Government Public Health Order.
	5.3.4.2	Construction of new 5 court stadium, 7 netball courts, synthetic athletics track and artificial track and artificial turf hockey pitch.	Leisure Services Manager	New amenities constructed by December 2021.	Contractors took control of the new 50m pool site and began construction on Wednesday 6 May. It is expected that construction of the new 50m pool and amenities block will be completed by 27 January 2021.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Planning and design continues for the new indoor basketball courts, all weather netball courts, all weather running track and hockey field at Westend Oval with ongoing consultation and negotiation with and between the major sporting groups on the layout of the new fields and courts at Westend.
Prepare a Master Plan for Olympic Street.	5.3.6.1	Incorporate new Community Centre and Skate Park.	Principal Planner Urban Design & Strategic Planning	Construction complete and finalised.	The Olympic street master plan for the Youth Precinct is in draft form currently.
Develop and keep current Master Plan for the 50 m Pool.	5.3.7.1	Griffith Regional Aquatic Leisure Centre undertake public consultation.	Principal Planner Urban Design & Strategic Planning	Specifications finalised.	The new pool is currently under Construction.
Collaborate with Council staff to ensure recreational, road cycling and walking	5.3.8.1	Meet regularly with planning and engineering staff to incorporate pedestrian and cycling recreation in future planning.	Principal Planner Urban Design & Strategic Planning	Regular meetings held.	Ongoing process. Involved in monthly Engineering

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
trails are incorporated in planning in and across the LGA, for locals and the visitor economy.					coordination meetings.
Deliver Urban Design Projects.	5.3.9.1	Scope, design and plan projects of city significance.	Principal Planner Urban Design & Strategic Planning	Number of projects delivered.	Continuous process: Constantly involved in scoping, planning and designing projects of significance for the city of Griffith. Current projects includes the upgrade of Yambil street, the community stage in Community Gardens, the new Community Center, the proposed Pump Track and the revising the draft Entrance Strategy. Projects recently completed is Enticknap accessible

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					playground and the new small stage in Memorial Park.

growing our city

Encourage our local economy to grow

Encourage and support the establishment of new and diversified industries and businesses.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Attract and host trade delegations to further promote business opportunities within the region.	6.1.1.1	Develop and promote the Business Prospectus to attract new investment in the region.	Economic Development Coordinator	Number of trade delegations to Griffith. Number of meetings held. Prepare new business prospectus.	2020 Prospectus completed and distributed.
Liaise with agencies to develop resources and programs to assist small business to establish in the area.	6.1.2.1	Attend regular meetings with agencies.	Economic Development Coordinator	Number of meetings held.	COVID-19 has impacted meeting with small businesses much harder but we have been sending out weekly business updates to assist SMEs each week to all registered ABN holders from the ABR data.
Work with new tourism related industries and build relationships.	6.1.3.1	Build new industries into Griffith's Tourism Product offering.	Tourism Manager	Ensure new industries and products are built into tour itineraries.	We are continually and consistently ensuring new industries and products are built into itineraries (both

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					independent and groups). Our recent face to face consultations (which involved over 140 stakeholders from Griffith and region) for our Griffith Destination Tourism Plan 2021-2024 was a great platform to reach out to new/ up and coming experience opportunities! And our latest Visitor Guide which was released in March 2020 has a huge focus on industry. We are also working on 'Meet the Maker' style video clips focusing on our unique industries which will be shared on digital platforms and will in turn create an interest for national media opportunities as well.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	6.1.3.2	Meet with industry and gain an understanding of the scale of the industry.	Economic Development Coordinator	Number of meetings held	Webinars attended during COVID-19 outbreak.
Profile Griffith as a vibrant, contemporary regional hub, a great place to do business.	6.1.5.1	Continue to build strong business relationships and networks. Attend business events/breakfasts and facilitate meetings. Promote Griffith in a national publication as a great place to invest.	Economic Development Coordinator	Number of business meetings hosted.	Prospectus 2020 completed.

Promote opportunities to assist existing businesses to grow.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Seek funding applications to run professional development for local businesses.	6.2.1.1	Partner with stakeholders such as the Griffith Business Chamber, Business Enterprise Centre and Regional Development Australia (RDA) Riverina to apply for funding and run events for local businesses.	Economic Development Coordinator	Number of events per year.	Face to face training have been put on hold due to covid, weekly covid newsletters provided ABN holders with webinar and professional development advice.
Participate in the Small Business Friendly Councils Program and implement	6.2.3.1	Continue to build the strong partnership with Small Business Council and Griffith City Council.	Economic Development Coordinator	Regular reporting completed as per agreements and on time.	New Easy to do Business representative appointed for Griffith.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
initiatives to promote the region as a place to do business.	6.2.3.2	Griffith Now Hiring program to attract skilled workers.	Economic Development Coordinator	Number of skilled workers attracted to the region.	April was Griffith's feature month on Country Change so we provided video footage and content to be uploaded. Filmed a new Griffith Now Hiring video as well and updating the Griffith Now Hiring website with a job search tool.

Plan strategically and consider land use management to encourage investment in the region.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Implement best practice development guidelines.	6.3.1.1	Comprehensive DCP prepared.	Planning & Environment Manager	DCP adopted.	DCP approved at Council meeting 11/08/2020 becomes operational 09/09/2020
Lake Wyangan Masterplan	6.3.2.1	Master Plan Lake Wyangan.	Planning & Environment Manager	Adoption of Layout Plan for a fully covered recreational area, Potable Water Reticulated Master Plan, Sewerage Reticulation Master	To Provide

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Plan and Drainage Master Plan.	

Promote and support diverse agricultural industries and encourage 'best practice'.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Communicate Griffith as a progressive agricultural region.	6.4.1.1	Promote Griffith as the agricultural powerhouse of the Riverina, share good news stories across social platforms and profile in regional editorial.	Tourism Manager	Minimum two stories in major publications/ networks or media visits.	Continually sourcing opportunities for new promotion and sharing good news stories across all platforms. Especially at the moment during Covid-19, the fact we are an agricultural powerhouse has been very evident and a really positive way to be able to continue to promote ourselves as such. The launch of the new Visitor Guide also reinforces this message with our front cover and photography, info graphics and

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					industry profiles throughout the guide. And as mentioned in 6.1.3.1 we are also working on 'Meet the Maker' style video clips to showcase Griffith as a progressive agricultural region.

Promote Griffith as a desirable visitor and tourism destination.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Update the Griffith Marketing Plan 2018-2021.	6.5.2.1	Update the Griffith Marketing Plan, adopt by Committee and implement. This plan highlights our key destination assets - food and wine, Italian heritage, friendly people.	Tourism Manager	Marketing plan updated and endorse by the Tourism and Major Events Committee.	Face to face consultation for the Griffith Destination Tourism Plan 2021-2024 will be carried out in August with 140 local and regional stakeholders to be engaged. Given the current severe impact of Covid 19 on our destination and businesses, the development of this DTP is critical for

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Griffith to ensure we collectively have an agreed plan into the future by identifying appropriate opportunities to grow visitation to our destination in all key segments for the benefit of our community. The DTP will be a wide-ranging strategic and living document and the single point of reference for the future development and marketing of tourism and events in Griffith. It will encompass marketing, events, product experience and infrastructure development as well as access.
Establish the Citrus Sculptures as one of Australia's most unique events.	6.5.3.1	Develop a media kit to generate media interest in the Citrus Sculptures and Spring Fest event.	Tourism Manager	Media Kit developed by July 2019.	DNSW grant funding application submitted in March for Spring Fest 2020. Relevant collateral kept up to date and

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					media opportunities arranged accordingly. Due to Covid-19 the Citrus Sculptures won't be going ahead as they normally do this year.
Increase Griffith's presence on TripAdvisor and Google.	6.5.4.1	Manage the TripAdvisor platform, Australian Tourism Data Warehouse (ATDW) and Visit Griffith website, invigorate local listings, facilitate ownership to businesses.	Tourism Manager	Increase in TripAdvisor and Google comments/reviews and record in the Tourism monthly report.	Feedback via digital platforms such as TripAdvisor, Google and Facebook is continually encouraged. We continue to facilitate listings of tourism stakeholders on digital databases such as the Australian Tourism Data Warehouse (ATDW) and the Visit Griffith website.
Increase conference market.	6.5.5.1	Create Conference Planner.	Tourism Manager	Conference Planner created Dec 2019.	We encourage local event suppliers to establish profiles on relevant digital platforms and proactively engage with potential

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					business event organisers.
Develop a new Visitor Guide 2019/21 and Ambassador Program.	6.5.7.1	Cost and develop a proposal and roll out.	Tourism Manager	New Guide released in 2019.	The new guide was successfully launched on 5 March 2020.
Develop and manage Pioneer Park as a significant tourism attraction for the region.	6.5.8.1	Develop an annual program of activities and events at Pioneer Park to attract and engage a diverse demographic with facilities and collections.	Griffith Regional Arts & Museum Manager	Two large events and 4 smaller community engagement activities conducted each year.	Due to COVID-19 community activities occurring at the Museum has been significantly curtailed. A new program of community cultural activities will be activated next term. It is proposed that the Multi-cultural Play group meets at the Museum - there is already a general play group that meets weekly - and this would be the basis of engagement with multi-cultural communities. The new radio display and activation by the Wagga Amateur

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					radio club will be developed next quarter. A new radio play presented in conjunction with GRAPA and utilising local history stories will also take place in Q1 and Q2 2020-2021.
	6.5.8.2	Identify key aspects of the collections and facilities and develop ways to promote these as featured tourist attractions.	Griffith Regional Arts & Museum Manager	One aspect of collection identified and new promotional materials developed and circulated per year.	During this quarter the Curator continued making videos engaging around the Museum collection- working on a What the Museum Does video for local Government Week and interview with local figure Noel Townsend. The collections videos have been extremely successful with over 8,100 views of the spanish flu video and 3,300 of the polio video. The Curator was invited by ANU Alumni to present a zoom

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					webinar on her career and work at the Museum, following viewing by ANU researchers of her video.
	6.5.8.3	Develop an annual marketing plan to promote the facility and actively engage with potential visitors.	Griffith Regional Arts & Museum Manager	Increase annual visitation by 3 - 5 %.	Despite the pandemic marketing activities for the Museum have continued with regular Facebook posts and sharing of videos relating to the collection. A new brochure has been drafted and will be introduced in the new financial year.
	6.5.8.4	Develop a range of educational and promotional resources, including digital resources, to promote the facility and actively engage with potential visitors.	Griffith Regional Arts & Museum Manager	Increase public engagement with Pioneer Park Museum social media by 5 -10%	The curator videos on the Spanish flu and Iron Lung have received 8,900 and 3,300 views on Facebook to date. This is an unprecedented level of engagement with the Museum on social media; other content including

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					several photos linked to local stories have also received thousands of views. This is a very significant increase on previous years were maximum views would rarely amount to 1000 views over an extended time period, and most posts would generate less than 40 views. Due to COVID 19 physical engagement with schools has been difficult, although the Curator has received a number of requests for incursions which will take place in Q1 2020-21. The curator videos have been accessed by local schools and are a factor in increased education engagement.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	6.5.8.5	Improve interpretive and directional signage within Griffith Pioneer Park Museum.	Griffith Regional Arts & Museum Manager	New interpretive signage installed by June 2020.	Directional signage has been completed and installed. Interpretive signage for the Todd exhibition has been created and installed. New interpretive signage across the site has been designed and is in production.

Encourage a skilled workforce with employment opportunities

Increase the range of opportunities to work locally.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Identify opportunities for Council traineeships and work experience programs.	7.1.1.1	Identify opportunities within organisation structure for potential traineeships.	Workforce Planning Manager	Number of trainees and apprentices employed. Number of work experience placements.	There are currently 4 Bachelor of Engineering Trainees, 2 Apprentice Plumbers (existing staff, mature aged), 3 x School Based Trainees (Workforce

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Planning, GRALC, Art Gallery).
Work with agencies including the RDA Riverina and Griffith Business Chamber to increase the range of opportunities to work locally.	7.1.3.1	Regular meetings held with agencies to increase opportunities to work locally.	Economic Development Coordinator	3 meetings per year per agency.	Going forward the Griffith Now Hiring program will also focus on local job seekers after the effects of COVID.

Develop partnerships to build on quality education and training opportunities.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Support local providers of educational and skills programs.	7.2.2.1	Provide ongoing advocacy support to existing organisations delivering services locally.	Economic Development Coordinator	Promote Country Universities Centre.	Attended Grow Our Own zoom meeting.

Advocate for safe work practices and employment standards.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Provide a compliant Work Health Management system to meet legislative and	7.3.1.1	Undertake review of WHS policies.	Human Resources and Risk Manager	RTW Program reviewed annually. WHS policies reviewed.	Work Health Safety procedures are constantly reviewed with changes to the legislation. Council have implemented new Software

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
organisational requirements.					ChemWatch and Vault to assist Council to maintain compliance with WHS requirements. At the 28 May meeting Recover at Work procedure was reviewed and the 20 February 2020 Contractor Management. WHS Committee have meet five (5) times within the 2019/2020 Financial Year.
	7.3.1.2	Provide a relevant training calendar for staff development and compliance in WHS.	Workforce Planning Manager	Number of staff provided with WHS training.	WHS training requirements identified in annual training calendar.
				Number of WHS initiatives implemented.	
	7.3.1.3	Implement amendments to WHS Act and Legislation changes as required.	Human Resources and Risk Manager	WHS Reporting to include Incident Reports, Workplace Investigations and Corrective Actions.	WHS Committee have meet five (5) times within the 2019/2020 Financial Year these being in

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Number of WHS Committee meetings held.	October, November, December 2019, 20 February and 28 May 2020. Note: as previously stated the August 2019 meeting did not go ahead.
Promote Employee Health & Wellbeing within Council.	7.3.3.1	Facilitate opportunities for training and policies to improve staff wellbeing.	Human Resources and Risk Manager	Four Health and Wellbeing Articles annually. Hold two Health and Wellbeing staff awareness programs.	2019/2020 Health and Well-being targets have been achieved. This may be unachievable for the 2020/2021 financial year due to the Covid-19 restrictions.

Provide and manage assets, services and facilities

Provide, renew and maintain a range of quality infrastructure, assets, services and facilities delivered in a cost effective and sustainable manner.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Maintain water infrastructure including reservoirs,	8.1.1.1	Manage and maintain water infrastructure as per budget.	Director - Utilities	Works completed as per budget allocation.	Griffith and Yenda Water Treatment plants, reservoirs and the water main

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
mains and treatment plants.					reticulation system constantly maintained and operational - ongoing. Upgrade works to the sand filters at the Griffith Water Treatment Plant continue during 2020.
Maintain sewer infrastructure including pump stations, rising mains and treatment plants.	8.1.2.1	Manage and maintain sewer infrastructure as per budget.	Director - Utilities	Works completed as per budget allocation.	Operation and maintenance of all sewer infrastructure is being carried out as per regulatory requirements and within Councils operational budget.
Plan and provide water and sewerage services that meet growth demands.	8.1.3.1	Update Developer Service Plans (DSP) for water and sewerage to ensure adequate infrastructure plans in place for future demand.	Director - Utilities	Completion of DSP for water and sewerage December 2019.	Suitable Consultants are being sought to provide quotes for Lake Wyangan DSP's related to the Masterplan. Update of existing water and sewer DSPs will commence once the Lake Wyangan Masterplan completed.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Design and construct reticulated sewerage network for villages of Lake Wyangan, Nericon and Tharbogang.	8.1.4.1	Design and construct Lake Wyangan and Nericon reticulated sewerage.	Director - Utilities	Construction and commissioning of Lake Wyangan and Nericon sewer to be completed by December 2018.	Completed last financial year
Design and construct reticulated water network to accommodate expansion of residential land releases.	8.1.5.1	Design and construct water mains in accordance with allocated budget.	Director - Utilities	Complete designs and construction as required.	Progressing as per Capital works program and within allocated budget.
Maintain water pressure zones and metered districts infrastructure.	8.1.6.1	Monitor flows and pressure for variations, anomalies and flow patterns.	Director - Utilities	Compliance with minimum flow rate and pressure standards as per Supply Levels of Service policy.	Ongoing monitoring of flows and pressures in pressure reduced zones for abnormalities and effectiveness to ensure Service Level Standards are maintained. Council has engaged Consultants AECOM to develop a Hydraulic model of

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					the Drinking water reticulation network to enable better prediction of pressure and flow requirements within the existing and growth areas of the city and surrounding villages.
Maintain water meter replacement program to ensure meter age less than 10 years.	8.1.7.1	Manage and maintain Griffith and villages water meter annual replacement program.	Director - Utilities	800 replacements per annum.	Ongoing as staff resources allow.
Maintain an annual water mains replacement program.	8.1.8.1	Manage and maintain Griffith and villages water mains replacement program in accordance with allocated budget.	Director - Utilities	100% capital works for water mains completed by June 2019.	Progressing as per Capital works program and available budget allocations.
Provide engineering design and referral services to internal departments within Council.	8.1.9.1	Engineering design and referrals provided to Council departments.	Engineering Design & Approvals Manager	Design progression and referrals reported quarterly.	Engineering Referral timeframes have improved with the implementation of streamlined documentation for engineering referrals for low impact developments. The updating of the Engineering

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Guidelines documentation is continuing which will assist in improving referral timeframes. Design and survey department are currently meeting the timeframes prioritised with the Council's Works Department.
Provide gravel from the Tharbogang quarry to meet the demands of Council's road building projects.	8.1.10.1	Gravel extraction to be carried out as per licence and development application requirements.	Waste Operations Manager	Gravel meets the demand required for Council roadworks whilst maintaining extraction limits.	Gravel extraction is at a minimum.
Maintain and develop infrastructure and services to bring together willing buyers and sellers of livestock in the Western Riverina region.	8.1.11.1	Manage and maintain Griffith Livestock Marketing Centre within allocated budgets.	Director - Utilities	Griffith Livestock Marketing Centre maintained to facilitate and maximise the buying and selling of livestock with a target of 450,000 head of sheep and ability to sell cattle when required.	Budget allocations are currently being maintained.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	8.1.11.2	Upgrade existing facilities to improve selling conditions for sheep yards.	Director - Utilities	Capital works to be maintained in the allocated budget each financial year.	Works progressing as per capital budget allocations.
Efficiently manage and maintain Council's fleet services.	8.1.12.1	Maintain a modern and suitable fleet to meet the requirements of Council's services and facilities.	Fleet & Depot Manager	Maintain 80% utilisation target of all fleet items.	Due to a stop on plant replacement the planned plant replacement program was not be completed in the 2019/20 financial year. The stop on plant replacement was made due to the COVID-19 pandemic.
	8.1.12.2	Provide efficient fleet services to Council.	Fleet & Depot Manager	Minimise downtime of fleet through proactive maintenance and plant replacement.	All major plant items are regularly maintained to manufacturers specifications or better. Some minor plant items are outstanding however these are generally under utilized items. Plant replacement is completed for this financial year with the exception of 2

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					vehicles that are still on order.
Advise on the delivery of a new Cemetery and Crematorium.	8.1.13.1	Explore options for the new Cemetery and crematorium.	Principal Planner Urban Design & Strategic Planning	Location for the new Cemetery and Crematorium finalised.	Urban Design is only involved in certain stages in this process. Currently waiting on direction.
Provide cemetery facilities to meet the needs of the community.	8.1.14.1	Manage and maintain Griffith, Yenda and Bagtown cemeteries within allocated budgets.	Parks & Gardens Manager	Cemeteries managed efficiently and to agreed service standards.	New lawn beams have been constructed in Lawn 5 and also 19 double below ground vaults will be completed within June 2020.
Maintain Griffith Airport infrastructure including terminal buildings, runways and car parks.	8.1.15.1	Maintain and manage Griffith Airport in accordance with Civil Aviation Safety Authority (CASA) standards.	Director - Infrastructure & Operations	Successful completion of annual CASA audit.	Griffith Airport maintained and managed in accordance with Civil Aviation Safety Authority (CASA) standards. All documents undergoing review in preparation for annual inspections in August.
	8.1.15.2	Implement recommendations of annual CASA audit.	Director - Infrastructure & Operations	CASA recommendations implemented.	Griffith Airport continues to be maintained and

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					managed in accordance with Civil Aviation Safety Authority (CASA). The conversion of all lights to LED was completed in Q4.
Ongoing review & assessment of Asset Management Plans for all asset classes.	8.1.17.1	Review & update Asset Management Plans for Council infrastructure.	Asset Management Coordinator	Provide annual report to Senior Management Team on status of Asset Management Plans by 30 June.	Processing asset data following valuation. Updated condition profiles and values will be used in asset management plans.
	8.1.17.2	Complete cyclical Valuation Reviews on each Asset class as required under statutory guidelines.	Asset Management Coordinator	Annual review of each Asset Class by 31 March. Complete scheduled revaluation of each Asset Class according to revaluation schedule.	Valuation has been completed by external valuers and is under review prior to final sign off.
Develop a Business Process Manual for Asset Management.	8.1.20.1	Develop a Business Process Manual that specifies how Council will procure and maintain asset inventory and spatial data and processes to ensure our asset data is kept relevant and up to date.	Asset Management Coordinator	Business Process Manual maintained and kept up to date on an ongoing basis. Status report to Director Business, Cultural & Financial	This is an ongoing program to document Assets team work procedures

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Services by 30 June annually.	
Provide GIS services to the organisation.	8.1.21.1	Provide timely, responsive GIS services for Council.	Asset Management Coordinator	Respond to GIS work requests within 48 hours.	GIS assets officers are managing the CRM Workload. They have eliminated the CRM backlog and providing timely services to internal and external customers.
	8.1.21.2	Complete rural addressing project.	Asset Management Coordinator	Rural addressing project completed by 30 June 2020.	Ongoing. Project is being undertaken within the Corporate Information department.
Maintain street sweeping program to improve quality of stormwater run off.	8.1.22.1	Manage and maintain street sweeping program.	Works Manager - Maintenance	Street sweeping undertaken as per program.	Street sweeping undertaken as per program and up to date.
Provide regular upkeep to ensure tourism facilities are attractive, accessible and social media friendly.	8.1.23.1	Masterplan for Visitor Information Centre updated.	Tourism Manager	Successful budget bids.	We are currently upgrading the old coach terminal into a much needed Meeting room. The Interpretive Display area within the centre will be the

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					next major project once the Griffith Destination Tourism Plan (DTP) is completed to ensure we are showcasing consistent themes.
	8.1.23.2	Audit of Tourism Assets and interpretive signage.	Tourism Manager	Completed October 2019.	Ensuring our budget bids allow for upkeep.
Develop and implement a Strategic Asset Management Plan for Griffith Pioneer Park Museum.	8.1.23.1	Complete site survey to capture and map existing services and develop detailed site map.	Griffith Regional Arts & Museum Manager	Map of site and services completed by 31 August 2019.	Site map has been completed. Additional information has been added as it becomes available.
	8.1.24.2	Carry out detailed inspection and develop pest control report for site.	Griffith Regional Arts & Museum Manager	Pest Control Report completed by 31 August 2019.	Completed .
	8.1.24.3	Program and carry out asset maintenance and pest control activities in accordance with Asset Maintenance and Restoration Plan. Review progress annually.	Griffith Regional Arts & Museum Manager		Pest management activities were carried out as required. A 5 year maintenance and management plan has been developed.

Maintain and develop an effective transport network (public roads, pathways, pedestrian access and transport corridors) for Griffith and villages.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Implement Heavy Vehicle Strategy recommendations.	8.2.1.1	Investigation, design and land acquisition for future stages of the Southern Industrial Link Road.	Engineering Design & Approvals Manager	Complete investigation and design to identify land acquisition requirements.	Design completed for intersections of Kidman Way (Lavender Bend), Brown Road, Brogden Road, and Bromley Road to allow the progression of construction of the Southern Industrial Link Road. Significant consultation required with Transport of NSW and essential service providers to ensure design was complete with all external stakeholder concurrence. Options Report and Concept Design completed for Kurrajong Avenue road widening from Old Wilbriggie Road to Irrigation

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Way which has allowed for costing of project and submission of application for funding of the project.
Maintain regional and local road infrastructure network as per adopted service standard.	8.2.3.1	Maintain regional and local roads and traffic facilities to adopted service standards.	Works Manager - Maintenance	Works carried out within Council's allocated budget.	Shoulder grading and re-sheeting on state road have completed. Heavy patching works on local roads have been completed. Rural Reseals have been completed. Construction of Hanwood Cycle Way is 90% complete.
	8.2.3.2	Develop and implement annual gravel re-sheeting program.	Works Manager - Maintenance	Works carried out within Council's allocated budget.	Gravel re-sheeting program have been complete within the allocated funds.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
	8.2.3.3	Sealed roads rehabilitation program implemented in accordance with Asset Management Plan.	Works Manager - Maintenance	Works carried out within Council's allocated budget.	Stage 2 of Yambil Street rehabilitation have commenced and it 80% completed.
Develop and improve the transport network through rehabilitation and capital works.	8.2.4.1	Construct roads in accordance with Capital Works Program.	Works Manager - Construction	Works carried out within Council's allocated budget.	i) Gravel Resheeting program completed. ii) Bromley Road - Pavement construction as such has been completed. Remaining minor works are installation of safety barrier, installation of signs, final sealing and linemarking. All will be done before the completion of GSIL Stage 6b project. iii) Realignment of Bromley Road and Kidman Way- Relocation of M1 supply channel is progressing but

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					almost complete; Earthworks on local roads are progressing; Certified drawings from Essential Energy received for the street lights and relocation of electrical poles. Major design issues with TfNSW have been resolved. Waiting for TfNSW comments on Traffic Management Plan.
Construction of the Southern Industrial Link Road (Heavy Vehicle Strategy).	8.2.5.1	Construct Bromley Road.	Works Manager - Construction	Works carried out within Council's allocated budget.	Designer of Safety Barrier was engaged to design the safety barrier. Awaiting for the design to send RFQ from potential contractors.
	8.2.5.2	Construct Bromley Road/Kidman Way intersection.	Works Manager - Construction	Works carried out within Council's allocated budget.	Relocation of MI supply channel is almost complete. Only specialized works on gates and

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					control of irrigation structures to be done by MI remains. Earthworks/ subgrade works are progressing. Land acquisition is 90% complete with a deed required to be signed by a bank for completion. Realignment of Bromley Road and Brogden Roads are progressing. Essential Energy Certified design construction drawing on relocation of electrical assets and street lights has been received. Major design issues raised by TfNSW have been sorted out. Waiting for the concurrence of Traffic Management Plan from TfNSW.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Investigate strategies to attract additional air services.	8.2.6.1	Discussions with regional airlines.	Economic Development Coordinator	Number of meetings held.	Regular contact with Sharp Airlines, they are back in the air after COVID. REX still operating weekly service during COVID as well.
Develop opportunities for heavy vehicles to access Griffith City, in conjunction with the Heavy Vehicle Link Road system.	8.2.7.1	Liaise with stakeholders and industry regarding opportunities to improve heavy vehicle transport routes.	Economic Development Coordinator	Number of meetings held.	Southern Industrial Link upgrades continuing to progress. WR Connect freight hub progressing to Gate 2 of Inland Rail Freight Study with EY. GCC part of the working group with Leeton Shire.

Improve the aesthetic of the City and villages, by developing quality places and improved public realm.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Initiate place activation projects in Griffith and the surrounding villages.	8.3.1.1	Implement a place activation project in the city centre of Griffith.	Principal Planner Urban Design & Strategic Planning	Report progress to CBD Working Group.	Constantly looking at areas to activate in Griffith and the surrounding villages. Applied of funding to active Kooyoo street as

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					part of Banna Lane with vivid style projected images and sound.
	8.3.1.2	Investigate and prepare, where appropriate, place activation plans for the surrounding villages.	Principal Planner Urban Design & Strategic Planning	Report progress to CBD Working Group.	Ongoing. Draft as Place Activation Strategy for both Griffith and the Villages. Council supported the new skate park in Yenda and is also looking into developing some activation at the Woman's Land Army park in Hanwood.
Deliver entrance statements at the main entrances into the City of Griffith in keeping with the Griffith Entrance Strategy.	8.3.2.1	Finalise and adopt the Griffith Entrance Strategy.	Principal Planner Urban Design & Strategic Planning	Griffith Entrance Strategy and relevant action is adopted.	Council received funding for the construction of 3 entrance Signs to the City. This is a priority project. Ongoing search for additional funding streams for the remaining two entrances into the City.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver streetscape upgrades to Yambil Street, Kooyoo Street and Olympic Street consistent with the Griffith CBD Strategy.	8.3.3.1	Design phase two and three of the Yambil Street Upgrade.	Principal Planner Urban Design & Strategic Planning	Design specifications for tender documentation has been prepared.	Ongoing. Finalised the design of stage 3 and 4 of Yambil street.
Liaise and support CBD Strategy Working Party in implementing Place Creation Strategies.	8.3.4.1	Support the CBD Strategy Working Party in seeking grant funding to facilitate workshops that engage the community in decision making process.	Economic Development Coordinator	Regular meetings with the Urban design team and meeting with the CBD Working Group.	We were successful in receiving a grant for the Pump Track through the Stronger Country Communities Fund.
Provide specialist advice to strategic projects.	8.3.5.1	Consult and evaluate projects where needed.	Principal Planner Urban Design & Strategic Planning	Number of projects delivered.	This is a ongoing process.

Mitigate the impact of natural disasters.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Retain formal relationships through the Floodplain Management Committee and appropriate government agencies for	8.4.1.1	Complete investigation, design and implementation of flood mitigation measures in accordance with OEH funding guidelines.	Water & Wastewater Manager	Report to Floodplain Management Committee and OEH on progression of funded works.	Yoogali McCormack Rd Levee and DC605J Culvert Upgrade Project: The project has been awarded to B&C Plumbing. Approval for the construction work

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
planning, funding and response to flooding.					of Yoogali DC605J Culvert Upgrade is being sought from RMS and MI. Construction work has been scheduled to start from October 2020. Hanwood Stormwater Pump and Levee Project: Funding application has been made to DoPIE and awaiting approval.
Lead and guide the local emergency community through participation in the Local Emergency Management Committee.	8.4.2.1	Facilitate Local Emergency Management Committee meetings quarterly.	Director - Infrastructure & Operations	Meetings held and recommendations implemented.	Local Emergency Management Committee held once in Q4 via Zoom. Regional Emergency Operations Center operational twice weekly throughout Q4. Local Meetings no longer required for COVID-19 as the response locally was minimised.

valuing our environment

Enhance the natural and built environment

Encourage considered planning, balanced growth and sustainable design.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Manage and maintain an efficient Development Application process as per legislative requirements.	9.1.1.1	Implement the Planning Department service review.	Director - Sustainable Development	Service review milestones achieved.	Ongoing continuous improvement
	9.1.1.2	Implement the outcomes and recommendations of the Development Assessment Review.	Planning & Environment Manager	Average DA turn around times under 40 days to avoid deemed refusals.	Ongoing
Transition to online development applications	9.1.2.1	Liaise with Department of Planning and Environment over the implementation of the planning portal.	Planning & Environment Manager	Online DA application process operational.	Awaiting guidance from the Department e-planning webinar to be attended 12/08/2020
Investigate and regulate unauthorised building works and land use.	9.1.3.1	Review and implement protocols to deal with unauthorised building works and land use.	Planning & Environment Manager	Number of matters investigated and finalised.	This process has been continued since the appointment of a planning compliance officer April this year. Registers of issues and compliance action taken to remedy has been

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					updated which include both historical and new.
	9.1.3.2	Develop a compliance database.	Planning & Environment Manager	Compliance database created.	Data base constantly updated in EDM and CRM's assist monitoring of workload.
Provide guidance on potential development, construction and planning issues.	9.1.4.1	Hold regular forums with developers, consultants and stakeholders.	Planning & Environment Manager	Annual forums held. Number of pre-lodgement meetings addressed.	Submissions requested on strategic documents - LSPS, DCP, LUS, GLEP (DCP now approved by Council)
Maintain Council processes consistent with Department of Planning and Environment requirements.	9.1.6.1	Adjustments made to Council processes as required.	Planning & Environment Manager	Compliance with Department of Planning and Environment requirements.	Ongoing.
Review the LEP, DCP and DC's to reflect Urban Microclimate Design principles linking urban climate, water	9.1.8.1	Define key Urban Microclimate Design principles and source funding.	Environment, Health & Sustainability Coordinator	Key Urban Microclimate Design principles 25% complete.	Reviewed as part of Local Strategic Planning Statement preparation

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
sensitive urban design (WSUD), green infrastructure and human health from street to city scale.					

Develop partnerships with the community and government agencies to care for the environment.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Develop Griffith City Council On-Site Sewage Management (OSM) Plan.	9.2.1.1	Develop structure for OSM Plan, determine process for capturing OSM information within Authority, HP Records Manager & Intranets and commence development of OSM Plan.	Environment, Health & Sustainability Coordinator	On-Site Sewage Management (OSM) Plan complete.	Commenced a review of Council's Onsite Sewerage Management Plan

Deliver projects to protect and improve biodiversity and biosecurity.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Deliver a noxious weeds eradication and control program.	9.3.1.1	Manage and maintain Council's noxious weeds program	Parks & Gardens Manager	Number of inspections and spraying programs undertaken.	Weed inspection and control on Crown, Rural and Road Reserves is ongoing to meet the DPI guidelines.

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Development of Griffith City Council Roadside Vegetation Management Plan.	9.3.2.1	Develop structure and commence development of the GCC Roadside Vegetation Management Plan.	Environment, Health & Sustainability Coordinator	Roadside Vegetation Management Plan 50% complete.	Project completed.

Value and protect our heritage buildings and precincts.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Review heritage database and study.	9.4.1.1	Respond to requests for heritage consideration.	Director - Sustainable Development	Number of heritage matters considered.	on-going

Improve sustainable land use.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Develop a Contaminated Land (CL) Register for Griffith City Council LGA.	9.5.1.1	Determine process and identify CL sites for Register, determine process for capturing CL information within Authority, HP Records Manager & Intramaps (the Register) and source funding.	Environment, Health & Sustainability Coordinator	CL sites identified 25% complete. CL register 25% complete.	Participated on the Executive Committee working toward the delivery of the Council Regional Capacity Building Program - UPSS and CLM project. Data Capture and Site Inspection Management Mobile Mapping

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					Application being developed.

Use and manage our resources wisely

Manage Griffith's water resources and water quality responsibly.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Offer rebates for water efficient devices.	10.1.1.1	Rebate program for water efficient devices provided.	Director - Utilities	Number of rebates provided.	Rebate program available- ongoing.
Maintain Risk Based Drinking Water Management System in accordance with State Government requirements.	10.1.2.1	Risk Based Drinking Water Management System - review and update if required.	Director - Utilities	Risk Based Drinking Water Management System prepared in accordance with legislative requirements. Compliance with Australian Drinking Water Guidelines and results published monthly on Council's website.	Ongoing improvement of management system. Producing water complying with Australian Drinking Water Guidelines. Review currently being carried out.
Commence Lake Wyangan and Catchment	10.1.3.1	Commence implementation of 3 priority LW&CM Strategy recommendations and source funding.	Director - Sustainable Development	Implementation measures determined once priority actions agreed. Funding	Contract for Sediment Ponds and Wetlands

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Management Project.				measures determined once priority actions agreed.	construction awarded

Reduce energy consumption and greenhouse gas emissions.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Investigate opportunities to implement energy efficient fleet and depot buildings.	10.2.1.1	Establish baseline data of fleet energy consumption.	Fleet & Depot Manager	Fleet energy consumption data prepared by 30 June.	Fleet energy consumption and carbon calculations have been provided. This measure needs to be made against working hours / kilometres to get a true reflection of energy usage in the fleet.
Liaise with local energy provider to maintain and upgrade street lighting.	10.2.2.1	Identify and implement opportunities to improve street lighting.	Director - Infrastructure & Operations	Street lighting issues identified and reported to Essential Energy. Implement new technologies as they become available.	Council continues to participate in the Southern Lights project which is now a combined LED streetlight project with RAMROC, REROC, CENTROC,

Quarterly Review | 2019/20

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
					CBRJO and Broken Hill City Council. Council received funding from TfNSW for Street lighting associated with Hanwood Cycleway crossing over Kidman Way south of Hanwood.
Continue to undertake Energy Audits on Griffith City Council facilities.	10.2.3.1	Complete Energy Audit on GCC's buildings.	Environment, Health & Sustainability Coordinator	Number of audits undertaken.	Project completed.

Provide environmentally sustainable waste management services.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Continually upgrade the existing waste management centres to provide waste handling to accommodate the current and future needs of the community.	10.3.1.1	Continue utilisation and upgrading of existing landfilling facilities.	Waste Operations Manager	Statutory reports submitted in accordance with licencing requirements.	Drainage works have been completed which deals with flooding issues on the southern body of the Landfill.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Encourage resource recovery and kerbside recycling.	10.3.2.1	Provide and promote resource recovery and recycling initiatives.	Waste Operations Manager	Provide relevant information to the community in relation to resource recovery services.	The volume of product being recycled has increased.
Maintain waste collection contract for domestic and recycling waste and maintain commercial, street and park waste collection.	10.3.3.1	Provide commercial, street and park bin collections.	Waste Operations Manager	Ensure daily collection service is provided. Bin network maintained.	The service contracts for the domestic and recycling waste collection is successful.
	10.3.3.2	Liaise with collection contractor to ensure that both domestic and recycling bins are serviced.	Waste Operations Manager	Ensure that contractor is servicing the domestic and recycling bin network as per contract.	All bins are serviced as per collection contract.
Deliver a Local Organics Collection Service for the Griffith Community.	10.3.4.1	Consult the Griffith Community to measure support for Garden Organics (GO) only or Food Organics and Garden Organics (FOGO) waste collection (kerbside, public place and business) organics diversion service. Determine business case for GO or FOGO organics diversion.	Environment, Health & Sustainability Coordinator	Objective measure of Community support for (GO) and (FOGO) organics diversion service.	Not progressed

Encourage and promote the use of alternative and renewable energy sources.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Investigate Biomass business opportunities for bio energy production and consumption (GCC & Regional). (Waste to Energy).	10.4.2.1	Undertake fuel study of region to consolidate existing data. Cost Biomass power plant to test commercial viability.	Economic Development Coordinator	Study and report prepared.	Council meets with interested waste energy providers as required.
Determine Mid Scale Solar Behind the Meter business opportunities (GCC & Community).	10.4.3.1	Undertake study of Mid Scale Solar applications. Cost Mid Scale Solar to test commercial viability.	Environment, Health & Sustainability Coordinator	Mid Scale Solar applications study complete.	No progress made on this Performance Measure during 2019 - 2020, Qrt 4 period.

Plan and implement programs to improve sustainability.

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
Implement the Street Tree Preservation policy.	10.5.1.1	Administer Street Tree Preservation policy.	Parks & Gardens Manager	Compliance with Street Tree policy. Number of street trees planted.	The Tree Preservation assessment application are complete.
Engage Council in Renewable Energy opportunities/deliverables.	10.5.2.1	Develop Renewable Energy Policy for Council. Commence development of Renewable Energy Master Plan. Source funding for Renewable Energy Master Plan. Rejoin OEH Sustainability Advantage program.	Environment, Health & Sustainability Coordinator	Renewable Energy Policy, complete. Renewable Energy Master Plan commenced. Source funding for	No progress made on this Performance Measure during 2019 - 2020, Qrt 4 period.

Quarterly Review | [2019/20](#)

DP Action	Action Code	Action Name	Responsibility	Performance Measure	Comments
				Renewable Energy Master Plan.	